SUCCESS ASSURED LINKS
MCQ COMPILATIONS OF 800 PAST NLS QUESTIONS WITH VARIATIONS

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THIS WORK CONTAINS THE QUESTIONS ONLY, STUDENTS ARE THEREFORE EXPECTED TO GET THE ANSWERS UPON PRESENTING EVIDENCE OF COMPLETE ATTEMPT OF THE QUESTIONS

EXPLANATORY NOTE

THIS WORK CONTAINS A COMPILATION OF PAST NLS MCQ QUESTIONS WITH VARIATION AND UPDATE TO REFLECT CURRENT POSITIONS OF THE LAW AND CURRICULUM

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BAR FINAL MULTIPLE CHOICE QUESTION COMPILATION

MCQ ON CIVIL LITIGATION

NOTE: This compilation is intended to serve only as a guide to MCQs on the Bar Final Examination and is by no means connected to any future examination of the Nigerian Law School. Students are therefore advised to avoid wrongful or unlawful application of the material or information contained herein.

Chief Samuel Danjuma contested in the last presidential election held on 10th March, 2015 under the platform of SDP. After what seems to be an impossible election, the result was declared on the 15th of March, 2015 and he lost to the candidate of the African Peoples' Congress (APC). He is aggrieved by the outcome of the election as it was widely obvious that the election was marred with irregularity, massive violence and snatching of ballot box. He wants to challenge same. However as a result of his lawyers delay, he did not file the petition until 20th April, 2015. The court delivered its judgment 3 months after nullifying the election.

1. **Before which tribunal should he file his petition**
   (a) Court of Appeal
   (b) Governorship and National Assembly Election Tribunal
   (c) Supreme court
   (d) Presidential Election Tribunal
2. **The petition should be filed on or before**
   (a) 30th of march, 2015
   (b) 6th of April, 2015
   (c) 31st of March, 2015
   (d) 5thof April, 2015
3. **The judgment of the court above is invalid because**
   (a) It was delivered out of time
   (b) It was filed before the wrong tribunal
   (c) It was filed out of time
   (d) All of the above
4. **The respondent in the above petition has within how many days to enter appearance**
   (a) 5 days
   (b) 7 days
   (c) Not less than 5 days but not more than 7 days
   (d) Not less than 5 days but not more than 14 days

In one of your days in the Igbosere Division of the High court of Lagos state during your court placement the first matter that was called out immediately the court started the……(5) was an application for interim injunction which was brought by……..(6). The application when granted is intended to last for……..(7). The next matter called up was an application for substituted service which was brought by…….(8). This matter was followed by an action for negligence against one Jesus Is Lord International School which was brought by…..(9) and supported by the following…….(10).

5.

(a) Session
(b) Sitting

(c) Cases
(d) Proceedings

6.
(a) Motion on notice
(b) Originating summons
(c) Motion ex parte
(d) Writ of summons

7.
(a) 7 days
(b) 42 days
(c) 14 days
(d) Till the end of the case

8.
(a) Motion on notice
(b) Summons on Notice
(c) Motion ex parte
(d) Originating summons

9.
(a) Writ of summons
(b) Petition
(c) Originating summons
(d) Originating motion

10
(a) Statement of claim and list of witnesses
(b) Copies of documents to be relied on
(c) Written statement on oath
(d) All of the above

China Nigerian Company Limited filed a suit for breach of contract against Agip International Limited at the High Court of the FCT. The claimant claimed the sum of 200 million as general damages for breach of contract and 2 million naira as cost of instituting the action. The defendant who has its head office in Lagos did not enter appearance and file its defence until after 38 days of service of the processes on it. The company contended that its delay in entering appearance was due to the fact that the processes was served on its security man who did not bring it to the notice of the management until 28 days after.

The claimant filed a motion for default judgment and urged the court to strike out the purported appearance and defence for being filed out of time. The court entered judgment in favour of the claimant but refused to make any order as to cost.

The defendants are highly aggrieved on the grave injustice and intend to appeal against the judgment. The claimant is also not happy with the court's refusal to grant him the cost asked for and also intends to raise it during the defendant's appeal.

Answer questions 11-16

11. **The defendant above ought to have entered appearance within not less than…….days**

(a) 30
(b) 8
(c) 42
(d) 14

12. The notice of appeal shall carry the heading of …….court and filed at……..
(a) Supreme Court and High court registry
(b) High court and Court of Appeal registry
(c) Court of Appeal and High court registry
(d) None of the above

13. **One of the following statements is true about the service of the processes on the security man of the defendant:**
(a) The service on the security man was valid
(b) The service on the security is invalid and therefore defective

(c) The process ought to have been served on principal officer of the company
(d) B and C above

14. **The Notice of Appeal when filed will contain all but one of the following:**
(a) Reliefs sought
(b) Issues for determination
(c) Grounds of Appeal
(d) Particulars

15. **The claimant may achieve his aim of appealing against the court's refusal to grant him costs by filing:**
(a) Notice of appeal
(b) Respondent's Notice
(c) Cross Appeal
(d) Preliminary objection

16. **The claimant's appeal against cost may likely fail because?**
(a) The claimant is greedy
(b) The defendant appealed first
(c) There is no right of appeal against order of cost
(d) None of the above

In a suit for defamation of character filed by Mrs. Jones Adeniji against one Cosmos Obong at the High court of Lagos state, the claimant contended that the defendant called her a prostitute and a scammer in the presence of her associates and husband's colleagues. At the end of the trial, the court ended judgment in favour of the claimant and ordered the defendant to pay her the sum of ₦20 million as general damages. The judgment was delivered on 7th July, 2018.

Answer Question 17-19

17. Mrs. Jones can levy execution of the judgment;
(a) Immediately it was delivered
(b) 3 days after the judgment was delivered unless the court orders otherwise
(c) 14 days after the judgment was delivered
(d) 3 months after the judgment

18. The first step Mrs. Jones will take to enforce the judgment is to apply for:
(a) Writ fiaeri facias
(b) Writ of sequestration
(c) Garnishee proceeding
(d) Writ of possession

19. Assuming the Defendant has appealed and filed a motion for stay of execution and it was refused by the trial court, what option is available to him and within what time should he exercise the option?
(a) Appeal to the court of Appeal within 14 days
(b) Seek leave of the trial court to appeal within 15 days
(c) Apply to the court of Appeal for stay of execution within 1 month
(d) Apply to the court of Appeal for stay of execution within 15 days

20. The following documents will accompany your answer in 19 above EXECEPT
(a) A valid notice of appeal and Affidavit
(b) CTC of the judgment appealed against
(c) CTC of the Ruling of the trial court refusing to grant stay of execution
(d) None of the above

Mr Philomin is a Civil servant and the owner of No 210 Obalende Close, Lagos state. He let out the premises to Miss Idah under a tenancy which commenced on the 1st of January, 2017. The rent is 11 Million Naira per annum. The parties agreed that the premises be used for residential purposes only. However, Miss Idah is now using the premises for hair dressing saloon. Mr Philomon is furious and has instructed you to evict Miss Idah from the premises.

Answer question 21-23

21. **The first step you will take to recover the premises is**
    (a) Serve Miss Idah a six months' notice to quit
    (b) Obtain a written consent of Mr. Philomin
    (c) Serve Miss Idah seven days' notice of owners intention to recover premises
    (d) Institute an action for recovery of premises
22. **If in the tenancy agreement it is not clear as to the nature of tenancy, the type of tenancy be deciphered;**
    (a) From the amount paid as rent
    (b) From how and when rent is paid
    (c) The length of years granted
    (d) All of the above
23. **Which court will have jurisdiction to entertain the action in the above scenario**
    (a) Magistrate Court Lagos
    (b) High court Lagos
    (c) Either the high court or magistrate court Lagos
    (d) Rent Control and Recovery of Premises Tribunal

Chief Bukk Dankusa contested in the last Senatorial re- run election of Kogi west senatorial District held on 10th March, 2018 under the platform of Unity Party. The result was declared on the 11th of March, 2018 and he lost to the candidate of the African Peoples Party. He is aggrieved by the outcome of the election and wants to challenge same.

24. **Before which tribunal will the election petition be filed?**
    (a) Senatorial Election Tribunal
    (b) Governorship and National Assembly Election Tribunal
    (c) National and State Houses of Assembly Election Tribunal
    (d) National Assembly Election Tribunal
25. **The exact time to file the petition should be on or before?**
    (a) 30th of march, 2018
    (b) 1st of April, 2018
    (c) 31st of March, 2018
    (d) 2nd of April, 2018
26. **The petitioner in the above case must file all but one of the following documents?**
    (a) Verifying affidavit
    (b) List of witnesses
    (c) Copies of documents to be relied on
    (d) Written statement on oath of the witnesses

The High Court of Lagos state declined jurisdiction in a suit filed by an NGO known as Social Rights Initiative and two other persons against the Attorney General of the federation and the central bank of Nigeria challenging the new policy which opted to put one thousand naira into coin.

27. **The most probable reason why the court declined jurisdiction is that:**
    (a) The matter was commenced in the wrong judicial division
    (b) The matter is within the exclusive jurisdiction of the National Industrial Court
    (c) The matter was commenced without the leave of the AGF
    (d) The matter falls within the exclusive jurisdiction of the Federal High court

In one of your days in court during your court placement the first matter on the……(**28**) was an application for third party proceeding which was brought by……..(**29**). The application was

supported by……..(**30**). The next matter called up was an application for interpleader which was brought by…….(**31**). This matter was followed by an application for enforcement of fundamental human right which was brought by……(**32**) and supported by the following…….(**33**).

28.

(a) Cause list
(b) Attendance List
(c) Course list
(d) Case list

29.

(a) Motion on notice
(b) Originating summons
(c) Motion ex parte
(d) Writ of summons

30.

(a) affidavit only
(b) Affidavit and written address
(c) Statement of claim
(d) Written address

31.

(a) Motion on notice
(b) Summons on Notice
(c) Motion ex parte
(d) Originating summons

32.

(a) Writ of summons
(b) Petition
(c) Originating summons
(d) Originating motion

33.

(a) Statement setting out the name and address of the applicant the reliefs sought and the grounds upon which the reliefs are sought
(b) Affidavit deposed to by the applicant himself and a written address
(c) Affidavit and written statement on oath
(d) A and B above

In the cause of the recent log ahead between the executive and the legislature in Nigeria, especially in the issue of budget padding and executive lawlessness, the National Assembly has decided to challenge the decision of the president to expend a whooping sum of one million naira only for his hair cut.

Answer question 34-36

34. The court that will have the jurisdiction to entertain the above suit is…

(a) Federal High court
(b) Court of Appeal
(c) Supreme Court
(d) High Court

35. The action above will best be instituted by:

(a) Originating Motion
(b) Originating summons
(c) Writ of summons
(d) Originating Applications

36. In the action above, all the following may be a nominal party except:

(a) The Senate president
(b) The President
(c) Attorney General of the Federation
(d) None of the above

Chief Mazi Obiekwe sued Mr Zakky Toby before the High court of Lagos State, igbosere judicial division for declaration of title to a plot of land situate at Ojota market Igbosere District and for damages for trespass. It is 2 months now after service of the processes on the defendant and he has failed to respond. As a result of this, the Claimant filed a motion on notice for default judgment. When the defendant got notice of the claimant's application, he filed a motion on notice for extension of time within which to enter appearance.

Answer questions 37-40

37. The lifespan of the originating process by which the action above was commenced is?

(a) 12 months renewable for 12 months until served
(b) 42 days from the date of service
(c) 6 months renewable for 6 months and 3 months only
(d) 6 months renewable for 3 months and another 3 months only

38. One of the following statements is true about the motion for default judgment filed by the Claimant above:

(a) It was not proper as default judgment cannot be made in cases of declaration of title to land
(b) It should been brought by Motion ex parte
(c) It is proper provided it was supported with an affidavit and a written address
(d) None of the above

39. Assuming the court intends to hear both applications, which one will the court hear first?

(a) The application for extension of time
(b) The motion for default judgment
(c) Any one the court deems fit to hear first
(d) The court can take both applications simultaneously

40. Assuming the court entered judgment in favour of the claimant, only one of the statements is true about the enforcement of the judgment:

(a) He must first apply for writ of fi.fa
(b) He must wait for one month before enforcing the judgment
(c) He must look a bank where the defendant has money
(d) He can adopt any of the modes applicable under the law for enforcement of monetary judgment.

Madam Sade a very popular philanthropist, who lives in Lagos, lent her childhood friend Adaora who also lives in Lagos the sum of ₦12, 000,000.00 to set up her mechanised business.

The loan agreement was entered into in Lagos and guaranyeed by Adaora's Boyfriend Sulu Anga who resides in Abuja. Adaora has defaulted in repaying the loan despite several letters of demand by Madam Sade. Madam Sade has therefore decided to commence an action against Adaora in order to recover the money.

Answer the following questions 41-45:

41. Before which court and by what mode will Madam Shade commence the action?

(a) Before the High court of Lagos state by writ of summons
(b) Before the magistrate court of Lagos state by claim
(c) Before the High court of FCT by writ of summons
(d) Before the High court of Lagos state by Originating summons

42. Assuming madam Sade intends to institute the action before the Lagos State High court, what fastest mode will she adopt to recover the money expeditiously?

(a) Summary judgment under order 22
(b) Undefended list under order 21
(c) Summary judgment under order 11
(d) Summary judgment under order 25

43. When commencing the action under the procedure above, the claimant is not required to file one of the following documents:

(a) Statement of claim
(b) List of witnesses to be called at the trial
(c) Deposition of witnesses on oath
(d) List and copies of documents to be relied on

44. Assuming Adaora wants to join the boyfriend who guaranteed for her in the contract as a co-defendant in case she is found liable in the above action; the can do so by:

(a) Applying for joinder of parties
(b) Third party proceedings
(c) Stay of proceedings
(d) Notice to join a third party

45. The application you identified above will be by…..

(a) Motion ex parte supported with an affidavit
(b) Motion on notice supported with and affidavit and a written address
(c) Motion ex parte supported with an affidavit and a written address
(d) Origination motion on notice supported with an affidavit

Mr. Kola Ken was arrested and detained by men of the EFCC on 28th June, 2018 on alleged offence of money laundering. All efforts to secure his release by his wife proved abortive. The wife Mrs. Kola has instructed you to file the necessary processes before the appropriate court to challenge the action of the Commission.

Answer questions 46-50

46. The best court to institute the proposed action above is?

(a) Magistrate Court
(b) State High Court
(c) National Industrial Court
(d) Federal High Court

47. The best mode to adopt in commencing the action is:

(a) Originating summons
(b) Writ of summons
(c) Petition
(d) Originating motion

48. The documents that will accompany the processes above include the following except:

(a) Copies of the documents to be relied on
(b) Statement setting out the name and address of the applicant, the reliefs sought and the grounds for the reliefs
(c) Affidavit deposed to by the applicant himself
(d) A written address

49. Assuming the EFCC intends to challenge the action filed by you above, within what time and what document will it file to do so?

(a) Within 7 days by filing affidavit and preliminary objection
(b) Within 42 days by filing memorandum of appearance and statement of defence
(c) Within 5 days by filing a counter affidavit and a written address
(d) Within 8 days by filing a conditional appearance

50. What is the time limit within which Mrs. Kola is to bring the action for enforcement of her husband's right?

(a) Within 30 days of the breach
(b) Within 1 year of the breach
(c) Within 12 months of the breach
(d) No time limit

51. **In view of the just concluded Governorship election, your friend Ibe wants to know the composition of the Governorship Election Tribunal, you told him that it is:**

(a) 4 members including the chairman
(b) 7 members including the chairman
(c) 3 members including the chairman
(d) 1 member only

52. **A petition challenging the National Assembly election usually ends before the:**

(a) Supreme Court
(b) National Assembly Election Tribunal
(c) Court of Appeal
(d) Federal High Court

Chinese Cuisine Nig. Limited filed an action before the high court of FCT against Anthon Pillar Company Limited. The defendant filed a notice of preliminary objection challenging the jurisdiction of the court to entertain the suit. The court upheld the objection and struck out the claimant's suit. Chinese Cuisine was aggrieved and has approached you to take the appropriate step against the judgment on its behalf.

Answer the following questions:

53. The process(es) you will file to carry out the instruction above is/are:

(a) A Notice of Appeal
(b) A motion ex parte for leave to appeal and a Notice of Appeal
(c) A motion on notice for leave to appeal and a Notice of Appeal
(d) A motion on notice for extension of time and leave to appeal and a Notice of Appeal

54. The process you choose in (53) above will be filed at:

(a) The registry of the Court of Appeal
(b) The registry of the trial High Court
(c) The registry of the High Court or Court of Appeal
(d) None of the above

55. The following are the contents of the Notice of Appeal except:

(a) Grounds of appeal
(b) Statement of facts
(c) Part of the decision appealed against
(d) Reliefs sought by the appeal

56. **The following are contents of the Appellant's brief of argument except:**

(a) Issues for determination
(b) Statement/summary of facts
(c) Grounds of Appeal
(d) Legal Arguments in support of issues

57. The following is true about the Notice of Appeals and the Appellants brief except?

(a) The issues for determination must arise or distilled from the grounds of appeal
(b) The Appellant brief must be filled within 45 days from the date of filing the appeal
(c) Not more than one issue for determination can be raised from a ground of appeal
(d) All grounds of appeal including the omnibus ground must be supported with particulars

58. Upon hearing the appeal, the Court of Appeal can make any of the following orders except:

(a) Uphold the appeal
(b) Non-suit the appeal
(c) Dismiss the appeal
(d) None of the above

The National Assembly recently passed the amended Electoral Act 2018. The President is not happy about the provision inserted in the Act by the legislatures changing the sequence of elections in Nigeria. He intends to approach the court to seek interpretation of the constitution in that regard.

Answer the questions that follow:

59. Which court will have jurisdiction to entertain the suit?

(a) The Supreme Court
(b) Federal High Court
(c) High Court of FCT
(d) Court of Appeal

60. In this action, the parties will be:

(a) The President Federal Republic of Nigeria V National Assembly

(b) The Attorney General of the Federation VS National Assembly
(c) Federal Executive V Speaker
(d) The President Federal Republic of Nigeria V The Senate President

61. The decision of the court in the suit above:

(a) Can be appealed against to the Supreme Court
(b) Cannot be appealed against
(c) Can be appealed against to the Court of Appeal
(d) None of the above

62. **Assuming the action was filed before the Supreme Court, the constitution of the court will be:**

(a) One Justice
(b) Three Judges
(c) Seven Justices
(d) Five justices

In a suit for libel filed by Mr. Ariyo against Mr. Cosmic, judgment was entered in favour of Mr. Ariyo for the sum of ₦ 15 million as general damages by an Ikeja High Court on 10th January 2019. The defendant, Mr. Cosmic has moveable properties all over the country.

Answer question 63-67

63. The first step the claimant should take to enforce the judgment is to apply for:

(a) Garnishee proceedings
(b) Writ of fieri facias (fi.fa)
(c) Writ of sequestration
(d) Motion on notice

64. **Assuming the claimant, Mr. Ariyo could not recover enough money from the moveable properties to satisfy the judgment debt, which further step can he take to enforce the judgment?**

(a) Garnishee proceedings
(b) Application for attachment of the immoveable properties of the defendant
(c) A or B above
(d) Writ of Fi.fa

65. Assuming the defendant has instructed you to appeal against judgment, within what time will you file the appeal?

(a) 90 days of delivery of the judgment
(b) 3 months of receiving the instruction to appeal
(c) 3 months of the delivery of judgment
(d) 30 days of delivery of the judgment

66. Assuming the defendant also informed you that he does want the judgment to be enforced against him pending the determination of the appeal, what further step will you take?

(a) Apply for stay of proceedings
(b) Apply for stay of judgment
(c) Apply for stay of execution
(d) Apply for injunction pending appeal

67. By what mode and before which court will you take the step in (66) above?

(a) High Court by motion on notice
(b) Court of Appeal by motion on notice
(c) High Court by motion ex parte
(d) Court of Appeal by motion ex parte

68. In Abuja, Undefended List applies to:

(a) All types of claim before the High court of FCT
(b) Only claims for un-liquidated money demand
(c) Only claims for liquidated money demand
(d) None of the above

69. In Lagos, summary judgment, Order 11 procedure is used for;

(a) Only claims for un-liquidated money demand
(b) Only claims for liquidated money demand
(c) All kinds of claim before the Lagos High court
(d) Only claims brought by undefended list

70. In civil litigation, the following is true about examination in chief except:

(a) It is restricted only to adoption of witness statement on oath and tendering of documents
(b) Open questions are also used
(c) Leading questions can be used without restriction
(d) Counsel cannot impeach the credit of the witness during examination in chief

Chief Mrs. Onile is the owner of the building at No. 2 Fashola Street Onikan Lagos which was let out to Medical Equipment Limited under a yearly tenancy which commenced on 1st January, 2012 at the rate of N11 million per annum. The company has not paid rent since 2014. You have been briefed by Chief Mrs. Onile to recover the premises.

Answer the following questions:

71. **The first step to take in order to execute the instruction is:**

(a) Serve the a 6 months' notice to quit
(b) Obtain a written consent of the landlady
(c) Institute an action in court to recover the premises
(d) None of the above

72. **In order to validly determine the tenancy, a notice to quit issued on 31st June, 2015, must ask the company to give up possession on or before:**

(a) 31 December, 2015
(b) 31 January, 2016
(c) 28th February, 2016
(d) 31st July, 2016

73. Before which court or tribunal will you institute an action to recover the premises?

(a) Magistrate court
(b) Rent Control Tribunal
(c) Lagos High Court
(d) Any of the above

74. Assuming the court entered judgment in favour of your client and ordered the Company to deliver up the premises; you cannot enforce the judgment until the expiration of:

(a) 14 days after the judgment
(b) 3 days after the judgment
(c) 7 days after the judgment
(d) Immediately after the judgment

75. the most appropriate mode of enforcing the judgment above is by:

(a) Writ of fifa
(b) Warrant of possession
(c) Writ of execution
(d) Judgment summons

76. When the court tells counsel to "move in terms" counsel is expected to-----

(a) Simply tell the court "I move in terms of the motion paper" without more
(b) Argue his motion till the end
(c) Conduct his case in terms of the reliefs sought
(d) State the rules, under which the motion is brought, the prayers on the motion paper, rely on the relevant paragraphs of the affidavit and adopt the written address if any.

Mr. Wuyep was the driver of a five-seater car which was transporting 7 people when it collided with Mr. Johnson's Toyota Camry car on 22nd of June, 2012. The insurance policy issued by Better Life Insurance Company Limited in respect of Mr. Wuyep's car provided that the insurance company was exempted from liability for any damage caused while carrying any load in excess of that for which the car was constructed.

Based on the above provision, the Insurance Company refused to pay indemnity for the damaged car. However, Mr. Wuyep is contending strongly that the clause only

applies to excess load and not excess passengers. He has asked you to institute an action against Better Life Insurance Company Limited.

Answer questions 77-81

77. Which of the following is the most appropriate mode to adopt in commencing this action?

(a) Originating motion
(b) Writ of summons
(c) Originating summons
(d) Petition

78. In view of the appropriate mode of commencement which you identified above, how would the facts of the case be presented to the court?

(a) Oral evidence
(b) Documentary evidence
(c) Statement of Claim
(d) Affidavit evidence

79. Assuming that the court delivered judgment against Mr. Wuyep and he intends to appeal, one of the following statements is true:

(a) He cannot appeal as there is no right of appeal in Insurance matters
(b) He can appeal with the leave of the trial court
(c) He can appeal as of right to the Court of Appeal
(d) He must file his appeal within 14 days of the judgment

80. Assuming that during the appeal, the Respondent wishes to urge the Appellate court to vary the grounds, upon which the decision of the trial court was based, he must file;

(a) Respondent's notice
(b) Fresh notice of Appeal
(c) A cross appeal
(d) Stay of execution

81. Mr. Wuyep was non-suited in the suit above, this means that;

(a) His action was struck out by the court
(b) His suit was dismissed
(c) He was unable to prove his claim but was given another opportunity to re-file his action
(d) His action was statute barred

Lola Ude fell in love with Matthew during their resit programme at the Nigerian law school. Their love blossomed quickly and they decided to get married. The notice of marriage was published both at the marriage registry and announced in the church. The parties could not wait to be together, so 14 days after the publication of the notice of marriage, they were wedded at the City Hall by their Pastor, Rev. Canon Didi Briggs. The marriage had to be celebrated at the City Hall because of the large crowd that attended the ceremony as the church building was small. About 3 months later, it was discovered that Lola was 5 months pregnant. Matthew never had sex with Lola before their marriage as it was against his church's doctrine. The pregnancy belonged to Fineboy, Lola's ex-boyfriend.

Answer questions 82-86 using the above scenario:

82. Which of this is true about the marriage above?

(a) It is void due to the adultery by Lola
(b) It is void because the notice of marriage was publish at two places the same time
(c) It is void because of the time between the publication of the notice of the marriage and the time of celebration of the marriage
(d) It is void because Lola was pregnant for another man at the time of the marriage

83. **Which of the following documents did the parties fail to obtain from the**

Registrar of marriages before the celebration of the marriage?

(a) The Registrar's licence
(b) The marriage certificate
(c) Certificate of notice to marry
(d) Notice of caveat filed by Lola's ex-boyfriend

84. **Which of these persons can petition for dissolution of a voidable marriage if other procedure was complied with?**

(a) Matthew
(b) Lola's ex-boyfriend
(c) Lola Ude
(d) None of the above

85. What is your opinion about the celebration of the marriage at the City Hall?

(a) It is appropriate as long as it was celebrated by a Pastor
(b) It was inappropriate as it was not celebrated by the Registrar of marriages
(c) It is inappropriate because City Hall is not a licensed place of worship
(d) None of the above

86. **If Lola was 17 years old at the time of the marriage and had been widowed from the death of her ex-husband, which of this will be true;**

(a) No consent will be needed
(b) The consent of the father of her ex-husband will be needed
(c) The consent of her will be needed
(d) The consent of the governor will be needed

Akeem Lamidi and Jibade Rambo instituted a…….(87) action for themselves and on behalf of the Lamidi Rambo family of Eleko Beach, Lekki, Lagos. The action was commenced by……(88) for declaration of title to their family land at Eleko Beach which was purportedly acquired by the Lagos State government for building a general hospital in the area, but which has now been allocated to Chief Ade Komolafe and Rashidi Ahmed who are both members of the Lagos State House of Assembly for their personal use. After the service of the processes on the defendants which include……(89), they entered appearance in the matter within……..(90) by filing…….(91) but did not file any defence to the action within the period stipulated under the rules of the court.

Three months after the service of the processes on the defendants, the Claimant's counsel filed a ……**(92)** for…….**(93).** Before the date fixed for hearing of the application, the defendant counsel filed a…….(**94**) to regularize their position. On the date fixed for hearing of both applications, the court decided to hear the defendant's application first because**……..(95).** The claimant's counsel informed the court that he is not opposing the defendants application but that he will be asking the court for……..**(96)**. The court granted the Claimant's counsel's oral submission and ordered as prayed. After granting the defendant's application, the Claimant's counsel……..**(97).**

Select the most appropriate option to fill the gaps in the above scenario:

87.

(a) Joint Action
(b) Representative action
(c) Class action
(d) Joinder of action

88.

(a) Writ of summons
(b) Originating Summons
(c) Ordinary Summons
(d) Originating Motion

89.

(a) The Governor of Lagos State; Chief Ade Komolafe and Rashidi Ahmed

(b) The Attorney General of Lagos State; Chief Ade Komolafe and Rashidi Ahmed
(c) The Governor of Lagos State only
(d) Chief Ade Komolafe and Rashidi Ahmed

90.
(a) 42 days
(b) 30 days
(c) 8 days
(d) 14 days

91.
(a) Notice of appearance
(b) Notice of preliminary objection
(c) Statement of defence
(d) Memorandum of Appearance

92.
(a) Motion ex parte
(b) Summons on notice
(c) Motion on notice
(d) Originating motion ex parte

93.
(a) Judgment for implied admission
(b) Judgment in default of appearance
(c) Judgment in default of defence
(d) Interlocutory judgment pending defence

94.
(a) Motion ex parte for extension of time within which to file their statement of defence
(b) Motion on notice striking out the case for lack of merit
(c) Motion ex parte for an order deeming the already filed processes as duly filed
(d) Motion on notice for extension of time within which to file their statement of defence

95.
(a) The defendant's application is seeking to regularize an irregularity while the claimant's application is seeking to terminate the proceedings
(b) Because the defendants, are very important personalities in the society
(c) Because the defendant had pleaded with the court and the claimant to allow their own application to be heard first
(d) The court has discretion to determine which application to hear first

96.
(a) A fee of N10,000.00 as security for cost of instituting the action
(b) Cost of N 5,000.00 to compensate him for his time and effort in coming to court and all expenses incurred therein
(c) Cost of N200.00 for each day of the defendant's default in filing their statement of defence to be paid into the courts account until the defence is filed
(d) Any of the above

97.
(a) Moved his application
(b) Withdrew his application
(c) Argued his written address
(d) Asked for his application to be adjourned

Recently, the summary notes titled "Success Assured Notes" by one Kelvin C. had been seriously pirated and he has discovered the particular business center involved. Pursuant to this discovery, he has decided to take steps to seize the already pirated copies and stop further production.

Answer questions 98-100

98. What is the most appropriate order for him to obtain in the circumstance to achieve his aim?
(a) Interim injunction
(b) Mareva injunction
(c) Interlocutory injunction
(d) Antom Piller injunction

99. What is the most appropriate of commencement the action in order to obtain the order above?

(a) Motion on notice
(b) Originating summons
(c) Motion ex parte
(d) Writ of summons

100. The court that will have jurisdiction to entertain the suit above is?

(a) Federal High Court
(b) State High Court
(c) Magistrate Court
(d) National Industrial Court

The event at the court……(101) last Monday were very brief. First the judge entered at 9 o'clock in the morning. After the initial pleasantries, he asked the……(102) to mention their cases. As the cases were being mentioned, the…….(103) was calling out the names of the parties involved. For each case called, the council would…….(104); None of the cases were heard, but all were merely mentioned and …….. (105).

101.

(a) Bench
(b) Session
(c) Hearing
(d) Trials

102.

(a) Bench
(b) Solicitors
(c) Barristers
(d) Bar

103.

(a) Orderly
(b) Court clerk
(c) Registrar
(d) Bailiff

104.

(a) Enter appearance
(b) Introduce themselves
(c) Announce appearance
(d) Bow and sit down

105.

(a) Postponed
(b) Suspended
(c) Adjourned
(d) Stood down

Judgment in a suit between Eribo Douglas as Claimant and Oche Okpani as defendant in respect of title to a piece of land located at No 20, Allen Avenue Maitama, Abuja; was delivered on 19th September, 2015. The court gave judgment in favour of the claimant.

Answer the following questions:

106. **The aggrieved party must appeal against the decision on or before;**

(a) 30th of November 2015
(b) 19th November, 2015
(c) 31st of December, 2015
(d) 19th of December, 2015

107. **Assuming the defendant travelled abroad and came back 4 months after the judgment was delivered, what option is available to him if he still wants to appeal?**

(a) File a notice of appeal at the trial court
(b) File a motion on notice for extension of time at the Court of Appeal
(c) File a motion ex parte for leave to appeal out of time at the trial court
(d) None of the above

108. **If the Court of Appeal delivered judgment in the appeal above dismissing the appeal, within what period should the aggrieved party appeal to the Supreme Court?**

(a) 3 months
(b) 30 days
(c) 90 days
(d) 45 days

108. **An aggrieved party requires leave of court to appeal in the following circumstance except:**

(a) Questions involving the interpretation and application of the constitution
(b) Appeals involving question of mixed law and facts
(c) Appeals against the decision of the High Court in its appellate jurisdiction
(d) Appeals against consent judgment

109. One of the following is not an application pending appeal:
(a) Injunction pending appeal
(b) Stay of proceedings
(c) Stay of execution
(d) Third party proceedings

110. In a suit between Mr. Fredo Longe as claimant and Dr. Bitrus Musa as defendant over declaration of title to a parcel of land, Dr. Bitrus is evading service of the originating process on him. What option is available to Mr. Fredo to effect service on Bitrus?
(a) Seek leave of court by motion on notice for substituted service
(b) Seek leave of court by motion ex parte for substituted service
(c) Simply publish the processes in the newspaper and radio stations
(d) None of the above

111. Assuming that despite being served Dr. Bitrus has refused to neither enter appearance nor file any defence, what option is available to Mr. Fredo?
(a) Apply for judgment against Dr. Bitrus
(b) Apply to the court to set the matter down for hearing to enable him prove his case
(c) Apply for cost against Dr. Bitrus
(d) All of the above

Recently, the President of the Federal Republic of Nigeria declared the office of the Vice President vacant without any reason. The vice President has decided to institute an action in court against the Attorney General of the Federation and the National Assembly, to inter alia; determine the constitutionality of the President's action and whether in the actual sense, the office of the Vice has become vacant.

Answer question 112-115 using the above scenario

112. Which of the following courts will have jurisdiction to entertain the matter?
(a) Court of Appeal
(b) Supreme Court
(c) Federal High Court
(d) National Industrial Court

113. Which of the following is the most appropriate mode of commencing the action and why?
(a) Writ of summons because the facts are contentious
(b) Petition because it is related to the election of the Vice President
(c) Originating application because it borders on prerogative powers of the president
(d) Originating summons because it borders on interpretation of the constitution

114. In view of the most appropriate mode chosen by you above, the facts of the case would best be presented by?
(a) Oral evidence
(b) Documentary evidence
(c) Pleadings of the parties
(d) Affidavit evidence

115. An appeal form the above matter shall lie to the…….as of ……
(a) Supreme court as of right
(b) Supreme Court with leave
(c) There is no right of appeal
(d) To the Court of Appeal as of right

Commercial Trust Bank Plc. has just been notified that one of its biggest customers Chief Akin Tanko has died. The Bank got information via two letters from two different lawyers representing the eldest son

of each of Chief Tanko's wives. None of the letters cited a letter of administration or will but each demanded that the Bank pay the credit balance in the deceased account to their client. The bank has consulted you as an external solicitor for advice.

Answer question 116-119

116. What will you advice the bank to do in the circumstance?

(a) Apply to the court to order the claimants to take action between themselves to determine who is entitled to the money in the account
(b) To share the money and deposit is it equally into the account of the claimants
(c) Deposit the money with the central Bank of Nigeria
(d) Convert the money into the bank's equity debts

117. **One of the following is not an essential fact that the bank will state in the supporting affidavit:**

(a) That the bank is interested in the outcome of the case one way or the other
(b) That bank has not colluded with any of the parties to bring the action
(c) That the bank is willing to pay the money to any person that the court directs
(d) That the bank has no interest in the money safe for the cost of filing the action and its services.

118. **The procedure the bank will adopt is called**?

(a) Sheriff interpleader
(b) Banks interpleader
(c) Stakeholder interpleader
(d) Courts interpleader

119. **Assuming one of the brothers had filed an action in action, what will he do to prevent the bank from paying the money to the other brother pending the determination of the case?**

(a) File a motion on notice for interim injunction
(b) File a motion on notice for interlocutory injunction
(c) File a motion ex parte for interim injunction
(d) File a motion on notice for order of mandamus

120. **Mr. Amadi recently terminated the appointment of Silas Damna his driver of over 10 years without paying him arrears of hi salaries for 8 months. In which court will he institute an action to recover the arrears of salary?**

(a) The state High court
(b) The Federal high court
(c) The Magistrate Court
(d) The National Industrial Court

Mr. Borobosi Atanga contested the recently held election to the Rivers West Senatorial District under the platform of Peoples Alliance Party and lost. The election was characterized by intimidation of voters, ballot snatching and other electoral malpractices. He is aggrieved by the outcome of the election and has retained your services to challenge the election in the appropriate tribunal.

Answer questions 121-125

121. Before which of the under listed tribunals will you file the petition?

(a) National Assembly Election Tribunal
(b) National and State Houses of Assembly Election Tribunal
(c) Governorship and National Assembly Election Tribunal
(d) Court of Appeal

122. **Which of the under listed is not a ground for election petition?**

(a) The respondent was not qualified to contest the election
(b) The election was filled electoral malpractices and non-compliance with the Electoral Act
(c) That the respondent did not score the highest number of lawful votes cast
(d) That the petitioner was validly nominated but was unlawfully substituted by his political party

123. All the following documents will accompany the petition except?
(a) List of witnesses
(b) Copies of documents to be relied on
(c) Verifying affidavit
(d) Written statement on oath of the witnesses

124. One of the following best describes the period the Respondent must enter appearance to the petition:
(a) Within 14 days from the date the petition was served
(b) Within 21 days from the date the petition was served
(c) Not less than 5 days but not more than 7 days from the date the petition was served
(d) Within 7 days from the date the petition was served

125. The penultimate appellate court in the above election petition is?
(a) The Court of Appeal
(b) The Supreme Court
(c) The Federal High Court
(d) None of the above

126. One of the following statements is true about the power of courts to deliver judgment and give reasons for doing so except?
(a) A valid judgment must contain the reasons for the decision of the court
(b) Every superior courts of record has the power to deliver judgment and give reasons later
(c) Only courts of final appellate jurisdiction can deliver judgment and reserve the reasons to a future date
(d) The reasons given by the court helps in forming the bases of appeal

Mr. Bello bought a jeep and took a comprehensive insurance cover with Dantata Insurance Company. On the 15th March, 2014, Mr. Dele was driving along the busy Ikeja High Way, Lagos when Mr. Bello who was driving under the influence of alcohol ran into Mr. Dele's car. The accident damaged Mr. Dele's car beyond repairs. Mr. Dele filed an action at Lagos State High Court claiming damages against Mr. Bello.

Answer the following questions:

127. If Mr. Bello wants Dantata Insurance Company to bear eventual liability in the event of judgment being given against him, which of the under listed proceedings would be initiated?
(a) Summary judgment proceedings
(b) Fast track proceedings
(c) Third party proceedings
(d) Third party injunction proceedings

128. Which of the under-listed best describes the mode of initiating the proceeding you identified above?
(a) Motion on notice
(b) Motion ex parte
(c) Summons
(d) Third party notice

129. The proceedings you identified in question 128 above is in favour of which the under-listed?
(a) The claimant
(b) The defendant
(c) The third party
(d) The court

130. Which of the under-listed best describes what will be served on Dantata Insurance Company upon the initiation of

the proceeding you identified above action?

(a) Motion on notice
(b) Motion ex parte
(c) Summons
(d) Third party notice and existing processes

Chief Adisa Longe is the landlord of No 1 Longe close Lekki Phase 1, Lagos made up of many blocks of flats. Chief Adisa is married to Madam Kofo under Yoruba Native Law and custom but the marriage produced no child. Chief Adisa therefore got married to Shade, a law graduate on whose insistence the marriage was conducted at the marriage Regustry, Ikoyi Lagos. In order to satisfy Chief's quest for a child, and realizing that he may be suffering from infertility, Shade entered into a secret affair with Tony, one of the Tenants in one of the Flats owned by Chief Adisa. Tony who is yearly tenant which commenced on 1st January, 2014, at the aannual rent of N5 million is in arrears of rent for the past 4 years.

Chief has just discovered of the relationship between Shade and Tony and he has decided to evict Tony and send Shade away legally.

Answer questions 131-135

131. What matrimonial relief will Chief Adisa seek against Shade?

(a) Decree of nullity of void marriage
(b) Decree of nullity of voidable marriage
(c) Decree of dissolution of marriage
(d) Decree of Judicial separation

132. Which of the following documents will not be necessary to accompany the originating process?

(a) Verifying affidavit
(b) Certificate of reconciliation
(c) Notice of petition
(d) Acknowledgment of service

133. Assuming the original marriage certificate issued to Chief Adisa and shade is lost, how can the marriage between the parties be proved?

(a) By tendering photographs taken during the celebration of the marriage
(b) By oral testimony of the persons present during the ceremony
(c) By tendering a copy of the order of programme printed during the reception
(d) By tendering a CTC of a copy of the marriage Certificate obtained from the Marriage Registrar

134. Which of the following is true about the termination of Tony's tenancy?

(a) He must be given a 6 months' notice to quit regardless of date of termination
(b) He must be given a 6 months' notice to quit which must terminate on 31st December
(c) His tenancy is deemed to have been terminated by operation of Law in view of the atrocity he committed
(d) His tenancy has already been terminated by effluxtion of time since he owes rent for 4 years

135. Before which court will the action to evict Tony from the property be commenced?

(a) Lagos state High Court
(b) Rent Control Tribunal of Lagos State
(c) Magistrate Court, Lagos
(d) Either the High court or the Magistrate Court

Global Network Limited through a circular issued by the Managing Director banned all union activities in the company. This is coming after the employees had formed a trade union for the purpose of promoting their welfare. You have been retained to challenge the action in court.

136. Which of the following under-listed cause of action would you bring the action on behalf the employees?

(a) Declaration of rights and duties
(b) Fundamental rights enforcement
(c) Breach of contract
(d) Breach of trust

137. In which court will you file the action above?

(a) Federal High Court
(b) State High Court
(c) Magistrate court
(d) National Industrial Court

During a brief hearing in a civil matter before the High court of FCT Abuja, the following conversation ensued;

Counsel: You are Hakeem Tunde of No 12 Asokoro Close, Abuja, a civil servant, am I correct?
Witness: Yes My Lord
Counsel: What do you want to do with your written statement on oath?
Witness: You are my lawyer; you know the best, do whatever you think is right with it.

Answer the Following Questions

138. What type of evidence is being adduced from the above scenario?

(a) Cross examination
(b) Examination-in-chief
(c) Re-examination
(d) Evidence of good character

139. What type of question was asked first by the Counsel in the above scenario?

(a) Leading question
(b) Closed question
(c) Open question
(d) Direct question

140. the most probable reason why the opposing did not raise objection to the first question is that:

(a) There is no problem with the question at all
(b) He is a new wig and don't want embarrassment
(c) The question relates to introductory matters
(d) None of the above

141. What was the proper response when the witness was asked what he wants to do with his written statement on oath?

(a) My Lord I want to tender the statement in evidence
(b) My Lord please accept the statement since it is on oath
(c) My Lord I adopt the statement on Oath as my oral evidence in this case
(d) None of the above

142. If you are the opposing Counsel, what will you do when the witness adopted his written statement on oath?

(a) Apply for a short adjournment
(b) Apply for the case to be stand down
(c) Cross examine the witness based on his written statement on oath
(d) Urge the court to declare the witness a hostile witness

Upon receiving instruction to file an action for defamation of character at the High Court of Lagos State, you filed a writ of summons together with the accompanying documents. You discovered that the writ must contain among other endorsement; the reliefs sought. Also the…….(**143**) which contains the material facts upon which claimant's action is based must……..(**144**) the defamatory words. After drafting the processes, it must be…….(**145**) by you, except for the witness written statement on oath which will be sworn before the……..(**146**). The processes is then taken for filing at the……(**147**). The Registrar confirms the processes and initials it and thereafter……(**148**) the processes to ascertain the amount to be paid as

the……(**149**). The Registrar upon confirming the payment will stamp the process and allot a ……(**150**) to the case.

143.
(a) Particulars of claim
(b) Statement of claim
(c) Particulars of defamation
(d) Affidavit

144.
(a) Specifically pleaded
(b) Specifically tendered
(c) Specifically explained
(d) Specifically adumbrate

145.
(a) Signed and dated
(b) Signed only
(c) Dated only
(d) Signed sealed and delivered

146.
(a) Commissioner for Justice
(b) Judge in chamber
(c) Court Registrar
(d) Commissioner for Oaths

147.
(a) Chief Registrar's office
(b) Judge's office
(c) Probate Registry
(d) Process Registry

148.
(a) Cost
(b) Assesses
(c) Examine
(d) Quantify

149.
(a) Filing fees
(b) Process Fees
(c) Security for cost
(d) Judgment fee

150.
(a) Motion Number
(b) Charge Number
(c) Suit Number
(d) Appeal Number

Chief Ade Abel contested the recently concluded general election into the gubernatorial office in River State under the auspices of Action Alliance Party (AAP). The election was conducted on 6th March, 2019. Due series of electoral crisis, the result was not declared until five days after, precisely on 11th March, 2019 wherein INEC REC officer declared Danjuma Diriye of the ruling party as the winner of the election.

Chief Ade Abel believes strongly that Federal might was used to manipulate the election and has decided to file a petition to challenge the outcome of the election.

Answer questions 151-155.

151. Before which court or Tribunal will you file the petition to challenge the election?
(a) Court of Appeal
(b) Supreme Court
(c) Governorship Election Tribunal
(d) Gubernatorial Election Petition Tribunal

152. **Within what time limit is the Tribunal expected to deliver its Judgment in the above petition?**
(a) 180 days
(b) 60 days
(c) 3 months
(d) 6 months

153. Despite your expertise, qualifications and knowledge in Arbitration, you could advice Chief Ade to go for arbitration in the above matter because?
(a) Election matters are sui generis
(b) His friends were strongly against it
(c) You will make more money from litigation
(d) Election matters cannot be resolved by arbitration

154. Assuming that due to the fact that Chief Ade's lawyer could not gather

enough evidence, he waited for 22 days and now wants to file the petition, which of the following is true?

(a) He can still file the petition since he is just one day late
(b) He can still file the petition once he pays penalty for late filing
(c) He can bring a motion on notice for extension of time within which to file the petition
(d) He can no longer file the petition because there is no extension of time in election matters.

155. The decision of the Tribunal may be any of the following except?

(a) An order nullifying the election
(b) An order nullifying the election and declaring the petitioner as the winner
(c) An order dismissing the petition and upholding the Respondent's election
(d) None of the above

156. If all parties in a civil action seek adjournment to resolve the dispute out of court, they will need to fie and adopt in court the?

(a) Terms of consent judgment
(b) Terms of ADR agreement
(c) Terms of settlement
(d) Brief of settlement

157. Once a court has pronounced upon the process filed in 156 above; it will be termed?

(a) Agreement judgment
(b) Final Ruling
(c) Consent judgment
(d) Final judgment

158. The best mode to adopt to enforce a judgment for recovery for premises when the court has ordered the tenant to give up possession is by?

(a) Warrant of possession
(b) Writ of possession
(c) Writ of fieri facias
(d) Writ of delivery of possession

159. The service of originating processes may only be validly made if made:

(a) Between 6am and 4pm Monday-Friday
(b) Between 6am and 6pm Monday-Saturday
(c) Between 6am and 6pm Monday-Friday
(d) Between 6am and 6pm Monday-Friday

160. The statement "the judgment is against the weight of evidence" is an example of:

(a) A form of general traverse in a Brief of Argument
(b) A form of general traverse in a Statement of Defence
(c) A form of general traverse in a Notice of Appeal
(d) A form of general or omnibus ground of appeal in a Notice of Appeal

Thursday the 8th and Friday, the 9th of August 2013 were recently declared public holidays by the Federal Government for the Sallah celebration marking the end of the Muslim Holy month of Ramadan; In the morning of the 8th, a warrant of arrest was issued by the commissioner of police in Anambra State for the arrest of Chukwuka Dan Bauchi upon allegation of kidnapping. He was arraigned at the High Court, Awka the following day. His counsel's oral application for bail was refused on the ground that application for bail at the High Court must be in writing. He thereafter filed an application for bail, supported by a 26 paragraph affidavit and 5 annexures.

Using the above scenario, answer questions 1-4

1. **Which of the following statement is false?**
   (a) A warrant of arrest can be issued on any day including public holidays
   (b) A warrant of arrest can be executed on any day including public holidays
   (c) A warrant of arrest can be issued by a Commissioner of Police being a superior police officer
   (d) A warrant of arrest can be executed in a church or a mosque

2. **Which of the following is true?**
   (a) The proceedings in respect of Chukwuka Dan Bauchi was validly conducted on the 9th of August
   (b) The proceedings on the 9th of august can only be validly if both parties are not Muslims
   (c) The proceedings on the 9th of August can only be conducted validly with a special permit from the attorney general of Anambra State
   (d) The proceedings on the 9th of August can only be validly conducted with the consent of both parties

3. **Assuming the prosecution intends to controvert the facts deposed in the affidavit in support of the application, he will:**
   (a) File an affidavit in opposition
   (b) File a contrary application
   (c) File a counter affidavit
   (d) Oppose the application on points of law

4. **Which of the following is not a factor the court will consider in granting or refusing to grant bail to the accused?**
   (a) The gravity of the offence
   (b) The likelihood that accused will tamper with investigation
   (c) The likelihood that accused will commit another offence if granted bail
   (d) The economic condition of the accused

Mr. John Jack was arrested in Jos, Plateau State for dangerously driving his Toyota Hiace Bus and causing the death of one Helen Ukuegbu. The state ministry of justice

is considering the charging of the suspect to court. The police have explained to the family members of the suspect that they have been instructed to keep him in detention because of the publicity of the case.

Using the above scenario, answer questions 5 and 6

5. **When the accused is arraigned in court, he would be entitled**
   (a) To plead to the charge
   (b) To hear the charge read and explained to him to satisfaction of the court
   (c) To be placed in the dock unfettered
   (d) All of the above

6. **The reason given by the police for the detention of the suspect is:**
   (a) Proper because police has discretion
   (b) Lawful in view of the fact that the crime involves loss of life
   (c) Unlawful
   (d) All of the above

Hajia Safura was flagged by police at 11pm on August 1st 2013 at the Bar Junction. She was asked to step out of the car. Her handbag was searched by inspector John Joseph. He found some substance suspected to be cocaine in the purse. She was immediately arrested and taken to Bar Police Station where she was detained for 2 days without access to her family or lawyer.

Using the above scenario, answer questions 7-9

7. **All except one of the following is incorrect:**
   (a) The search of Hajira Safira by a male policeman was unlawful
   (b) The search was illegal because it was conducted at 11pm
   (c) The search is illegal because it was done without a search warrant
   (d) None of the above

8. **One of the following is not a content of the warrant of arrest:**
   (a) The name of the alleged offender
   (b) A concise statement of the alleged offence
   (c) A concise statement of the ruling of the judge issuing the warrant
   (d) The date of issue

9. **Which of the following is correct:**
   (a) The cocaine found in Hajia Safira's bag cannot be admitted in evidence because the advantage of admitting it is outweighed by the disadvantage of admitting it
   (b) The cocaine can be admitted in evidence because it is relevant but subject to the discretion of the court
   (c) The cocaine cannot be admitted in evidence as Hajira Safira was not caught at the point of purchase
   (d) None of the above

Following a tip-off to the Police that Okon Mafuka had stolen from the ATM of a bank, the police mounted a check point on the road. They searched every vehicle and persons therein. Mr. Bigi, one of the passengers objected to being searched because the police had no search warrant to that effect.

The police arrested Keke Oladimeji who had a lot of money in his bag. The bank officials identified Keke as the fraudster with the help of camera installed in the bank.

At a closer look at the Naira notes, the police discovered that they were fake and charged keke to magistrate's court for counterfeiting. After the charge was read and explained, keke kept mute. The magistrate promptly entered a plea of not guilty for him and ordered the prosecutor to prove its case. Keke was discharged and acquitted because the prosecutor failed to prove beyond reasonable doubt that keke foreknew the Naira notes were fake. The bank officials believed the magistrate was corrupt to have let keke go free since the camera actually showed he stole from the ATM.

Answer the following question.

10. Bigi's refusal to be searched was in order because:
(a) The police did not obtain search warrant in that respect
(b) The police did not show him the search warrant
(c) He was not named in the search warrant
(d) None of the above

11. If the bank had not installed a camera in its premises, and the culprit was only sighted by a security guard, police would have conducted _____ to get the culprit
(a) A body search
(b) An arrest
(c) An identification parade
(d) A recruitment

12. The magistrate court rightly assumed jurisdiction over the offence of counterfeiting and uttering _____
(a) Yes
(b) No
(c) All of the above
(d) None of the above

13. When an accused person keeps mute after a charge is read and explained to him, the first thing that the court should do is:
(a) Enter a plea of guilty for him
(b) Enter a plea of not guilty for him
(c) Enquire into the cause of his muteness
(d) Do of the above

14. When an inferior court or tribunal exceeds its jurisdiction, its decision is challenged by way of _____
(a) Certiorari
(b) Mandamus
(c) Habeas corpus
(d) Prohibition

Chief Magistrate Etukudo has just been transferred to another magisterial district. Barrister Bassey is counsel to Udo, who is standing trial for offence of stealing. Chief magistrate Etukudo had granted him bail before his transfer. Another magistrate has to take over Udo's trial. He has ordered Udo to be remanded in prison

During the trial the prosecution called a total of five witnesses to prove its case. Udo testified for himself, and did not call any other witness. After Final Addresses on 5th February 2012, the court reserved judgment to 5th October, 2012. On that day, he delivered an oral judgment convicting Udo and sentencing him to two year imprisonment.

Answer the following questions:

15. Upon another magistrate taking over the trial of Udo, one of the following is the first step for him to take:

(a) Introducing himself to the accused and the counsel
(b) Calling on witnesses to testify in the case
(c) Arraignment
(d) Doing a new charge

16. The magistrate was wrong to have ordered Udo to be remanded in the prison because; ____
(a) His brother Chief Magistrate had granted Udo bail
(b) There was no need for barrister Bassey to apply for fresh bail for Udo in the same case and Court
(c) Udo had religiously attended the court and never showed any sign of jumping bail
(d) None of the above

17. The court was right in adjourning to 5th October, 2012 for judgment because:
(a) It needed time to evaluate the evidence led before it
(b) It is a constitutional provision which requires strict adherence
(c) All of the above
(d) None of the above

18. Magistrate Courts can deliver oral judgment and ____ for the judgment to be valid,
(a) Reduce it into writing thereafter
(b) Give copies of the judgment to the parties
(c) Make short note of its finding in the cause book
(d) Give appeal conditions to any party offended by it

19. To prove the offence of stealing, the prosecution ____
(a) is not bound to call a specific number of witnesses
(b) is bound to call at least two witnesses
(c) all of the above
(d) none of the above

20. One of the following is not true:
(a) "stealing" and "possession of stolen property" can validly be charged together
(b) "stealing" and "possession of stolen property" cannot be charged together for being bad for misjoinder
(c) both (a) and (b) are correct
(d) none of the above

Answer question 21-24 based on the following scenario:

When the charge of rioting while armed with a deadly weapon was read in English language and explained in Hausa Language to Mallam Aboki Babali at the High Court of the Federal Capital territory, Abuja on 27th July, 2011, Mallam Aboki was simply looking at the trial Judge without a word.

21. From the above scenario, the accused is said:
(a) To have refused to plead
(b) To be unable to plead
(c) To have remained mute
(d) To have objected to the provision of interpreter

22. If from the scenario above, Mallam Aboki has <u>refused to plead</u>, the court would:
(a) Inquire into the cause of refusal
(b) Enter a plea of not guilty
(c) Enter a plea of guilty with reason
(d) None of the above

23. If from the scenario above, Mallam Aboki is unable to plead, the court should:

(a) Adjourn the matter
(b) Enter a plea of not guilty for him
(c) Enter a plea of guilty for him
(d) Provide him with another interpreter

Answer question 25-28 based on the following scenario.

During the trial of Steven Maduka before the FCT High Court for causing hurt by dangerous driving, the following took place between prosecuting counsel and PW1:

Counsel: You said you were an eye-witness to the incident that claimed the life of the deceased?

Witness: I said I was inside the car that killed the deceased.

Counsel: So you saw the accident happened?

Witness: I was there when the accident happened but I cannot say I was everything.

Counsel: Please tell this Honourable court what you saw.

Witness: I cannot remember all that I saw

Counsel: Please tell this court what you can remember you saw.

Witness: (said nothing; just looking at the floor)

Counsel: You informed this honourble court earlier on that you are an eye witness. Can you remember telling the court like that?

Witness: Do you understand that to mean I saw everything?

Counsel: You are dodging the question. You are not a witness of truth. I am going to show you your previous statement to show that you are a bloody liar.

24. By counsel's last statement he is stating that;

(a) The witness is a dodgy witness.
(b) The witness is a hostile witness
(c) The witness is an unreliable one
(d) The witness is of a weak intellect

25. If counsel statements in the last paragraph are true the right procedure is:

(a) To pronounce the witness a hostile witness
(b) To apply to court to declare the witness a hostile witness
(c) To discontinue further questions
(d) To apply to discharge the witness

26. If the witness is declared a hostile witness, then:

(a) Counsel can cross examine him
(b) The court can filter his evidence
(c) The witness can apply to step down
(d) None of the above

27. If the witness is declared a hostile witness in this case:

(a) Only his previous statement can be acted upon
(b) Only subsequent statements can be acted upon
(c) Both his previous and subsequent statement will be dis countenanced
(d) None of the above

Badmut, a member of a terrorist group, wanted by the police was arrested and having in his possession dangerous

explosives and intention to blow up the Independence House at Maidugiri, Bornu State. Badmut had been kept in police custody for seven days.

A criminal action was commenced against Badmut by the attorney general of the state at the magistrate court. During the trial, the Minister of State for Justice entered an oral nolle prosequi, which the defence counsel did not object to but pleaded with the Judge to acquit his client.

The trial judge thereafter acquitted Badmut.

Now answer the following questions.

28. The detention of Badmut at the police station was:
(a) Lawful
(b) Unlawful
(c) Justified
(d) wrong

29. The court that has competence to try the action is:
(a) High court
(b) Federal High Court
(c) National Industrial court
(d) Sharia court

30. The nolle prosequi entered by the Minister of state was:
(a) Unconstitutional
(b) Constitutionally correct
(c) Outdated
(d) None of the above

31. The sentence imposed by the Judge was:
(a) Unconstitutional
(b) Constitutional
(c) Judicial rascality
(d) None of the above

32. The Attorney-General of Bornu State does not require the fiat of the attorney general of the federation in other to prosecute Badmut in court.
(a) False
(b) True
(c) Requires witness
(d) Require consent of Badmut

Akin, Chinwa, Jamiu and Nafiu are members of a dreaded terrorist group who went to the 'mammy market' Custom Barracks, Bwari- Abuja with rifles, cutlasses and cudgels to attack customers drinking and merrying pepper soup and beer joint. After the attack, five people were found dead. The Nigeria police, Bwari later arrested the four suspects and charged them to the Federal High Court, Abuja for murder. The court sat on February 26, 2010 (Id-el-Maulud day) a public holiday to take the plea of the suspects. Akin pleaded guilty to the charges with reasons.Chinwa pleaded not guilty by reason of insanity while Nafiu objected to the jurisdiction of the court to try the offence.

33. Which court has jurisdiction to try the offence?
(a) The Chief Magistrate Court
(b) The High Court
(c) The Federal High Court
(d) The sharia court

34. What is the legal implication of the plea entered by Akin?
(a) Such plea is proper in law as the judge can convict on it.
(b) Such plea is not proper in law as it is ambiguous
(c) Such plea amounts to contempt as judges usually frown at it
(d) Such plea is an admission of guilt

35. What step should the court take after Chinwe has entered his plea?

(a) Detain the accused at Governor's pleasure
(b) Enter a plea of Not Guilty for the accused
(c) Send the accused to mental home
(d) Find out whether the accused committed the offence and whether he was sane or insane at the time the offence was committed

36. Since the court decided to sit on a public holiday, which of the following is correct?
(a) Proceedings conducted on a public holiday is valid as parties to the trial consented to it
(b) Proceedings conducted on a public holiday is invalid whether or not parties consented to it
(c) Proceedings conducted on a public holiday are valid only if the prosecutor consented to it.
(d) Proceedings conducted on a public holiday are valid only if the accused consented to it.

37. On the day of hearing, no counsel appeared for the accused person. What should the court do in the circumstance?
(a) Proceed with the hearing
(b) Refer the case to the legal aid council to get counsel for the accused person
(c) Detain the accused person in custody until they are able to get counsel to represent them.
(d) Detain the accused person and advice their relation to arrange for counsel for them.

Ogochukwu, Ogene and Bello were arrested and charge before the High court of Okene, Kogi State for the offence of treason and treasonable felony. Their counsel Mr. Okpara Micheal intends to oppose the jurisdiction of the court to try the offence.

38. At what stage of trial will he raise the issue of jurisdiction?
(a) Immediately the accused persons take their plea.
(b) Immediately the charge is read to the accused persons but before they take their plea thereon.
(c) Immediately the case is called by the registrar
(d) None of the above

39. If the objection of defence counsel to jurisdiction succeeds which of these courts will have jurisdiction?
(a) High Court of kogi State
(b) Upper Area Court, Okene
(c) Court of Appeal
(d) Federal High Court

At the trial of Anne and Joy for drug trafficking before the Federal High Court, Ibadan, Anne refused to plead to the charge while Joy stood mute when the charge was read to her. The court however wasted no time in recording a plea of not guilty for the two accused persons. When the National Drug Law Enforcement Agency (NDLEA) prosecuting counsel applied to Court to open its case, the defense Counsel objected on the ground that only the office of the Attorney General could prosecute such offence. The objection was overruled. The Officer who investigated the matter sought to tender a confessional statement made by Anne in the course of his testimony before the Court, but this was opposed by the defence counsel on the ground that no such statement was made.

The court went into trial within trial to determine whether or not the statement was made. The prosecution called only the officer who investigated the case and closed its case. The defence called no witnesses and

did not give any final address. The prosecution addressed the court. The two accused persons were convicted and sentenced to 5 years imprisonment each.

Now answer the following questions 40-45

40. The Court was wrong to have hurriedly recorded a plea of not guilty for Joy when she stood mute because:
(a) The muteness could have been as a result of stress
(b) The muteness could have been as a result of annoyance
(c) The muteness could have been as a result of malice or visitation of God
(d) None of the above

41. The objection to the right of the NDLEA official to prosecute the accused persons was _____
(a) Wrongly overruled
(b) Rightly overruled
(c) All of the above
(d) None of the above

42. When the admissibility of the purported confessional statement of Anne was objected to on the ground that it was not made, the Court should have:
(a) Simply rejected the statement
(b) Simply ask the prosecution if the statement was made in the presence of any one
(c) Simply ask Joy if Anne truly made the statement
(d) Simply admitted the statement but look for other pieces of evidence adduced at trial to corroborate the content of the statement before ruling on it.

43. Trial within trial is only necessary where the admissibility of a confessional statement is challenged on the ground that it was obtained as a result of _____
(a) Inducement
(b) Threat
(c) Promise of an advantage
(d) All of the above

44. The Prosecutor's evidence would be insufficient in the absence of any <u>one</u> of the following:
(a) Case diary
(b) Expert report of a national chemist
(c) Post mortem report
(d) Confessional statements of the accused persons

45. Final address by the defence is important because _____
(a) It is part of the evidence of a party
(b) It is the sole determinant of who wins a criminal matter
(c) It helps the judge to avoid going through the bulky evidence adduced by the parties
(d) It assists the Court in identifying the strength of a party's case and the weakness of the other based on their respective evidence already adduced before the court.

At the arraignment of Ajasco Randi for rape recently at the high court, Abagana, Enugu State, when the charge was read to him he refused to make a plea out of annoyance. The judge went ahead and recorded not guilty for him. The two witnesses for the prosecution remained in court. PW1 gave his evidence and sat down. The prosecution without calling PW" closed its case. Counsel for defence protested to the court that prosecution ought to have called d all his witnesses before closing his case. The accused Ajasco Randi still refused to enter his defence. He was sentenced to life imprisonment and forty strokes of haddi lashing.

Answer the following questions, 47-50 based on the above scenario.

46. **When Ajasco Randi refused to enter a plea the court should have :**
    (a) Adjourned the matter sine die.
    (b) Entered a plea of not guilty before investigating the reason for his refusal
    (c) Enter a plea of guilty for him and sentence him accordingly
    (d) Ordered him to plea to the charge

47. **The evidence of the prosecution witness who remained in court should have been:**
    (a) Disregarded by the court
    (b) Inadmissible in its entirety
    (c) Admitted but the court should attach less weight to it
    (d) All of the above

48. **The objection of the defence counsel that the prosecution ought to call the other witness listed should be overruled:**
    (a) Because the prosecution is not bound to call all his witnesses
    (b) No, it should be upheld because once witnesses are listed on the charge sheet they must all be called
    (c) Because the prosecutor is the master of the proceedings
    (d) Because only the eye witness is necessary in the proceedings

49. **The punishment imposed by the court should have been:**
    (a) 12 strokes of haddi lashing instead of 40 strokes
    (b) 40 strokes of haddi lashing only
    (c) Terms of imprisonment with or without canning
    (d) Terms of imprisonment and 12 strokes of haddi lashing.

50. **Assumimg Major Kassil was convicted by the court martial for obtaining by false pretense and sentenced accordingly, which of the following will be true?**
    (a) He can still be tried by the High Court
    (b) He can only be tried by the high court upon leave of the Court of Appeal
    (c) He cannot be tried again by any court whatsoever
    (d) He cannot only be tried by the high court upon leave of the president of the court marshal

Thomas Agari was arrested fort been in possession of heroin by NDLEA officials. He was detained for four years without access to his lawyer. He was tried before the Chief Magistrate Court Lagos. At the trial his lawyer tried to apply for bail on his behalf. The bail was turned down. His lawyer intends to apply to the high court for his release.

Answer the following questions

51. **Assuming the counsel is to contest the jurisdiction of the court which court has the jurisdiction to try the offence?**
    (a) The state high court
    (b) The Federal high court
    (c) The Industrial court
    (d) The magistrate court

52. **His detention for four days without access to his lawyer and without being informed of the offence against his are in breach of the accused :**
    (a) Right to counsel of his choice only
    (b) Right to personal liberty only
    (c) Right to be informed of the case against him right to counsel
    (d) All of the above

53. The bail application made by the counsel to the accused is referred to as:
(a) Bail pending trial
(b) Bail pending investigation
(c) Police bail
(d) Bail pending appeal

54. When Edet, the accused person was called upon to enter his defence at the close of prosecution case, the court informed him of the options opened to him under S. 287 (1)(a) CPA, the court said the option are exercisable by him;
(a) Only if he is represented by counsel
(b) Only if he asked for them
(c) Only at the discretion of the court
(d) Whether he is represented by counsel or not

55. All but one of the following are compulsory requirement in a valid charge sheet.
(a) The state of origin of the accused person
(b) The place of commission of the offence charged
(c) The date of commission of the offence
(d) The name of the accused person

Nwogu Chuka who resides at no. 5 Todun Street Minna reported to the police that his house was broken into and that some of his property were stolen. He told the police that he suspected Ogunde Bello of the theft. A search warrant was issued and on the day the search warrant was executed the police searched the house and all the occupants including the wife of Bello. Bello his wife and two sons were subsequently taken to the police station and detained.

Answer the following questions.

56. To apply for police bail of Bello, his wife and two son, the Counsel could apply;
(a) Orally
(b) By motion on notice
(c) By summons
(d) By written application

57. A first information report is used to institute criminal matters------
(a) In a Magistrate Court in the north
(b) In a magistrate court in the south
(c) In a high court in the north
(d) In a high court in the south

58. An information for instituting criminal actions in the south contains:
(a) A preamble, statement of particulars, and particulars of offence
(b) A preamble, statement of offences and particulars of offence
(c) A preamble, count and statement of offence
(d) A preamble, statement of offence and ingredient of offence

59. The authority of the Customary Court to try criminal matters is drawn from
(a) Section 36(1) of the 1999 Constitution
(b) Section 36(3) of the 1999 Constitution
(c) Section 36(9) of the 1999 Constitution
(d) Section 36(12) of the 1999 Constitution

60. Which of these is untrue about warrant of arrest?
(a) It must be in writing
(b) It can be issued by a Superior Police Officer
(c) There must be a complaint on oath

(d) It must be dated and signed by the issuing authority

61. The Law regulating the jurisdiction, practice and procedure of Court Martial is
(a) Coroners Law
(b) Court Martial Act
(c) Children and Young Person's Law
(d) Armed Forces Act

62. The proper time to execute a search warrant under Section 111 of the CPA is between
(a) 8am – 5pm
(b) 5pm – 8am
(c) 5am – 8pm
(d) 8pm – 5am

63. The Principal sources of Criminal Procedure laws in Nigeria include the following except
(a) Criminal Procedure Law
(b) Administration of Criminal Justice Law
(c) Police Act
(d) Criminal Procedure Code Law

64. Under the Magistrate Court Law of Lagos 2009, the following grades of Magistrate Courts exist in Lagos;
(a) Seven
(b) Six
(c) Five
(d) None

65. The Police Officer authorized to issue a search warrant in certain circumstances must have attained the rank of
(a) Cadet Asst. Superintendent of Police
(b) Asst. Superintendent of Police
(c) Inspector
(d) Cadet Inspector

66. A Warrant of arrest cannot be lawfully executed in the following places except
(a) A Court in Session
(b) Parliamentary House without the authority of the Head of the House
(c) A Church or mosque
(d) None of the above

67. The appropriate procedure to compel the attendance of a person to answer to a misdemeanor in Court;
(a) Warrant
(b) Arrest
(c) Summons
(d) Writ

68. If any premises sought to be searched is actually occupied by a woman in purdah, the person making the search shall;
(a) Wait until she comes out of purdah
(b) Inform of her right to withdraw and give her the opportunity to withdraw
(c) Call a female officer to conduct the search
(d) Order the woman to go and hide

69. Where the aggregate or the sum total of the consecutive sentences imposed by a Magistrate Court exceeds its jurisdiction to punish under the MCL;
(a) The entire trial is a nullity
(b) The Magistrate will be sanctioned
(c) The trial will be overturned on appeal
(d) The sentence shall be reduced on appeal

70. The effect of an illegal arrest is that It;
(a) Nullifies the trial

(b) It is of no effect as regards the jurisdiction of the Court and will not affect the trial
(c) It is an irregularity that cannot be corrected
(d) It attaches to the jurisdiction of the Court

71. In the Magistrate Court in the North, there is a distinction between jurisdiction to try offences and jurisdiction to impose punishment.
(a) True
(b) False
(c) Partially
(d) None of the above.

72. As a general rule in Section 14 Evidence Act, illegally obtained evidence is
(a) Admissible
(b) Inadmissible
(c) Discretional
(d) None of the above

73. A belligerent way of obtaining information from a suspect is?
(a) Arrest
(b) Interview
(c) Summons
(d) Interrogation

74. The following is true about the Judges Rule except;
(a) It was formulated in England in 1912
(b) It is applied only in the Superior Courts
(c) It does not have a binding effect
(d) None of the above

75. Under the CPC, where a Magistrate Court convicts a person of more than one offence and imposes consecutive sentences;
(a) The sum total of the consecutive sentences must not exceed the limit of the Magistrate Court to impose penalty
(b) The sum total of the consecutive sentences must be twice the limit of the Magistrate Court to impose penalty
(c) The sum total of the consecutive sentences must not be more than twice the limit of the Magistrate Court to impose penalty
(d) All of the above

76. In the Evidence Act 2011, the definition of voluntary confession can be found in
(a) Section 27 (2)
(b) Section 28
(c) Section 29
(d) None of the above

77. Which of these Constitutional rights is not available at the Police Station
(a) Right to Bail
(b) Right to Counsel of One's Choice
(c) Right to dignity of human person
(d) Right to Fair Trial

78. Practice and Procedure in the Federal High Court Lagos is regulated by
(a) Administration of Criminal Justice Act
(b) Criminal Procedure Code
(c) Administration of Criminal Justice Law Lagos
(d) Criminal Procedure Law Lagos

79. The following is true about Identification Parade except
(a) The authority for its admissibility is Section 7 (c) Evidence Act 2011
(b) It is mandatory in all circumstances where the identity of a suspect is in issue

(c) It is necessary only when the identity of the offender is in doubt
(d) It must be take place in the Police Station

80. Criminal Proceedings cannot be commenced by
(a) The Judiciary
(b) The Attorney General
(c) Special prosecutors
(d) Private persons

81. The test to be applied in considering whether evidence is admissible is whether it is relevant to the matters in issue. If it is relevant, it is admissible. So the Court held in
(a) Abacha v The State
(b) Kuruma v Regina
(c) Uzodinma v COP
(d) Ibeziakor v COP

82. Which of these keeps the items seized from one suspect or different suspects in relation to one case
(a) Exhibit Room
(b) Exhibit Keeper
(c) Exhibit List
(d) Exhibit Diary

83. The Prosecutorial powers of the Police was reinforced by the Supreme Court in the case of
(a) Anyebe v The State
(b) Uzodinma v COP
(c) Ibeziakor v Police
(d) FRN v Osahon

84. Which of these is common to the CPA and the CPC as regards Magistrate Courts
(a) The Courts can both refer a case to a higher court for penalty if it is of the opinion that the sentence he has jurisdiction to impose cannot adequately punish the convicted person
(b) There is a clear distinction between the jurisdiction to try an offence and jurisdiction to impose punishment
(c) The Courts can impose consecutive sentences of twice the maximum limits
(d) None of the above

85. Which of the following exercises of powers is invalid
(a) Nolle Prosequi entered by the Attorney General in the trial of his personal friend.
(b) Proceedings commenced by a Pupil State Counsel two months after the Attorney General was removed from office.
(c) Power of discontinuance entered orally by the Solicitor General of the State in person
(d) Proceedings taken over by the Attorney General from the EFCC in a matter, the EFCC clearly had powers to commence.

86. The Prosecutorial powers of the Attorney General are provided under?
(a) Sections 174 and 188 1999 CFRN
(b) Sections 83 and 174 1999 CFRN
(c) Sections 174 and 211 1999 CFRN
(d) Sections 150 and 195 1999 CFRN

87. In the North, Area Courts replaced the former
(a) Sharia Courts
(b) District Courts
(c) Native Courts
(d) Customary Courts

88. The Attorney General of the State can only prosecute the following offences

with the fiat of the Attorney General of the Federation except

(a) Treason and Treasonable Felonies
(b) Armed Robbery under the Firearms Act
(c) All Federal Offences
(d) None of the above

89. Identification parade is not necessary in the following cases except where

(a) the offender is apprehended at the scene of the crime or pursued immediately thereafter and apprehended
(b) the defence alibi has been put forward by the suspect but dispelled by the prosecution
(c) the accused person, by his own cogent, confessional statement identified himself as the culprit
(d) None of the above

90. Which of these phrases best describes a nolle prosequi

(a) An end to criminal proceedings
(b) An unconditional termination and acquittal of an accused person
(c) A stay of execution of a criminal sentence
(d) A suspension of criminal proceedings resulting in the mere discharge of an accused person

91. Juvenile Courts' jurisdiction over young person does not extend to the following except?

(a) Where the child or young person is charged with an offence, which is punishable by the death penalty.
(b) Where the young person is jointly charged with an adult
(c) Where the young person elects to be tried by a regular court
(d) None of the above

92. Courts of Special Criminal Jurisdiction <u>does not</u> include

(a) Federal High Court
(b) Juvenile Court
(c) Coroners Court
(d) Customary Court

93. High Courts in the South does not have jurisdiction over

(a) All indictable offences contained in an information
(b) All non-indictable offences
(c) Any non-indictable offence brought by complaints
(d) Appeals from decisions of Area Courts

94. The member of a Court Martial who must be a qualified legal practitioner is the

(a) President
(b) Liaison Officer
(c) Judge Advocate
(d) Waiting member

95. The membership of a Special Court Martial includes the following except

(a) The President
(b) Not less than 4 members
(c) A Waiting Member
(d) A Judge Advocate

96. Which of these <u>is not</u> one of the elements of the defence of alibi

(a) It can be raised at any time of the proceedings before judgment
(b) It raises an evidential burden on the defence to supply particulars of his whereabouts
(c) The general burden of proof remains on the prosecution
(d) None of the above

97. Which of these Courts does not have appellate criminal jurisdiction

(a) High Court
(b) Upper Area Court
(c) Magistrate Court
(d) None of the above

98. Which of these Courts does not have original criminal jurisdiction
(a) High Court
(b) Upper Area Court
(c) Court of Appeal
(d) None of the above

99. One of the following is incorrect as regards the limitation period to institute criminal proceedings?
(a) Sedition - six months
(b) Treason – two years
(c) Having carnal knowledge of a girl under 16– three months
(d) Custom Offences–seven years

100. The Attorney General cannot enter a nolle prosequi in the following Courts except
(a) Coroners Court
(b) Court Martial
(c) Juvenile Court
(d) All of the above

101. Under the CPL, a search warrant may not be executed on a?
(a) Sunday
(b) Saturday
(c) Public Holiday
(d) None of the above

102. Offences are instituted by Information before a High Court in the case of
(a) Only Indictable offences
(b) Indictable offences or a Combination of Indictable and Non Indictable Offences
(c) Only Non-Indictable Offences
(d) None of the above

103. The condition precedent for filing Information in the High Court in the south is?
(a) Leave of court to prefer a Charge Sheet
(b) Consent of the Judge to file information
(c) Pleadings
(d) Plea Bargaining

104. The procedure for bringing an Information under the CPA is that it shall be
(a) In writing
(b) On oath
(c) By affidavit
(d) Silent

105. Which of these is <u>not required</u> to accompany an application for consent?
(a) A copy of the proposed charge or information
(b) An affidavit by the applicant if brought by the AG
(c) Unedited statement of the accused
(d) Previous applications where applicable

106. Which of the following statement is correct?
(a) Application for Consent is made to the Judge
(b) Application for consent is made to the Court
(c) Application for Consent is made to the Registrar of Court
(d) Application for Consent is made to the Chief Judge

107. Application for consent is no longer required in?
(a) Kano State
(b) Abia State

(c) Abuja FCT
(d) Lagos State

108. The condition for the successful plea of no case submission includes the following except:
(a) The prosecution is related to the victim
(b) The prosecution failed to prove the elements of the offence
(c) The prosecution failed to link the defendant to the crime
(d) The prosecution's evidence is insufficient

109. If a no case submission is wrongly overruled and the accused participates in the proceedings and supplies evidence incriminating him and is thereby convicted
(a) The conviction is valid
(b) The conviction will be set aside
(c) The no case submission ruling will be reversed on appeal
(d) The Judge will be queried

110. The following are <u>untrue</u> about refreshing memory under the Evidence Act
(a) Time is not of the essence
(b) The time in question relates to the time between when the document was prepared and when it was sought to be used to refresh the memory of the witness
(c) The document may have been prepared by another person but was read by the witness
(d) A witness cannot testify to the facts in the document if he has no specific recollection of the facts

111. The option available to the Court where the complainant is absent in Court does not include?
(a) To dismiss the charge
(b) To discharge the accused person
(c) To acquit the accused person
(d) To adjourn the hearing to some future date

112. Where a no case submission is overruled, the best option available to an accused is?
(a) Rest his case on that of the prosecution
(b) Enter into his defence
(c) Keep silent
(d) All of the above

113. Which of these is not a technique on cross examination
(a) Probing
(b) Direct
(c) Confrontational
(d) Insinuation

114. The <u>first step</u> for the Court to take after a plea of not guilty by reason of insanity is to determine whether?
(a) The accused was insane at the time of committing the offence
(b) The accused was sane at the time of committing the offence
(c) The accused did commit the offence
(d) The accused was insane at the time of the trial

115. The provision of Plea bargaining can be found in the
(a) EFCC Act
(b) ACJL Lagos
(c) All of the above
(d) None of the above

116. The procedure for the conduct of a valid arraignment does not include
(a) The accused must be placed before the court unfettered
(b) The charge is read and explained to the accused in a language he understands

(c) The accused must plead instantly to the charge
(d) The plea of the accused is recorded instantly

117. The best process to apply for bail of an accused pending trial is by
(a) Motion on notice
(b) Motion ex parte
(c) Originating Motion
(d) Summons

118. In Youngman v COP the conviction of the accused person was set aside because

(a) The charge was defective
(b) A fresh plea was not taken after amendment of the charge
(c) The right to fair hearing was breached
(d) The accused had already served the punishment while awaiting trial

119. Bail can be applied for simply in writing
(a) Before the Magistrate Court
(b) Before the High Court
(c) Before the Court of Appeal
(d) At the Police Station

120. Which of these is the accurate reflection of the decision in Adunfe v IGP where the trial court conducted a visit to the locus in quo in the absence of the accused persons?
(a) It is an infraction of the constitutional right of the accused persons to conduct a trial in their absence
(b) It is not mandatory for the accused persons to be present at their trial
(c) Since there was no miscarriage of justice, the absence of the accused persons at the locus was an irregularity that did not vitiate the proceedings
(d) None of the above

121. An accused person is presumed innocent until proven guilty; That is the gist of
(a) Section 36(1) 1999 CFRN
(b) Section 36(4) 1999 CFRN
(c) Section 36(5) 1999 CFRN
(d) Section 36(9) 1999 CFRN

122. The effect of upholding a no case submission is
(a) Nullifies the trial
(b) A mere discharge
(c) Discharge and acquittal
(d) Acquittal without discharge

123. Which of these case relates to grounds for grant of bail
(a) Anyebe v The State
(b) Abacha v Fawehinmi
(c) Ibeziakor v Police
(d) Dantata v State

124. A shop attendant was accused of stealing goods worth N250, 000 from a store on seventeen occasions over a period of three months and was charged in one count;
(a) The charge is bad for misjoinder of offences
(b) The charge is bad for duplicity
(c) The charge is not bad as it relates to general deficiency of money (
(d) It is not certain that the accused even stole the goods

125. The right of an accused person not to be compelled to give evidence is found in
(a) Section 36 (9) 1999 CFRN
(b) Section 36 (10) 1999 CFRN
(c) Section 36 (11) 1999 CFRN
(d) Section 36 (12) 1999 CFRN

126. In the Magistrate Court in the North, the charge does not contain
(a) Introductory part
(b) Direction part
(c) Particulars of offence
(d) Date of commission of the offence

127. Where an accused person was given the opportunity to present his case and he failed to avail himself, he cannot be heard complaining of breach fair hearing. So the Court held in
(a) COP v Adamu
(b) R v Agie
(c) NBA v Akintokun
(d) Igabele v State

128. The power of a Court to call or recall witnesses suo motu for the just determination of a case is referred to as
(a) Ex improviso rule
(b) Visit to locus in quo
(c) Subpoena ad testificandum
(d) None of the above

129. A Judge is enjoined to be brief when
(a) Upholding a no case submission
(b) Overruling a no case submission
(c) Fettering his discretion
(d) None of the above

130. A person charged with the commission of an offence which is defined by law but for which no offence is prescribed, and who is convicted has the option of
(a) Appealing against the conviction but not the penalty
(b) Appealing against the penalty but not the conviction
(c) Challenging the conviction on the ground of infringing the right to be tried only for an offence known to law with a prescribed punishment
(d) All of the above

131. In the Evidence Act 2011, it is expressly provided that the Court is under obligation to refuse the following questions in cross examination except questions that are?
(a) Indecent or scandalous
(b) Intended to annoy
(c) Intended to insult
(d) Needlessly offensive in form

132. Which of these is not an accurate reflection of the position of the law
(a) The Court can suo motu discharge an accused person without an application for no case to answer
(b) The Prosecution can in some instances be allowed to call witnesses even after the close of the case of the Defence
(c) At the close of the prosecution's case, the only option open to the defendant is to enter into his defence
(d) None of the above

133. The rule that the length of a ruling on a no case submission alone does not invalidate the ruling was laid down in
(a) Ekanem v R
(b) Ibeziakor v COP
(c) Emedo v State
(d) Atano v AG Bendel State

134. The following post amendment procedure may not be waived except?
(a) The right to call or recall witnesses
(b) Reading the new charge to the accused and taking a fresh plea
(c) Endorsement of amendment note on the charge
(d) None of the above

135. A tabular or diagrammatic illustration of the practical approach to employed in the prosecution of a criminal trial is
(a) Theory of the case
(b) Evidence of the prosecution
(c) Trial advocacy
(d) Trial plan

136. The case of COP v Olaopa relates to
(a) Ex improviso rule
(b) No case submission
(c) Meaning of an accomplice
(d) Visit to locus in quo

137. Special circumstances must be shown in an application for bail?
(a) At the Police Station
(b) In capital offences at the Magistrate Court
(c) Pending trial at the High Court
(d) Bail Pending appeal

138. A charge containing the offence of demanding and receiving stolen property is
(a) Bad for duplicity
(b) Bad for ambiguity
(c) Bad for misjoinder of offenders
(d) Bad for misjoinder of offences

139. When the prosecution has proved an essential ingredient of the offence charged
(a) A no case submission is upheld
(b) The accused is convicted
(c) The accused is called upon to make some explanation
(d) The accused is discharged

140. The process used to compel the presence of witnesses before Magistrate Courts is
(a) Subpoena ad testificandum
(b) Subpoena duces tecum
(c) Witness summons
(d) All of the above

141. When in the course of an arraignment, an accused refuses to plead to the charge read or keeps mute
(a) The Court may commit him for contempt
(b) The Court must enter a plea of not guilty for him
(c) The Court can go ahead to convict him
(d) The Court may investigate the cause of his refusal or muteness

142. The case of Ajayi v Zaria Native Authority relates to the question of
(a) Right to counsel of one's choice
(b) Right to presumption of innocence
(c) Competence of interpreter
(d) Right to be tried for an offence known to law

143. A charge that omits to state the section of the law contravened is
(a) Bad for duplicity
(b) Bad for ambiguity
(c) Bad for misjoinder of offences
(d) Bad for misjoinder of offences

144. Where an accused person pleads guilty to a charge and then states that the offence was committed out of mistake, the proper plea to record
(a) Guilty
(b) Not guilty
(c) Guilty by reason of mistake
(d) Not guilty by reason of mistake

145. Where a Court fails to accede to the request of the Defence for adjournment. It may amount to a breach of the constitutional

(a) Right to Counsel
(b) Right to adequate time and facilities
(c) Right of adjournment
(d) Right to fair hearing in public

146. The right to counsel is constitutional right provided for under;
(a) Section 36(6)(a) 1999 CFRN
(b) Section 36 (6)(b) 1999 CFRN
(c) Section 36 (6)(c) 1999 CFRN
(d) Section 36 (6)(d) 1999 CFRN

You witnessed criminal proceedings during your court externship programme. You observed a lot of things. Answer the following questions:

147. From your observations, in what order were the defendants arraigned?
(a) The defendant was placed in the dock fettered, the charge was read to him and he was asked to plead
(b) The defendant was placed on the dock unfettered; the charge was read and explained to him and he was asked to plead
(c) The charge was read to the accused and he was asked to plead
(d) All of the above

148. You also observed that during the moving of the bail application, the defendant's counsel concluded by saying:
(a) My Lord we urge this Honourable court to grant our application as prayed
(b) My Lord is the constitutional right of the defendant
(c) My Lord with all due respect and humility, kindly grant our request as prayed
(d) Any of the above

149. Before each witness testified, the Judge would ask the Registrar to:
(a) Warn the witness sternly not to mislead the court
(b) Inform the witness of all his fundamental right
(c) Put the witness on oath or affirmation
(d) All of the above

150. You also observed that during the examination of in chief of the first prosecution witness (PW1), the prosecution counsel adopted more of:
(a) Open ended question
(b) Closed ended question
(c) Leading questions
(d) All of the above

151. After the cross examination of PW1 by the defence counsel, the prosecution sought to re-examine the witness but the defence counsel objected to it on the ground that:
(a) There was no ambiguity raised during cross examination
(b) The prosecution covered every ground during examination in chief
(c) There was no improviso rule
(d) The witness was tired

Mary and Aisha were arraigned before the high court of the FCT Bwari on one count information of conspiracy to commit culpable homicide punishable with death of their former friend, Esther.

Mary pleaded "guilty with reason" while Aisha pleaded "guilty". At the conclusion of trial, both defendants were convicted.

Using the above scenario answer questions 152-155

152. Assuming you are the defence counsel, what possible objection will you raise over the above charge?
(a) That the charge is bad for duplicity
(b) That the consent of the judge was not obtained
(c) That charge is bad for misjoinder of offences

(d) That charge is bad for misjoinder of offenders

153. In respect of the plea of Mary, the trial Judge will:

(a) Record a plea of guilty for her
(b) Investigate the reasons for her plea
(c) Record a plea of not guilty
(d) None of the above

154. When Aisha pleaded guilty to the offence, the trial court should:

(a) Record her plea in the exact words used by her
(b) Call on the prosecution to narrate the facts of the case and if she admits it, then proceed convict her
(c) Record a plea of not guilty and proceed with the trial
(d) A & B above

155. The appropriate sentence the court will impose upon the defendants upon being convicted is:

(a) Death by lethal injection
(b) Life imprisonment
(c) Death by hanging or poisoning
(d) Terms of imprisonment

156. Every person is a competent witness, including a child below the age of 13 years, however, for the testimony of the child to be admissible:

(a) The age must be established by an expert witness preferably a medical doctor
(b) The court shall conduct a preliminary inquiry to ascertain whether the child understand the questions put to him and the effect of speaking the truth and can give rational answers to the questions
(c) The consent of the parents or guardian must be obtained by the court
(d) The prosecution must inform the court of the fact that the person is a child and cannot be sworn on oath

At the conclusion of the trial of Banjo Okafor for stealing and rape of one Miss Temi on one count information before the High Court of Oyo State, the defendant was discharged and acquitted of the alleged offence. Miss Temi being furious decided to appeal on the ground that; (1) the interpreter used at the trial was not qualified and (2) that the Judge was bias against her.

157. Which of the following is the basic qualification of an interpreter in court;

(a) He must be competent and have good knowledge of the language he is to interpret
(b) He must be knowledgeable in law
(c) He must come from the tribe of the defendant
(d) He must be bold in the course of the interpretation

158. Miss Temi's attempt to appeal against the judgment will fail because:

(a) She is just a party affected
(b) She is not the defendant
(c) She is not the prosecution
(d) All of the above

159. The one count information above is bad for breaching the rule against:

(a) Ambiguity
(b) Misjoinder of offences
(c) Misjoinder of offenders
(d) Duplicity of offences

160. One of the following document will not accompany an application for consent to file information in the South

(a) Verifying affidavit

(b) Unedited statement of the defendant
(c) A copy of the proposed information
(d) The proof of evidence and list of exhibits

SUCCESS ASSURED LINKS

BAR FINAL MULTIPLE CHOICE QUESTION COMPILATION

MCQ ON CORPORATE LAW PRACTICE

NOTE: This compilation is intended to serve only as a guide to MCQs on the Bar Final Examination and is by no means connected to any future examination of the Nigerian Law School. Students are therefore advised to avoid wrongful or unlawful application of the material or information contained herein.

At the 6th Annual General Meeting of Enoma Nigeria Plc. Mrs. Grace Longe was absent because, she was not served with a notice of the AGM by the Secretary, who reasoned that she will not be able to attend the AGM as she will be going for her swearing-in-ceremony following her appointment as a Minister. Mrs. Longe later transferred all her shares to Chief and Mrs. Pepple in equal proportion. The company neither held a statutory meeting nor filed statutory report with CAC. Last year, all the directors and shareholder of the company died in the Bono airline plane crash. Before their death, the company was owed one Mr. Okonkwo the sum of ₦4, 000. 00. It was also executing a contract for Cutina Nigeria Limited.

Answer the following question:

1. **The following are entitled to receive notice of the AGM of the company except;**
   (a) every director of the company
   (b) every auditor for the time being of the company
   (c) every member of the company
   (d) every legal adviser for the time being of the company

2. **Notice of the general meeting of a company must:**
   (a) comply with the prescribed form of preparing the notice under section 218 CAMA
   (b) specify the place, date and time of the meeting
   (c) specify the general nature of the business to be transacted
   (d) set out the terms of the special resolution to be considered at the meeting if any

3. **The following statement are correct about Edoma Nigeria Plc, except:**
   (a) The personal representatives of the shareholders of the company can apply to court and hold the company's meeting where new members and directors will be appointed
   (b) A creditor of the company can apply to the court to convene a meeting of

the company where new members and directors will be appointed
(c) The company must merge with another company since its only shareholders and directors are dead
(d) The contract between the company and Cufina Nigeria limited is still valid subsisting

4. **The annual return of Enoma (Nig) Plc must be filed within _____ days of holding the AGM**
(a) 40 days
(b) 42 days
(c) 60 days
(d) 90 days

5. **The Statutory Meeting of Edoma (Nig) Plc, should have been held within**
(a) 150 days of incorporation
(b) 1 Month of incorporation
(c) 6 months of incorporation
(d) 3 months of incorporation

At the hearing of the suit institute by the defunct New Star Bank plc against the central Bank of Nigeria and the Asset Management Corporation of Nigeria (AMCON) at the Federal High Court no. 2, Lagos, learned counsel for the plaintiff submitted that the liquidation of the bank is an unfair act. '' A bank is a company first of all. If it has not done well in Banking, it can only loose its license not its life. It can change its name, alter its Objects Clause, pay off deposition''

6. **A process by which a company in distress can rebrand and bounce back to business with or without losing its identity is called:**
(a) Take over
(b) Merger
(c) Arrangement and compromise
(d) Arrangement on sale

7. **One of these persons cannot challenge alteration of object clause of a company:**
(a) Holders of 15% of issued shares of the company
(b) Secured debenture holders
(c) A member who lost the vote
(d) None of the above

8. **One of these method is not used in commencing action in corporate proceedings at the Federal High Court:**
(a) Originating summons
(b) Writ of summons
(c) Originating motion
(d) None of the above

9. **A compulsory change of company name can be effected by the Corporate Affairs Commission if petition is sent within;**
(a) 6 weeks of the incorporation of the company
(b) 6 months of the incorporation of the company
(c) 3 months of discovery of the infringement
(d) 3 months of incorporation of the company

10. **One of these is not a ground for compulsory winding up of a company in Nigeria.**
(a) Default in delivery of statutory report to CAC
(b) Inability to pay its debt
(c) Directors did not comply with directives of regulatory body
(d) Just and equitable grounds

11. **Interested members of the public are allowed to freely join one of these organizations:**
    (a) Partnership
    (b) Business name
    (c) Companies
    (d) Incorporated trustees
12. **One of these is the most appropriate forum for an action for recovery of unaccounted proceeds of share investment against a stock brokerage company where a claimant is also a shareholder:**
    (a) Federal High Court
    (b) State High Court
    (c) Investment and Securities Tribunal
    (d) National Industrial Court

13. **One of these methods can be adopted to compel holdings of an Annual General Meeting:**
    (a) Requisition by the shareholder
    (b) Application to the Corporate Affairs Commission
    (c) Requisition by Directors
    (d) Petition for winding-up
14. **A life director is not affected by which of the following rules: (See S.258 & 262 CAMA)**
    (a) Removal from office
    (b) Vacation of office
    (c) Retirement by rotation
    (d) All of the above

Bobo Flour Mill Plc is an indigenous company which engages in manufacturing of flours and confectionaries with authorized share capital and asset base worth ₦400million Naira. As a result of low sale and stiff competition, the company has resolved at its board meeting held on 1st August, 2013 to combine its business with Manna Superbag Plc, a company which engages in production and manufacturing of package bags with authorized share capital and asset base worth ₦200 million.

Answer the following question.

15. **Which of the merger options below will be suitable to describe the business combination of the two companies?**
    (a) Vertical merger
    (b) Horizontal merger
    (c) Conglomerate merger
    (d) Consolidation merger
16. **Which of the following regulatory bodies will supervise and regulate the business combination of the two parties?**
    (a) Corporate Affairs Commission
    (b) Securities and Exchange Commission
    (c) Federal High Court
    (d) All of the above
17. **The appropriate classification of the business with respect to the financial threshold of the equities of the 2 companies can best be described as:**
    (a) Small merger
    (b) Larger merger
    (c) Intermediate merger
    (d) Big merger
18. **As part of the documentation to be submitted to Securities and Exchange Commission for the registration of the business combination of the 2 companies, the following item will be submitted except:**

(a) Scheme of merger
(b) Special resolution of two companies approving the merger
(c) CTC of court order sanctioning the merger.
(d) Notice of meeting (Extra Ordinary general meeting) of the two companies for the consideration,

19. Assuming you have been appointed as one of the solicitors for the consummation of the merger process of the two companies, the time limit to file certified true copy of the order sanctioning the scheme of merger with Corporate Affairs Commission is:
(a) 7 days
(b) 14 days
(c) 15 days
(d) 21 days

20. Assuming Bobo Flour Mills (Nig.) Plc has allotted shares to members of the public who applied, notice of allotment must be sent to the allotees within _____ days of the allotment:
(a) 42
(b) 14
(c) 30
(d) 40

Confluence Cement Plc and Nagode Cement Plc. are rival companies in the lucrative cement business sector of the Nigerian economy. A bitter boardroom crisis among the directors has impacted negatively on the business of Nagode Cement Ltd. The takeover bid made by Confluence Cement Plc was rejected by the highly polarized board of Nagode (Nig.) Ltd

Answer the following question:

21. Which of the following restructuring options is not legally permissible between the two companies?
(a) Merger
(b) Takeover
(c) Management buy-out
(d) None of the above

22. Which of the following options is available to Confluence Cement Plc in respect of the rejected Takeover?
(a) Explore the possibility of a violent takeover
(b) Apply to the court for an order of mandamus
(c) Apply to CAC to investigate Nagode Plc
(d) All of the above

23. By the provision of the Investment and Securities Act, 2007, the takeover bid of Confluence Cement must target at least:
(a) 25% of the total share of the offeree
(b) 30% of the total share of the offeree
(c) 40% of the total share of the offeree
(d) 50% of the total share of the offeree

24. Assuming the net worth of the two companies above is N5billion and they have agreed to merge, which of the following will be the appropriate category for the Merger?
(a) Small
(b) Intermediate
(c) Large
(d) Conglomerate

25. Assuming the boardroom crisis of Nagode Cement Plc. has grounded its operation in the last two years, which of the following options is most suitable if Confluence Cement Plc. is still interested in acquiring Nagode

Cement Plc. as a Moribund Company?

(a) Arrangement or compromise
(b) Arrangement on sale
(c) Purchase and assumption
(d) Merger

Read the following and answer questions 26-30

Mr. smart Uche was called to the bar on July 20, 2011. At the thanksgiving reception, the Chairman of the occasion, an uncle of the 'new wig', chief uchendu, instructed him to register two business outfits with the names: Uchendu Bros and Ebano Enterprises (Nig.) Ltd at the Corporate Affairs Commission.

26. After enrolment at the Supreme Court, Smart Uche Esq. is expected to be accredited so as to be able to:

(a) Register the business name and the limited liability company
(b) Register the business name
(c) Register the limited liability company
(d) Do any official transaction with CAC

27. Which of the following documents is not required for the accreditation of Smart Uche Esq?

(a) 2 recent passport photographs
(b) Evidence of payment of practicing fee for the year of application
(c) Photocopy of LL.B degree certificate
(d) Photocopy of call to Bar Certificate

28. Which of the following document will be required by CAC for the registration of Uchendu Bros, but is not needed to register Ebano Enterprises (Nig.) Ltd?

(a) Passport photographs
(b) Form for availability and reservation of name
(c) Evidence of payment of filing fee
(d) None of the above

29. Which of the following is true of the two business outfit registration?

(a) They are both juristic personalities
(b) They are both judicial personalities
(c) Uchendu Bros becomes a judicial personality while Ebano Enterprise (Nig.) Ltd becomes a juristic personality
(d) None of the above

30. Which of the following documents is not required by the Companies and Allied Matters Act for the registration of Ebano Enterprises (Nig.) Ltd at the Corporate Affairs Commission?

(a) Memorandum and articles of association duly stamped as deed
(b) The statement of authorized share capital portion of Form CAC 2
(c) The return of allotment portion of Form CAC 2
(d) CAC Form 1 for availability and reservation of name

Otunba Yemi Smith responded to the initial public offer of shares of green bank Plc. and applied for 1,000ordinary shares at N100 per share and paid in full. Green Bank after about three years sent him a share certificate stating that he has been allotted 600 units of shares. When the shares of the company crashed at the capital market, Otunba was issued with another 400 units of shares as special placement. He was confused.

31. **One of these is the legal obligation of green bank when it could not allot all the shares applied for by Otunba Yemi before the special placement.**
    (a) Write a Letter of Regret to him
    (b) Write to inform him of allotment and return of his balance
    (c) Write to him a letter of allotment and regret on the un-allotted shares
    (d) Write to him a letter of allotment and regret with an enclosed cheque on the un-allotted shares.
32. **Green bank is expected to deliver the share certificate to Otunba Yemi:**
    (a) Within two months before allotment
    (b) Within twelve months before allotment
    (c) Within two months after allotment
    (d) No prescribed period
33. **One of the following is a method of offering share in the Nigerian Capital market except?**
    (a) Direct offer
    (b) Offer for sale
    (c) Placement
    (d) Purchase and Assumption

In a bid to develop into a megacity, the Lagos state government is exploring the options of raising ₦50billion by issuing bond to the investing public.

Answer question 34-36

34. **One of these bodies cannot issue government bond under the Investment and Securities Act:**
    (a) Federal government agency
    (b) State government and local government
    (c) State government agencies
    (d) Public companies where government has shares
35. **The maximum redemption date for issued bonds is:**
    (a) 20 years from the date of issue of the bond
    (b) 25 years from the date of issue of the bond
    (c) 50 years from the date of issue of the bond
    (d) None of the above
36. **The essential document which guarantees the repayment of bonds at due date is:**
    (a) Irrevocable letter of authority issue to the Accountant-General of the State
    (b) Irrevocable letter of authority issue to the Auditor-General of the Federation
    (c) Irrevocable letter or its waiver issued to the Accountant General of the Federation
    (d) None of the above

By the joint provision of sections 274, 275 and 276 of the Investment and Securities Act (ISA) 2007, there is established body to be known as the Investments and Securities Tribunal (The Tribunal) to exercise the jurisdiction, powers and authority conferred on it by or under this Act. The tribunal shall consist of ten (10) to be appointed by the minister headed by a chairman. For the purpose of exercising any jurisdiction conferred by this Act, the Tribunal shall be duly constituted if it consists of not less than three (3) members of the Tribunal.

Answer questions 37-40

37. The following is correct about the Investment and Securities Tribunal except:

(a) The tribunal may make rule regulating its procedure
(b) The tribunal shall have the power to review its decision
(c) The proceedings of the tribunal may be held in camera
(d) The tribunal has both civil and criminal jurisdiction

38. An award or judgment of the tribunal shall be enforced as if:

(a) It was a judgment of the Federal High Court upon registration of a copy of such award or judgment with the chief registrar of the Federal High Court
(b) It was a judgment of the High court upon registration of a copy of such award or judgment with the Chief Registrar of the High Court
(c) It was a judgment of the court of appeal upon registration of a copy of such award or judgment with the Registrar of the Court of Appeal
(d) It was a judgment of the supreme court upon registration of a copy of such award or judgment with the Chief Registrar of the Supreme Court

39. The investment and Securities tribunal is duly constituted if it consists of:

(a) 5 member
(b) 10 members
(c) 3 members
(d) 2 members

40. In the event of the decision/judgment delivered by Investment & Securities tribunal challenged, the aggrieved party shall appeal to:

(a) Federal High court
(b) Court of Appeal
(c) National Industrial court
(d) The Supreme Court of Appeal

At the general meeting of Adamco Nig Ltd held on the 30th day of May, 2010 the members of the company passed a special resolution for voluntary winding up of the company. It also resolved that a liquidator be appointed to sell off the whole undertakings to another company for a consideration for fully paid up shares in the company. The company‘s directors also made a statutory declaration of solvency.

41. Which of the following corporate instruction is best described by the above scenario:

(a) Members voluntary winding up
(b) Creditors voluntary winding up
(c) Arrangement on sale
(d) Merger

42. The following is true about statutory declaration of solvency except:

(a) it is made within 5 weeks of passing the resolution for voluntary winding up of the company
(b) it is made by all or majority of the directors
(c) it embodies a statement of the company’s assets and liabilities
(d) the directors of the company are of the opinion that the company will be able to pay its debts in full within 18

months from the commencement of the winding up

43. **In winding up of a company compulsorily by the court, the company is deemed wound up:**
    (a) when the court makes a dissolution order on the company on the application of the liquidator
    (b) when the court makes a winding up order
    (c) when a liquidator is appointed
    (d) three months after registration by CAC of the accounts and returns of the final meeting of the company from the liquidator

Akinpawpaw (Nig) Plc is a company licensed by Nigerian Government for the production of telecommunications equipment and recharge cards in January, 2010. The company at its last annual general meeting announced to its Board of Directors and the members of the company that it had met the listing requirements on the Nigerian Stock Exchange.

Answer the following questions:

44. **In the event of any dispute between Akinpawpaw (Nig.) Plc and other capital market operators the adjudicatory body will be one of the following:**
    (a) The Federal High Court
    (b) The Investments and Securities Tribunal
    (c) State High Court
    (d) High Court of the Federal Capital Territory

45. **During the Annual General Meeting of Akinpawpaw Nigeria Plc, one of the following may be considered as a special business:**
    (a) Appointment of members of the audit committee
    (b) Appointment and fixing of the remuneration of auditors
    (c) Declaration of dividends
    (d) None of the above

Sequel to the amnesty offer by the Federal Government of Nigeria to Niger Delta militant, a group of youth in Niger Delta has formed an organization to be known as "Niger Delta for Peace Initiative" to champion peaceful coexistence of the region.

Answer the following questions:

46. **Which of the following options is best suited for the registration of such organization:**
    (a) Company limited by guarantee
    (b) Incorporated trustees
    (c) Co-operative society
    (d) Unlimited company

47. **Which of the following is not a requirement of registration of such organization with the corporate affairs commission in the option chosen?**
    (a) Consent of the Attorney General of the Federation
    (b) Constitution of the organization
    (c) Adoption of special clause
    (d) Evidence of advertisement in the National dailies

48. Assuming the organization was successfully registered with the corporate affairs commission, the Companies and Allied Matters Act provides that the organization should be known as:

(a) Registered trustees for Niger Delta for Peace Initiative
(b) Niger delta for peace
(c) Incorporated trustees for Niger Delta for Peace Initiative
(d) A or C above

49. One of the following is not true about the proposed association?

(a) It can carry on its object without registration
(b) When incorporated, the association acquires legal personality
(c) Upon registration, the trustees of the association acquires legal personality and can sue and be sued
(d) The constitution must contain adoption of the special clause

50. The minimum number of trustees that may apply for registration under Part C of CAMA 2004 is:

(a) 4
(b) 2
(c) 1
(d) 5

Alhaja Princess Simblat Kolawole (46years) and her sister Princess Anota Dosumu (42years) have agreed to register their business Princess Lace Boutique at the corporate affairs commission. They commenced the business at Idumota Market on 1st July, 2010. Their application was completed on their behalf by Mr Adewale Ayuba because they are not educated.

51. The business should be registered on or before:

(a) 29th July, 2010
(b) 28th July, 2010
(c) 8th July, 2010
(d) 30th September, 2010

52. The application form must contain the following?

(a) Signature of a magistrate, legal practitioner or Assistant superintendent of police
(b) The name and address of Mr Adewale Ayuba
(c) The address of all the shops owned by the proprietor
(d) Details of the partners and the nature of the business.

53. One of these is incorrect in respect of certificate of registration of the business?

(a) It raises a presumption of the existence of a partnership between the proprietors
(b) It does not give priority to the name against subsequent registered companies or businesses
(c) It does not give legal personality to the business
(d) It informs the public of the true identity of the proprietors

Johnny Just Come Ltd has made a statutory declaration dated 1st July, 2010, that they have made a full inquiry into the affairs of the company and are of the opinion that the company will be able to pay its debt on or before 31st, December, 2010.

54. The above declaration is necessary where:

(a) It is proposed to wind up compulsorily
(b) As a condition precedent for conversion to a public company
(c) It is proposed to wind up voluntarily
(d) It is a creditors' winding up

55. The above declaration made by the directors of a company is preceded by?

(a) An ordinary resolution at a general meeting
(b) A special resolution at a general meeting
(c) An extra ordinary resolution at an extraordinary meeting
(d) An extraordinary resolution as an annual general meeting

56. Only one of the following persons is competent to be appointed as a liquidator of the company.

(a) Grant Corporate Packaging Limited
(b) Chief Nuru El-Rufai- a director of the company
(c) Dapo Ribadu an undergraduate of university of Abuja born 1st January , 1994
(d) Chief John Okeke of John Okeke & Co-External solicitors to the Company

One of the following is incorrect.

57. The company can only be dissolved after:

(a) Preparation of final account by liquidator
(b) The general meeting has received the final account
(c) The removal of the liquidator.
(d) Returns have been forwarded to the commission.

58. A participant in collective investment scheme is best described as:

(a) A shareholder
(b) A stakeholder
(c) Debenture holder
(d) Unit holder

59. One of these debentures is most appropriate for a debenture holder who wishes to be a shareholder of the company.

(a) Bearer Debenture
(b) Perpetual Debenture
(c) Convertible Debenture
(d) Registered Debenture

60. In which of these companies is there no right to automatic right to proxy attendance at General Meetings?

(a) Private limited liability companies
(b) Public limited liability company
(c) Company limited by guarantee
(d) Unlimited Company

61. Which of the following suffers no disability in joining in the formation of Companies?

(a) A person less than 18 years where there is one other member of 18 years and above
(b) A person declared by a Court to be of unsound mind where there are other members of full age and capacity

(c) An un-discharged bankrupt except where there are other members of full age
(d) None of the above

62. Non business organizations that can be registered in Nigeria does not include:
(a) Sole Trader
(b) Company Limited by Guarantee
(c) Incorporated Trustees
(d) None of the above

63. Where the Articles of Association is silent, the quorum for a Company general meeting where the members are 300 is:
(a) 100
(b) 50
(c) 30
(d) 25

64. The form for application for registration of a company is:
(a) Form CAC 1.1
(b) Form CAC 2
(c) Form CAC 3
(d) Form CAC 4

65. By Section 251 CFRN 1999 original jurisdiction over civil causes and matters arising from the operation of the CAMA is vested in the
(a) State High Court
(b) High Court of the FCT
(c) Investments and Securities Tribunal
(d) Federal High Court

66. The major legislation that regulates incentives and reliefs to foreign businesses is:
(a) Personal Income Tax Act
(b) Companies Income Tax Act
(c) Industrial Development Act
(d) Industrial Inspectorate Act

67. Which of the following points on notice of meeting is incorrect?
(a) Every person entitled to be given notice must be served otherwise the meeting is invalid, notwithstanding that such non service was accidental
(b) All companies in addition to serving notice of a general meeting personally must advertise a notice of such meeting in at least two national dailies
(c) A misinterpretation of the provisions of CAMA on a notice of meeting which is an accidental omission and does not render the meeting invalid
(d) None of the above

In 1995, Alhaji Usman Isah bought 10,000,000 shares in Julius Berger Plc, jointly with Mallam Aminu Kwankwaso. Last year, Alhaji Isah succumbed to death after a long drawn battle with cancer.

Use the scenario above to answer questions 68 to 70.

68. By the provisions of CAMA, the 10,000,000 shares shall become that of?
(a) Alhaji Isah's Beneficiaries
(b) Mallam Kwankwaso as a joint holder
(c) Mallam Kwankwaso by transfer
(d) Personal Representatives of Alhaji Isah

69. If the shares were purchased by Alhaji Isah as a sole holder, the person entitled to be registered as the Shareholder is?
(a) Mallam Kwankwaso
(b) Alhaji Isah's survivor
(c) A beneficiary named in Alhaji Isah's Will
(d) Personal Representative of Alhaji Isah

70. Assuming Alhaji Isah wrote a Will and named Musa Marwa as the beneficiary of the shares, the option available to Musa is?
(a) An action in Court
(b) To petition the CAC
(c) To serve on the Company a notice and affidavit of interest
(d) Any of the above

71. Which of the following is not a correct position of the Law?
(a) A Private Company having 50 members and 20 other employees who are also members of the Company has contravened the provisions of the CAMA
(b) A Private Company cannot under any circumstance invite the public to subscribe to its shares
(c) Two persons cannot be entitled to ownership of a share at the same tine
(d) All of the above

72. The Corporate Affairs Commission has a membership of:
(a) 5 members
(b) 10 members
(c) 15 members
(d) 20 members

73. Which of these businesses transacted at an Extra Ordinary General Meeting is an ordinary business:
(a) Declaration of dividends
(b) Presentation of financial statement
(c) All of the above
(d) None of the above

74. Jurisdiction over disputes involving a decision or determination of the Securities and Exchange Commission is vested in?
(a) Federal High Court exclusively
(b) State High Court and Federal High Court
(c) Investments and Securities Tribunal exclusively
(d) Investments and Securities Tribunal and Federal High Court

75. As a general rule, the minimum and maximum age limit for appointment as a Director in private companies is
(a) 21 years and 70 years respectively
(b) 18 years and 70 years respectively
(c) 18 years and 75 years respectively
(d) 18 years and none respectively

76. Where in a meeting commenced with the proper quorum, but some members withdraw and reduces the quorum;
(a) The Chairman must continue with the meeting because quorum is only required at the commencement
(b) The Chairman must adjourn the meeting because quorum is required throughout the meeting
(c) The Chairman has a discretion to continue with or adjourn the meeting depending on the reason for the withdrawal
(d) All of the above

77. Which of these in not correct as regards Annual General Meeting:
(a) Where a Company holds its first AGM within 18 months of incorporation, it need not hold an AGM in that year or in the following year
(b) The CAC shall have power to extend the time within which the first AGM shall be held.
(c) The CAC shall have power to extend the time within which any AGM shall be held by a period not exceeding 3 months

(d) Not more than 15 months should elapse between one AGM and the next

78. By Section 8 CAMA, the Registrar General of the CAC must have been qualified to practice law for ___ years and must have had experience in company law practice and administration for ___ years.
(a) 5 years and 10 years respectively
(b) 8 years and 10 years respectively
(c) 10 years and 8 years respectively
(d) 10 years and 5 years respectively

79. A Company involved in manufacturing goods in Nigeria for export can apply for refund of the import duties paid on the importation of the raw material under the?
(a) Pioneer Status
(b) Export Incentives
(c) Local Raw Materials Utilization Scheme
(d) None of the above

80. The CAC incorporation form or document that requires stamping is:
(a) Form CAC 1
(b) Form CAC 1.1
(c) Memorandum and Articles of Association/statement of authorized share capital.
(d) Form CAC 7

81. The following are not ordinary businesses of a Company except
(a) Appointment of Directors to fill casual vacancies
(b) Removal of Directors
(c) Appointment of members of Audit Committee
(d) Appointment of Company Secretary

82. The apex regulating body for the capital market in Nigeria is the
(a) Securities and Capital Commission
(b) Corporate Affairs Commission
(c) Securities and Exchange Commission
(d) Investments and Securities Commission

83. The NIPC Act provides that a non-Nigerian whether company or individual may invest and participate in the operation of any enterprise in Nigeria in Nigeria except those in the negative list in
(a) Section 14
(b) Section 16
(c) Section 17
(d) Section 20

84. Which of these is not required for publication of name under Section 548 CAMA
(a) Name Plate
(b) Official Seal
(c) Correspondences and Bills of Exchange
(d) None of the above

85. A person on whose instructions and directions the directors are accustomed to act is
(a) Alternate Director
(b) Executor Director
(c) Representative Director
(d) Shadow Director

86. The procedure for removal of a Director is regulated by
(a) Section 262 CAMA
(b) Section 266 CAMA
(c) Section 292 CAMA
(d) Section 296 CAMA

87. Which of these is incorrect about a Private Company

(a) It has a share capital of not less than N10,000
(b) It is exempted from holding statutory meetings
(c) It is exempted from having a Company Secretary
(d) Its members shall not be less than two

88. The Law that empowers SEC to maintain a register of Foreign Direct Investments and Portfolio Investments is:
(a) CAMA
(b) SEC Act
(c) ISA
(d) NOTAP

89. The One Stop Investment Centre (OSIC) is established under the
(a) NDIC Act
(b) CAMA
(c) ISA
(d) NIPC Act

90. An Extra Ordinary General Meeting of a Company limited by shares can be requisitioned by members holding not less than
(a) One-third of the paid up capital
(b) Half of the paid up capital
(c) Three-quarters of the paid up capital
(d) One-tenth of the paid up capital

91. The authorization of the Attorney General of the Federation is required for the registration of the memorandum of association of
(a) Incorporated Trustees
(b) Company Limited by Shares
(c) Company Limited by Guarantee
(d) Unlimited Company

92. Which of these refers to a person appointed by a Company which is a Director in another Company to represent it at the board of the other company?
(a) Nominee Director
(b) Representative Director
(c) All of the above
(d) None of the above

93. The remedy for any person whose name is wrongly omitted from the register of members is
(a) Declaratory relief against the company
(b) Damages or injunction
(c) Rescission of the Register
(d) Rectification of the register

94. The following documents of incorporation of a company are required for stamping except
(a) Statement of authorized Share Capital
(b) Memorandum of Association
(c) Articles of Association
(d) Particulars of First Directors

95. Upon winding up of a Company Limited by Guarantee
(a) The left over assets are distributed
(b) The left over assets are transferred to the CAC
(c) The left over assets are
(d) The left over assets are transferred to a Company with similar objects

96. The type of resolution required to remove a Director is
(a) Ordinary Resolution
(b) Special Resolution
(c) Unanimous Resolution
(d) None of the above

97. According to Section 27 CAMA, the second content of a memorandum of association of a company is
(a) The object clause

(b) The share capital clause
(c) The status/type of company clause
(d) The registered office clause

98. The categories of exceptions to the Rule in Foss v Harbottle does not include
(a) Members direct action
(b) Representative action
(c) Derivative action
(d) Relief on ground of unfairly prejudicial and oppressive conduct

99. "But times have changed. A Company Secretary is a much more important person nowadays than he was in 1887." This was the view of Lord Denning MR in?
(a) Barnnet, Hoares Co Ltd v South London Tramways Co
(b) Panorama Guildford Ltd v Fidelis Furnishing Fabrics Ltd (399 Ogbuanya)
(c) Re City Equitable Fire Insurance Co Ltd
(d) Regal Hastings v Gulliver

100. The removal of a Managing Director is the exclusive preserve of the
(a) Board of Directors
(b) General Meeting
(c) Board of Directors subject to the approval of the General Meeting
(d) General meeting if the Board of Directors fails to do so.

101. Reservation of name on the fulfillment of all the conditions shall last for a period of
(a) 30 days
(b) 60 days
(c) 90 days
(d) 120 days

102. The following is correct about promoters except
(a) It is defined in Section 61 CAMA
(b) An estate agent engaged to procure the registered address of a Company is not a promoter
(c) A legal practitioner engaged to procure the registration of a company cannot under circumstance become a promoter of that Company
(d) A person may become a promoter of a company even after the registration of a Company.

103. The authority for the view that the object clause in a memorandum of association is not binding but a mere list of objects the company wishes to carry out is
(a) Longe v First Bank of Nigeria Plc
(b) NIB Investments v Omisore
(c) Garba v KIC Ltd
(d) Edokpolor & Co Ltd v Seme Edo Wire Industries

104. The standard of care required from a Director under the Act is
(a) Subjective
(b) Objective
(c) Prudent
(d) All of the above

105. The appointment and removal of a Company Secretary in provided for under
(a) Section 292 and Section 296 respectively
(b) Section 292
(c) Section 296
(d) None of the above

106. Special notice under Section 236 CAMA is for?
(a) 14 days
(b) 21 days

(c) 28 days
(d) None of the above

107. The NOTAP Act requires every contract or agreement between Nigerians and Non Nigerians involving transfer of foreign technology to be registered not later than
(a) 30 days
(b) 60 days
(c) 90 days
(d) None of the above

108. The quorum of directors necessary for the transaction of the company is two where there are:
(a) More than six Directors
(b) Six or less than six Directors
(c) None of the above
(d) All of the above

109. The requirements for accreditation with the CAC does not include
(a) LLB Degree
(b) Two passport photographs
(c) Receipt of practice fee for the year of application
(d) NYSC Discharge Certificate

110. The limitation period for a Company to sue a Promoter for breach of fiduciary duties is
(a) 6 months
(b) 1 year
(c) 3 years
(d) None of the above

111. A Director may not be appointed by?
(a) An outsider authorized by the Memo and Articles of Association
(b) By the Subscribers to the Memo of Association
(c) By Ordinary Resolution of the members in General Meeting
(d) None of the above

112. Every foreign company seeking to do business in Nigeria must incorporate a separate entity in Nigeria. This is the gist of
(a) Section 51 CAMA
(b) Section 54 CAMA
(c) Section 56 CAMA
(d) Section 61 CAMA

113. Which of these is not entitled to accreditation with the CAC
(a) Legal Practitioners
(b) Chartered Accountants
(c) Chartered Secretaries
(d) Firm of Auditors

114. The application fee for registration with the CAC for firms is
(a) N2000
(b) N10,000
(c) N5000
(d) N7500

115. Which of these meetings can be held outside Nigeria
(a) Board of Directors Meeting
(b) Statutory Meetings
(c) Annual General Meetings
(d) None of the above

116. In contrast to the position under the Common Law, a Company can now ratify pre-incorporation contracts by virtue of?
(a) Section 61 CAMA
(b) Section 71 CAMA
(c) Section 62 CAMA
(d) Section 72 CAMA

117. By the provisions of Section 19 CAMA, membership of Partnerships,

except that of Lawyers and Accountants shall not exceed?
(a) 20 members
(b) 30 members
(c) 40 members
(d) 50 members

118. Which of these is not disqualified for appointment as a Director
(a) An infant where there are two other Directors of full age and capacity
(b) A person of unsound mind
(c) An insolvent or un-discharged bankrupt
(d) None of the above

119. Which of the following is not exempted from registration under Section 56 CAMA
(a) Foreign Company invited to Nigeria by or with the approval of the Federal Government to a specified project
(b) Foreign government owed Company engaged solely in import promotion activities
(c) Foreign company which is in Nigeria to execute a specific loan project for a donor organization or agency
(d) Engineering consultants and technical experts engaged in any individual project with any of the governments of the federation.

120. Remedies for breach of fiduciary duties by a Promoter includes the following except
(a) Suing for damages for breach of fiduciary duties
(b) Declaratory and Injunctive remedy
(c) Rescission of contract and recovery of money paid
(d) Account for any profit made

121. Which of these statutory books is not required to be kept by a Private Company?
(a) Register of members
(b) Register of charges
(c) Register of debenture holders
(d) Register of Substantial interest

122. A person is a substantial shareholder in a Public Company if he holds shares in the company which entitles him to exercise?
(a) 10% of voting rights
(b) 20% of voting rights
(c) 30% of voting rights
(d) 40% of voting rights

123. The minutes not required to be kept under Section 241 CAMA is
(a) Minutes of proceedings of General Meeting
(b) Minutes of Board of Directors Meeting
(c) Minutes of Secretaries' meeting
(d) Minutes of Managers' meetings

124. Which of these is not prohibited from re-registration under CAMA
(a) Private Company previously re-registered as Unlimited seeking to re-register as Public Company
(b) Unlimited Company seeking to re-register as a Company Limited by Guarantee
(c) Unlimited Company seeking to re-register as a Public Company
(d) Statutory Corporations seeking to re-register as Private Company.

125. The share capital of a company can be altered by all of the following except
(a) Increase
(b) Reduction
(c) Consolidation

(d) None of the above

126. A Company registered and doing business in Nigeria is not required to
(a) Have a Common Seal
(b) Publish its name in a name plate
(c) Have an official seal
(d) Publish its name in Bills of Exchange

127. A person is required to give notice of being a substantial shareholder in a Public Company within?
(a) 40 days
(b) 30 days
(c) 14 days
(d) 15 days

128. Which of these clauses in the memorandum may not be altered after conversion
(a) Name Clause
(b) Status clause
(c) Capital share clause
(d) All of the above

129. The type of resolution required to reduce the nominal share capital of a company is
(a) Ordinary Resolution
(b) Special resolution
(c) Extra-Ordinary Resolution
(d) General Resolution

130. The evidential value of minutes of meetings is that it is
(a) An accurate record of proceedings of a meeting
(b) Prima facie evidence of proceedings
(c) Conclusive evidence of proceedings
(d) All of the above

131. The punishment for default in keeping a Register of members under Section 83 CAMA is a daily fine of?
(a) N500
(b) N250
(c) N50
(d) N25

132. Index of members is required where the numbers of a company exceeds?
(a) 15
(b) 50
(c) 100
(d) 500

133. Corporate searches of companies are conducted at
(a) Registered Office of the Company
(b) Any Branch Office of the Company
(c) Zonal Headquarters of CAC
(d) Headquarters of CAC

134. The type of resolution required to increase the authorized share capital of a Company is
(a) Ordinary Resolution
(b) Special Resolution
(c) Extra-Ordinary Resolution
(d) General Resolution

135. As a general rule, the location of the register of members of a company is
(a) Corporate Affairs Commission
(b) Registered Office of the Company
(c) Any Branch Office of the Company
(d) All of the above

136. Under Section 193 CAMA, the entry of a debenture holder in the Register shall be done within
(a) 15 days
(b) 20 days
(c) 25 days
(d) 30 days

137. The Procedure for re-registration of public companies to private companies is regulated by

(a) Section 50 CAMA
(b) Section 51 CAMA
(c) Section 52 CAMA
(d) Section 53 CAMA

138. A person seeking to cancel a resolution for re-registration of a Public Company to Private Company must have not less than?
(a) 5% of Company Capital Share
(b) 10% of Company Capital Share
(c) 15% of Company Capital Share
(d) 20% of Company Capital Share

139. It is statutorily required for a Public Company applying for re-registration as a Private Company to wait for objections for a period of?
(a) 14 days
(b) 21 days
(c) 28 days
(d) 30 days

140. Application to cancel a resolution for re-registration of a Public Company to a Private Company can be brought by any member before the Court. The Court refers to
(a) National Industrial Court
(b) State High Court
(c) Investments and Securities Tribunal
(d) None of the above

141. If any meeting of the Board of Directors, the Chairman is not present for _____ after the time fixed for such meeting, the Directors may choose one of them to be the Chairman of the meeting
(a) 60 minutes
(b) 30 minutes
(c) 15 minutes
(d) 5 minutes

142. The duty to present the financial statement of a Company lies on
(a) The Managing Director
(b) Board of Directors
(c) Any Director
(d) General Meeting

143. Section 370 of CAMA requires any company to keep?
(a) Financial Statement
(b) Cash Book Account
(c) Annual Returns
(d) Accounting Record

144. Section 300 (a) CAMA deals with an exception to the Rule in Foss v Harbottle in the case of?
(a) Fraud on minority
(b) Infringement of individual rights
(c) Doing an act through irregular procedure
(d) Illegal/Ultra Vires acts or transactions.

145. The power of appointment of first auditors in a Company resides in the first instance
(a) The Managing Director
(b) Board of Directors
(c) Any Director
(d) General Meeting

146. The maximum number of persons required for the composition of an audit committee is
(a) 2 persons
(b) 4 persons
(c) 6 persons
(d) 8 persons

147. The following persons are absolutely prohibited from appointment as auditor except
(a) An officer of the Company
(b) A body corporate

(c) A firm of auditors
(d) A partner of a servant of the Company

148. Which of these is not entitled to bring an action for relief on the ground of unfairly prejudicial and oppressive conduct
(a) A member of the company
(b) A Director of the Company
(c) A former officer of the company
(d) None of the above

149. The person entitled to bring an action for investigation of a company by CAC under Section 314 CAMA must hold up to
(a) One-quarter of the shares
(b) Half of the shares
(c) One-third of the shares
(d) Three-quarters of the shares

150. The type of resolution and length of special notice required for the removal of an auditor before the expiration of his term is
(a) Ordinary resolution and 21 days' notice
(b) Ordinary resolution and 28 days' notice
(c) Special resolution and 21 days' notice
(d) Special resolution and 28 days' notice

151. The following <u>are not</u> part of the qualifications for designation of a Company as a small company <u>except</u>
(a) It must be a public company
(b) It must have a turnover of not less than ₦1,000,000
(c) Its net value must not be less than ₦2,000,000
(d) It must not have an alien member

152. The CAC has inherent powers under Section 525 to strike out the name of a company if
(a) The company is unable to pay its debt
(b) The company flouts any of the provisions of CAMA
(c) The company is run in an unfairly prejudicial and oppressive manner
(d) The CAC has reasonable cause to believe that the company is not in operation

Using the scenario below, answer questions 153-154

Ogbuagu Nig. Ltd was incorporated on July 1, 2010 and held its first AGM in November 30, 2011.

153. Which of the following is <u>incorrect</u>
(a) Ogbuagu Nig. Ltd must file its annual return in 2011
(b) Ogbuagu Nig. Ltd must complete its annual return not later than January 12, 2012
(c) The annual returns of Ogbuagu Nig. Ltd must be signed by its Director and Secretary
(d) Ogbuagu Nig. Ltd is required to submit a certificate to the effect that since incorporation it has not invited the public to subscribe to its shares.

154. The fine payable by Ogbuagu Nig. Ltd for failing to submit its annual returns to the CAC is
(a) ₦100
(b) ₦1000
(c) ₦50
(d) ₦500

155. Appeals from the Investments and Securities Tribunal lie to
(a) State High Court

(b) Federal High Court
(c) Court of Appeal
(d) Supreme Court

156. The Chief Executive Officer of the Corporate Affairs Commission is the
(a) Director General
(b) Managing Director
(c) Commissioner General
(d) Registrar General

157. The CAC incorporation form which is the exclusive preserve of legal practitioners is
(a) Form CAC 2
(b) Form CAC 3
(c) Form CAC 4
(d) Form CAC 5

158. Which of these is not required to effect the re-registration of a private company to a public company
(a) Ordinary resolution
(b) Application to CAC
(c) Memo and Articles duly altered
(d) Statutory declaration signed by Director and Secretary

159. The procedure for the change of name of a company includes the following except?
(a) Availability search and reservation of name
(b) Application to SEC for approval of the new name
(c) Passing of special resolution in the general meeting
(d) Alteration of the MEMOART

160. Upon allotment of its shares to the members of the public, a company is expected to file return of allotment of shares within?
(a) 40 days
(b) 3 months
(c) 1 months
(d) 90 days

BAR FINAL MULTIPLE CHOICE QUESTION COMPILATION

MCQ ON PROPERTY LAW PRACTICE

NOTE: This compilation is intended to serve only as a guide to MCQs on the Bar Final Examination and is by no means connected to any future examination of the Nigerian Law School. Students are therefore advised to avoid wrongful or unlawful application of the material or information contained herein.

Madam Koko took a loan of ₦50million from United Bank for Africa. She intends to use her property at 5, Oshin Street, Abia State as security for the loan.

Answer the following questions

1. _____tax will not be applicable in this transaction.
(a) Consent fee
(b) Stamp Duties
(c) Capital gain tax
(d) Registration fees

2. The following rights are available to UBA if Madam Koko defaults in payment except_____
(a) Right to sell the property
(b) Foreclosure
(c) Action in court to recover principal and interest
(d) Indemnity

3. In order to perfect the legal mortgage, the following documents are required except_____
(a) Title documents of the property
(b) Tax Clearance Certificate
(c) Receipt of payment of current ground rent on the property to be mortgaged
(d) Tenancy agreement

4. _____ is a content of the testatum of a deed of mortgage?
(a) Undertaken by the mortgagor not to pay the mortgagee the principal sum with accrued interest
(b) Undertaken by the mortgagee to pay the mortgagor the principal sum with accrued interest
(c) Undertaken by the mortgagor to pay to the mortgagee the principal sum with accrued interest
(d) Undertaken by the mortgagor to pay the principal sum only

Mr. Dodo Muru has a terminal illness. He gave instructions to his solicitor Miss Eunice Adams to draft his last will.

Answer the following questions

5. The legal age approved under the Wills Act for a testator to make a Will is:

(a) 17 years
(b) 20 years
(c) 18 years
(d) 21 years

6. The factors to be considered in determining whether the testator possess testamentary capacity at the time of making the his will include the following except:
(a) The testator must understand the extent of the property he is disposing
(b) The testator must understand the manner in which the property is shared among the beneficiaries
(c) The testator must have a good sight
(d) The testator must know and understand the persons who are objects of his bounty

7. The following are the requirements of a valid Will except:
(a) It must be signed by the testator
(b) It must be in writing
(c) It must be duly executed
(d) Governor's consent must be sought and obtained

Mr. Orimolowo Segun just secured a job in the United States of America. He intends to appoint Mr. Henry Dogman to manage his properties on his behalf.

Answer the following Questions

8. Assuming the Power of Attorney was created by deed it must be determined:
(a) In writing
(b) By poll
(c) By deed
(d) Orally

9. A Power of Attorney made by deed but without a consideration can be revoked in the following ways:
(a) Orally
(b) By death
(c) By insanity
(d) None of the above

10. A Power of Attorney is executed by:
(a) 1 party only
(b) 1 person only
(c) 2 parties only
(d) 2 persons only

'' In consideration of the sum of ₦1,000,000.00 (One Million Naira) the lessor demises one bedroom flat in Maitama District, Abuja, Federal Capital Territory for a period of 4 years commencing from January 31st 2014 to the lessee subject to another term of 2 years''

Answer the following questions

11. The above lease is invalid for:
(a) Lack of certainty of time
(b) Absence of expiry date
(c) Lack of certainty of property
(d) Absence of rent review

12. In view of the option to review for another two years provided in the lease above, as solicitor to the lessor, provision shall be made for:
(a) Rent payment clause
(b) Rent decrease clause
(c) Rent review clause
(d) Consolidation rent clause

13. **A solicitor acting for both the lessee and lessor and lessee in the above transaction shall be entitled to his professional fee as follows:**
    (a) Full from lessor and one quarter from lessee
    (b) Full from lessor and half from lessee
    (c) Full from the lessor and full from the lessee
    (d) Full from the lessor and two quarters from the lessee

14. **The order of perfection of the above deed of lease is:**
    (a) Governor's consent, registration and stamping
    (b) Governor's consent, stamping and registration
    (c) Stamping, governor's consent and registration
    (d) Registration, stamping and governor's consent

Mr. Lazarus Jacky died 25th December, 2010. He was the managing director of a five star hotel in Ilorin, Nigeria before his death. He made a Will and appointed Mr. Owonikoko Esq. and Mr. Richman as executors to the Will. The Will provides among others the following clauses

i. My Toyata Camry, 2008 model to my first son
ii. The sum of N1m from my Zenith bank to Mrs. Dogood
iii. My three story building at 22, Bode Thomas drive maitama Abuja to the Trustee of Buari Child Fundation

Answer the following questions

15. **Clause(i) in the above Will is called:**
    (a) Specific gift
    (b) Residuary gift
    (c) General gift
    (d) Pecuniary gift

16. **What document will Mr. Owonokoko and Mr. Richman require to vest title on the Trustee of Bwari Child Foundation?**
    (a) A deed of assent
    (b) An assent
    (c) A deed of assignment
    (d) An assignment

17. **Assuming the elder brother of Mr. Lazarus Jacky intends to challenge the grant of probate to the executors he must file what type of application?**
    (a) Motion on notice with supporting affidavit
    (b) Motion ex parte without affidavit
    (c) Caveat
    (d) Warning

18. **Dr. Francis Brown is an Abuja based legal practitioner who had represented First Link Nig. Ltd for many years** in various matters especially in recovery leases and perfecting property transactions. As at 31st July 2013 First Link Nig. Ltd was indebted to Dr. Francis Brown's firm to the tune of N15m. All attempts including writing of numerous letters to First Link Nig. Ltd. have not yielded any positive result. What is the step that Dr. Francis Brown will take to recover this debt?

(a) Send a bill of charges to First Link Nig. Ltd
(b) Beg first link Nig. Ltd to pay
(c) Sue First Link Nig. Ltd
(d) Instruct a colleague to write a letter of demand to first link

19. Which court has original jurisdiction to entertain the matter if Dr. Brown decided to institute an action?
(a) District Court
(b) Debt Recovery Tribunal
(c) High Court of Justice
(d) Multi-Door Court House

20. If Dr. Brown were to send a bill charges to First Link Nig. Ltd. what is the stipulated period that he would give the company?
(a) 41 days
(b) 21 days
(c) 30 days
(d) One month

Olu George sold his house to Adaka. Both parties exchanged a formal contract of sale in March 2007. The house is located at Enugu. Adaka approached Big Bank Plc. for a loan and executed an agreement to create a legal mortgage in favour of the bank.

Answer questions 21-22 from the above scenario:

21. George is under obligation to take one of the following steps after the exchange of the contract?
(a) Apply for certificate of occupancy
(b) Pay deposit to Adaka
(c) Deduce his title
(d) Execute a power of attorney in favour of Adaka

22. The agreement to create a legal mortgage executed by Adaka operates as one of the following:
(a) Equitable mortgage
(b) Legal mortgage
(c) Appointment of receiver
(d) Sale of the house

Ade Oluwa, a Benin man, in his Will, gave his family house in Benin to his youngest daughter, Bola. Ada Oluwa lived all his life in Benin. He also gave one of his houses to Gbonka, one of his executors. Ade Oluwa also gave ₦1 million to his youngest son, Emma to be drawn from his current account with First Bank, Benin branch.

Answer questions 23-24 from the scenario.

23. One of the following statements about the gift to bola is correct
(a) The gift is valid because bola was around when the father died
(b) The gift is not valid on the ground of customary restriction on the right of Ade Oluwa to make a Will
(c) The gift will be valid if Bola survives her father
(d) The gift will be valid if Bola obtain an assent from the executors

24. Where a person lacking in capacity (for example a child) is a beneficiary in a Will having a sole executor;
(a) The court shall not grant probate to such a Will

(b) Appoint an administrator to take over part of the estate
(c) Appoint an additional executor
(d) Allow the infant to nominate a guardian

25. All but one of the following is among the taxes to be paid during the perfection of the title to a property?
(a) Stamp duties
(b) Consent fee
(c) Registration fee
(d) Capital Gain Tax

26. Perfection of title in Enugu should take the following order?
(a) Consent, registration, stamping
(b) Stamp, consent, registration
(c) Consent, stamping, registration
(d) Registration, consent, stamping

27. One of the following is not one of the effects of a receipt clause in a deed.
(a) Makes the issuance of a separate receipt unnecessary
(b) It constitutes good root of title
(c) It is evidence of payment to a subsequent purchaser without notice that the sum has been paid
(d) It is authority to pay the sum to the vendor's solicitor where he presents such instrument

28. In perusing the abstract of title the purchaser solicitor must consider all but one of the followings.
(a) Whether there is any break in the devolution of title.
(b) Statutory time within which the title must be deduced
(c) Whether the mortgagor can create consequent mortgages
(d) Covenant in the lease instrument abstracted

29. Zenith Bank plc. had come to consult you as solicitor on the following issues:

How can the bank as mortgagee deal with the reversionary interest of a mortgagor in respect of a mortgaged property in Lokoja in exercise of his powers of sale?

(a) Trust declaration
(b) Power of attorney
(c) All of the above
(d) None of the above

30. How would he deal with the reversionary interest if the property is situated in Asaba and the legal mortgage is created by sub-demise?
(a) Power of attorney
(b) Declaration of trust
(c) All of the above
(d) None of the above

31. State your opinion on the statement that in kwara state 'it is possible to create successive legal mortgages'
(a) True
(b) False
(c) Conditional
(d) None of the above

32. Pursuant to a successful registration of title under the registration of title law, a registered proprietor of land is issued

(a) certificate of title
(b) land certificate
(c) A or B above
(d) None of the above

Dr. chris Chukwu, a prominent politicial owns several properties in Enugu, Dubai, Port-Harcourt, Lagos, London and Abuja. He intends to sell one of his properties located at plot 128, Ogui Street, Asokoro Abuja to Mr. Susuan Samuel.

Answer questions 33-37

33. The document required to be drafted at the contract stage of the transaction would be prepared by:
(a) Mr. Susuam's solicitor
(b) Dr. Chukwu's solicitor
(c) Registrar of deeds
(d) The two solicitors acting together

34. One of the followings does not apply after the contract stage.
(a) Mr. Susuam acquires an equity in respect of the property
(b) Dr. Chukwu becomes a qualified trustee in respect of the property
(c) Dr. Chukwu's death will not affect the contract
(d) Mr. Susuam is automatically entitled to possession

35. If Dr. Chukwu intends to sell his property in Port Harcourt, all but one of these laws is likely to apply.
(a) Land tenure law
(b) Conveyancing Act
(c) Land Use Act
(d) The Statute of Fraud

36. The presence of one of the following in the deed to be executed would obviate the need for issuance of a separate receipt.
(a) Consideration clause
(b) Receipt clause
(c) Execution clause
(d) None of the above

37. To finally dispose all Dr. Chukwus interest in the property, one of the following documents must be executed.
(a) Deed of lease
(b) Deed of legal mortgage
(c) Deed of assignment
(d) Deed of conveyance

38. A Will is ambulatory because
(a) It is testamentary
(b) It speaks from the death of the testator
(c) It is revocable at any time before the death of the testator
(d) It distributes the testator's estate upon his death

39. The followings are examples documents that constitute good root of title except one.
(a) A deed of gift
(b) Certificate of title
(c) Equitable mortgage
(d) Registered title

Miss Funmi Alabi who had just been recently called to the Bar was appointed as executor to the Will of Alhaja Cashmoney together with the testator's first son, Biu Cashmoney and her first daughter, Miss Zin Lamin.

The Will provides as follows:

i. My 3 bedroom flat where I reside in Ibadan at no. 2 Jokun Street Eleyele be given to my first son Biu Cashmoney.
ii. A Toyota Camry car salon color to my driver Kasall.
iii. My collection of shoes by Jimmy Choo be given to my niece Simbo Omirin.
iv. My Solicitor Miss Funmi Alabi is hereby appointed as trustee to the fund of my grandchildren

Answer the following questions (1-5)

40. What documents will the executors require to vest title on Bui Cashmoney?
(a) A deed of assignment
(b) Deed of transfer
(c) Assent
(d) Letter of administration

41. One of the following clauses must be inserted in the Will to enable Miss Funmi Alabi demand her professional fees.
(a) Charging clause
(b) Residual clause
(c) Demonstrative clause
(d) Exemption clause

42. Clause (ii) in the Will is a _____
(a) General gift
(b) Specific gift
(c) pecuniary gift
(d) residuary gift

43. Assuming Isa Cashmoney, the last son of the testator, wishing to challenge the Will, he will need to take one of the following steps first:
(a) File a citation
(b) File a caveat
(c) File an action for injunction in court
(d) All the above

44. The principle that the Probate Registrar cannot grant probate to the disputed Will while a caveat had not been discharged was enunciated in:

(a) Dan-Jumbo v. Dan-Jumbo (1999) 7 SCNJ 112
(b) Obusez v. Ibusez (2007) 10 NWLR (Pt. 1043) 430
(c) NBA v. Koku (2006) All FWLR (Pt. 334) 1928
(d) Ajibaye v. Ajibaye (2007) All FWLR (pt. 359) 1321

45. The balance of purchase price is paid by the purchaser:
(a) Before the commencement of the contract of sale
(b) At the completion of the contract
(c) Before the execution of the contract
(d) All of the above

46. The order of perfection of a deed of assignment is one of the following.
(a) Consent of the governor, registration and stamping and registration
(b) Governor's consent, stamping and registration
(c) Stamping, registration and governor's consent
(d) Registration, stamping and governor's consent

Mr. Jones Paul intends to sell his three bedroom bungalow at 22, Ama Street, Jos, plateau State to Miss Amina.

47. The document that will be needed to be drafted at the contract stage of the transaction will be prepared by:
(a) Mr. Paul's solicitor
(b) Miss Amina's solicitor
(c) The two solicitors acting together

(d) None of the above

48. One of the following does not apply after the contract stage:
(a) Mr. Paul becomes a qualified trustee in respect of the property
(b) Mr. Paul death will not affect the contract
(c) Miss Amina is automatically entitled to possession
(d) Miss Amina acquires an equity in respect of the property

49. All but one of the following are not subject to ademption
(a) Specific legacy
(b) Demonstrative legacy
(c) General legacy
(d) Pecuniary legacy

50. The document evidencing the financial obligation of parties and the obligations they are expected to meet is the:
(a) Completion statement
(b) Complete deed
(c) Incomplete statement
(d) Incomplete deed

51. In contentious probate practice, a limited grant may be made by the court to an Applicant as to all but one of the following.
(a) Property
(b) Purpose
(c) Time
(d) General administration

52. All but one of these is true of Power of Attorney.
(a) It is a specie of a deed poll
(b) It may be by deed
(c) It is an instrument of transfer of title
(d) It is an instrument of delegation

53. One of the following is paid over developments on a land?
(a) Capital Gain Tax
(b) Consent Fee
(c) Stamp Duties
(d) Tenement Rate

54. How can an equitable mortgagee enforce the mortgage if the mortgagor defaults?
(a) Action for specific performance
(b) Seek the order of court to sell the security
(c) All of the above
(d) None of the above

55. A gift in a Will; will not lapse in one of these circumstances except?
(a) When the beneficiary is a child of the testator who also has a child
(b) Where the testator is older than the beneficiary and both died at the same time
(c) Where the gift is a life legacy
(d) Where the beneficiary is priest

56. Deposit is usually paid by one of the following persons
(a) The purchaser
(b) The donor
(c) The vendor
(d) The contractor

Mr. Rokinem Gongwak has decided to grant a term of 5 years in respect of his 6 bedroom bungalow situated at No. 7 Tudun Wada, Jos, Plateau State for rent to Midland Press Limited. This property is covered by a Certificate of Occupancy granted on 10th June, 1980 for 99 years.

Answer the following questions:

57. What document will be executed by the parties?

(a) A deed of mortgage
(b) A deed of lease
(c) A power of attorney
(d) A deed of conveyance

58. Who prepares the document to be executed by the parties?
(a) Mr. Gongwak's solicitor
(b) Midland Press Limited's in-house secretary
(c) Legal officer of the Jos local government council
(d) Solicitor of midland press limited

59. Which of these is not a type of Deed
(a) Assignment
(b) Indenture
(c) Deed Poll
(d) None of the above

60. The case of Chime v Chime is an authority on
(a) Lease
(b) Power of Attorney
(c) Sale of Land
(d) Mortgage

61. A transaction for the sale of land situate at Ilorin, Kwara State is regulated by
(a) Property and Conveyancing Law
(b) Real Property Law
(c) Conveyancing Act
(d) Registration of Titles Law

62. Which of these is an advantage of Registration of Title documents?
(a) It is simpler
(b) It is cheaper
(c) It simply requires the epitome of title
(d) Registered title is more reliable and enjoys priority

63. Interest in land cannot be transferred by
(a) Assignment
(b) Vesting Declaration
(c) Power of Attorney
(d) None of the above

In 1995, Alhaji Usman Isah appointed Suleiman Orji to manage his property situated at Kaduna. Suleiman paid the sum of ₦1 million.

Use the scenario above to answer questions 8 and 9 below.

64. By the provisions of Section 8(1) CA
(a) Alhaji Isah can revoke the Power of Attorney but must do so expressly.
(b) Alhaji Isah cannot revoke the power of Attorney except with the concurrence of the Donee
(c) Only in the event of the death of Alhaji Isah can the power of Attorney be revoked without the concurrence of the Donee
(d) The payment of consideration has no effect on the power of a Donor of a Power of Attorney to revoke it.

65. If Suleiman Orji had not paid the ₦1 million but it was part of the terms of the Power of Attorney that it be irrevocable for two years
(a) Alhaji Isah can only revoke the Power of Attorney expressly.
(b) Even in the event of death of Alhaji Isah, the power of Attorney cannot be revoked without the Donee's concurrence
(c) Alhaji Isah can revoke the power of Attorney without the concurrence of the Donee
(d) By Section 9 CA a Power of Attorney not given for valuable consideration can only be expressed to be irrevocable for a period not exceeding one year.

66. A Deed can be used for the following except:

(a) To effect the conveyance of an interest, right or property in a real estate
(b) To create an obligation binding on a person
(c) To confirm some act whereby an interest or property has already passed
(d) None of the above

67. Which of these transactions may not be by Deed
(a) Transactions lacking in consideration
(b) Conveyance of interest in land
(c) Assent
(d) Vesting Declaration

68. A person seeking investigation of title is not required to come with
(a) A copy of the consent of the Governor
(b) A copy of the Land Certificate
(c) A receipt of payment of the necessary fees
(d) A letter of consent or authority from the Proprietor

69. One of these is wrong about Assent:
(a) Assent is made in favour of a person entitled to the real estate of a Deceased
(b) Assent is not a good root of title
(c) Only a personal representative can grant Assent, trustees have no such powers
(d) Where Assent is made by Deed, it becomes a registerable instrument and Stamp duty becomes payable on it.

70. A deed is not required in the following cases except?
(a) A lease or tenancy for a period above three years
(b) Statutory receipt for discharge of Mortgage in the PCL States
(c) Vesting Orders to create interest in land
(d) Transactions covered by the rule in Walsh v Lonsdale

71. Where Mr Emma Okoro granted a Power of Attorney to Miss Ada Nwosu to manage his property situate in Lagos but before Miss Nwosu could do so, he sold the property. The effect is that;
(a) The sale is invalid
(b) The Power of Attorney is deemed revoked expressly
(c) The Power of Attorney is deemed revoked by operation of law
(d) The Power is deemed impliedly revoked

72. The following are not incorrect as relates to Power of Attorney except
(a) It does not transfer interest in land
(b) It is an instrument of delegation
(c) It has no special mode of creation in all instances
(d) It should expressly state the power which the Donee can exercise

73. The transaction involving land which is usually but not necessarily for consideration is?
(a) Sale
(b) Mortgage
(c) Assignment
(d) Lease

74. The covenant to pay rent in a lease is not
(a) An implied term
(b) An express term
(c) None of the above

(d) All of the above

75. The case that emphasized the requirement of commencement date as an element of a lease is
(a) Ude v Nwara
(b) Kachalla v Banki
(c) Owoniboys Technical Services v Union Bank
(d) UBA v Tejumola

76. NOW THIS DEED WITNESSES AS FOLLOWS is the usual beginning of
(a) Recital
(b) Habendum
(c) Reddendum
(d) Testatum

77. The feature that distinguishes a Lease from other Deeds is?
(a) Habendum
(b) Testatum
(c) Reddendum
(d) Testimonium

78. A deed is divided into the following parts except?
(a) Introductory part
(b) Operative part
(c) Executory part
(d) Concluding part

79. The Federal Mortgage Bank of Nigeria gives long term loan of usually around ……. years and an interest rate as low as…….%
(a) 20 years and 6% respectively
(b) 30 years and 3% respectively
(c) 20 years and 3% respectively
(d) 30 years and 6% respectively

80. One of the following is not a reason for physical inspection of the land during sale of land
(a) To ascertain whether the vendor has good root of title
(b) To discover patent defects on the land
(c) To see if there are squatters on the land
(d) To be sure that the land is in existence at the placed described

81. The general rule on user of premises is that premises
(a) Can only be used for the purpose it was given
(b) Can only be used for the agreed purpose
(c) Can be used for any purpose as long as it is legal
(d) Can be used for all purposes, legal or illegal

82. A merger occurs in the following circumstance
(a) Where the lessee retains the lease and acquires the reversion
(b) Where a third party acquires the lease and the reversion
(c) None of the above
(d) All of the above

83. The Statute of Fraud Act 1677 provides that contracts for sale or other disposition in land must be evidenced in writing. This is found in
(a) Section 1
(b) Section 2
(c) Section 3
(d) Section 4

84. The difference between a lease and a tenancy is duration, usually expressed to be
(a) 2 years or above
(b) 2 years or below
(c) 3 years or above
(d) Above 3 years

85. The type of rent which is regarded as a fine and hence prohibited in some states is
(a) Ground Rent
(b) Rack Rent
(c) Premium
(d) None of the above

86. Generally, if a Power of Attorney is to be executed outside the country, it should be executed before a
(a) Legal Practitioner
(b) Commissioner of oaths
(c) Magistrate or Justice of Peace
(d) Notary Public

87. A Power of Attorney requiring the Donee to convey interest in realty must have the following features except
(a) Signing
(b) Sealing
(c) Delivery
(d) Exchange

88. Statutory Mortgage is a way of creating mortgage specifically under?
(a) Section 112 PCL
(b) Section 26 (1) CA
(c) Abia State
(d) Section 18 MPL, Lagos State

89. The law governing the mode of creation of legal mortgage in Niger State is
(a) Property and Conveyancing Law
(b) Conveyancing Act
(c) Real property Law
(d) Common Law

90. Where there is deposit of title deed plus an intention to create a legal mortgage, the result is
(a) Legal Mortgage
(b) Equitable Mortgage
(c) Ordinary Mortgage
(d) All of the above

91. The appropriate mode of creation of legal mortgage where the mortgagor decides to reserve the reversionary interest in the property is
(a) Assignment
(b) Sub-demise
(c) Statutory Charge
(d) Legal Charge

92. The remedy of a tenant where the Landlord unreasonably refuses assignment or subletting does not include?
(a) Tenant can sublet without Landlord's consent
(b) Action for damages
(c) Specific performance
(d) Forfeiture and re-entry

93. The position of law is that as a general rule, rent is payable in?
(a) Advance
(b) Arrears
(c) Any of the above
(d) None of the above

94. A major distinction between Power of Attorney and a Contract for sale of land is that the latter is valid on
(a) Execution
(b) Delivery
(c) Exchange
(d) None of the above

95. In a mortgage transaction, the duty to seek Governor's consent is that of?
(a) Mortgagor
(b) Mortgagee
(c) Guarantor
(d) None of the above

96. A Power of Attorney is required in the following instances except
(a) Where expert skill is required
(b) Ill health or physical impairment of the Donor
(c) Where it is necessary to secure the interest of a purchaser pending perfection of title
(d) It is required in all of the above

97. Rent review clause should contain the following except
(a) Method of initiating review
(b) Time frame for review
(c) The amount payable as rent
(d) Method of calculating the new rent

98. Lease may not lawfully be determined by
(a) Reasonable force to eject
(b) Notice to quit
(c) Forfeiture
(d) Expiration of a term

99. The covenants in a transaction are contained in the part of the Deed known as
(a) Commencement
(b) Operative Part
(c) Miscellaneous
(d) Concluding Part

100. If there was a lease agreement on a property before a mortgage was entered into on that property
(a) There shall be a merger
(b) The mortgagee becomes entitled to the rent
(c) The lease will be binding on the mortgagee
(d) All of the above

101. As a general rule, one of the following is true about consolidation:
(a) Is a requirement of law
(b) Is expressly prohibited
(c) Is the right of the mortgagor
(d) Is the right of the mortgagee

102. Covenant to observe and perform any condition in the head-lease is relevant in a created mortgage by
a. Statutory Mortgage
(b) Legal Charge
(c) Sub-demise
(d) Assignment

103. The appropriate consent required for the mortgage of a land, subject of a customary right of occupancy is
(a) Governor of the State
(b) President of Nigeria
(c) Local Government
(d) Any of the above

104. Which of the rights of a mortgagor terminates after the legal due date has passed
(a) Equitable right to redeem
(b) Legal right to redeem
(c) Equity of redemption
(d) All of the above

105. The elements necessary for there to be consolidation does not include
(a) It must be one property
(b) The parties must be the same
(c) Date of redemption must have passed
(d) There must be agreement to consolidate

106. The automatic statutory power of sale not requiring an order of Court
(a) Is only available to a legal mortgagee
(b) Is only available to an equitable mortgagee
(c) Is only available in a mortgage created by deed
(d) All of the above

107. A foreclosure order nisi becomes absolute after
(a) 3 months
(b) 6 months
(c) 9 months
(d) 12 months

108. A purchaser who buys a property after the power of sale arises but before the power becomes excisable
(a) Does not get a good title
(b) Will get a good title subject to the title of the mortgagor
(c) Will get a good title notwithstanding the irregularity
(d) The mortgagor is entitled to injunction

109. By Section 22 Stamp Duty Act, mortgage documents are required to be stamped after
(a) 15 days
(b) 30 days
(c) 60 days
(d) 90 days

110. A schedule of events or transactions affecting land arranged in a chronological order of devolution is
(a) Abstract of title
(b) Epitome of title
(c) Requisition of title
(d) Deducing of title

111. For a statutory power of sale to arise, the following conditions must exist except?
(a) The mortgage must be created by deed
(b) The legal due date must have passed
(c) Notice requiring payment must have been given to the mortgagor
(d) There must be no contrary intention against sale in the deed

112. Which of these modes of creation of mortgage can be discharged by statutory receipt
(a) Deed of statutory mortgage
(b) Legal charge
(c) Assignment
(d) Sub-demise

113. At what stage of contract of sale of land do the parties exchange the contract?
(a) Contract stage
(b) Post contract stage
(c) Completion stage
(d) Pre contract stage

114. Foreclosure extinguishes
(a) The legal right to redeem
(b) Equitable right to redeem
(c) Equity of redemption
(d) All of the above

115. Under the Land Use Act, the approval required before granting a right of occupancy to a non-Nigerian is that of
(a) The President
(b) Federal Executive Council
(c) National Judicial Council
(d) National Council of States

116. The wrong assertion about the mortgagee's right of possession is
(a) It arises upon creation of the mortgage
(b) It does not render the mortgagee liable in trespass
(c) It is contingent upon breach by the mortgagor
(d) None of the above

117. The three Ps that validate an open contract does not include
(a) Property
(b) Possession
(c) Price
(d) Parties

118. The major place for investigation of title to a land situated in Abuja is done at
(a) High Court Registry
(b) Land Registry
(c) AGIS (Abuja Geographic Information System)
(d) All of the above

119. Which of these does not constitute a good root of title
(a) Deed of Assignment
(b) Vesting Order
(c) Certificate of Occupancy
(d) Registered Title

120. The conditions that makes a power of sale become exercisable include the following except
(a) There must have been failure in payment of principal sum for three months after becoming due
(b) Some interest must have been in arrears and unpaid for two months
(c) There has been a breach of the covenant or the law by the mortgagor
(d) There must have been notice requiring payment of principal sum and default in payment for three months after such notice

121. A mortgage created by assignment cannot be discharged by
(a) Statutory receipt
(b) Deed of discharge
(c) Deed of surrender
(d) None of the above

122. The Deed of Assignment is usually prepared by
(a) Assignor's Solicitor
(b) Assignee's Solicitor
(c) All of the above
(d) None of the above

123. The payment of the balance of the purchase price in a contract for sale of land is done at the
(a) Execution of the Contract
(b) Completion Stage
(c) Perfection Stage
(d) Contract Stage

124. The contract for sale of land is usually drafted by
(a) Vendor's Solicitor
(b) Purchaser's Solicitor
(c) All of the above
(d) None of the above

125. In a contract for sale of land, it is preferable to pay the deposit of the purchase price to
(a) The Vendor
(b) The Purchaser
(c) Purchaser's solicitor
(d) Vendor's solicitor

126. The stages of contract for sale are divided into-----
(a) Two
(b) Three
(c) Four
(d) Five

127. One of the following is not an effect of failure to perfect a deed of assignment:
(a) It will render the deed void
(b) The assignee acquires only an equitable interest
(c) It will occasion miscarriage of justice

(d) None of the above

128. A good root of title in Kano State should?
(a) Be subject to higher interest
(b) Be executed before the chief judge of Kano state
(c) Vest both the legal and equitable interest on the holder
(d) All of the above

129. A landlord becomes entitled to take over possession of the demised premises where the tenant breaches the covenants by reason of
(a) Surrender
(b) Merger
(c) Forfeiture
(d) All of the above

130. The reasons why a power of sale can be set aside does not include
(a) Where there has been collusion amounting to fraud
(b) Where the mortgagee sells at a lower price
(c) Where there is evidence that the money has been in full
(d) Where the mortgagee sells not himself but to his privy

131. Which of these is incorrect about contract for sale of land
(a) In the event of default by purchaser, the deposit is forfeited
(b) The payment of deposit is usually made to the vendor's solicitor as a stakeholder
(c) The remedy of a vendor when the buyer defaults in payment of balance of purchase price is an action for recovery
(d) Only death can terminate the contract after completion stage

132. Which of the following is a good root of title?
(a) Will
(b) Lease
(c) Equitable Mortgage
(d) Vesting Order by the court

133. Where a purchaser takes possession before completion, he usually does so as
(a) A stakeholder
(b) A trustee
(c) A licensee
(d) An equitable owner

134. Economic rent, which is the landlord's return on his investments refers to:
(a) Ground Rent
(b) Rack Rent
(c) Premium
(d) All of the above

135. The minimum requirement for oral contract for sale of land does not include
(a) Payment of purchase price
(b) It must be in writing
(c) Taking of possession by purchaser
(d) Presence of witnesses

136. A Purchaser of part of the property of a Vendor is not entitled to the entire title documents but can be protected by
(a) Covenant for Indemnity
(b) Trust Declaration
(c) Power of Attorney
(d) Acknowledgment for custody and production

137. The minimum age requirement for entitlement to a grant of a statutory right of occupancy under the Land Use Act is
(a) 14 years
(b) 18 years

(c) 21 years
(d) 30 years

Chief Ogbuagu borrowed the sum of N15, 000,000 from Calyx Bank Plc and secured the loan with his twin duplex in Ado Ekiti.

Using the scenario, answer questions 138-139.

138. The following are not one of the ways Chief Ogbuagu can create the mortgage except
(a) Assignment
(b) Sub-demise
(c) Legal charge
(d) Deed of Statutory Mortgage

139. Which of these is true?
(a) The Mortgagee ordinarily has no power to sell the reversionary interest
(b) A trust declaration is required
(c) The Mortgagee has the power to sell the property with the reversionary interest
(d) A power of attorney is necessary before the Mortgagee can sell the reversionary interest

140. Assuming Chief decides instead to use his property located in Maitama, Abuja, the legal mortgage cannot be created by
(a) Assignment
(b) Sub-demise
(c) Legal charge
(d) Statutory Mortgage

141. A Power of Attorney granted to a person to "let premises to tenants and collect rent" is
(a) General Power of Attorney
(b) Specific Power of Attorney
(c) Revocable Power of Attorney
(d) Irrevocable Power of Attorney

142. Investigation of title of the vendor involves all but one of the following?
(a) Obtaining the epitome and abstract of title
(b) Physical inspection
(c) Payment of the inspection fees
(d) Raising requisitions where necessary

143. Which of the following is not an ingredient of a good root of title?
(a) It must establish both the legal and equitable interest of the vendor
(b) Nothing on the face the document should cast doubt on its authenticity
(c) It must clearly describe the property
(d) It must be executed before a notary public

144. As an extern, you went to the probate registry and discovered that caveats are entered by:
(a) The executors and beneficiaries only
(b) Beneficiaries only
(c) Any person interested in the estate
(d) Only the immediate children of the testator

Mr. Paul Bassey granted a term of 5 years over his four bedroom bungalow at No. 10 Sabo, Ibadan, Oyo State to Mariam Turkur and used his three storey building at No 49, Airport Road, Ikeja, Lagos covered by a Right of occupancy as security for a loan in favour of Jewel Bank PLC for a loan of ₦ 8 Million.

Answer questions 145-149 using the above scenario

145. Assuming the parties above is considering who should insure the property in the transaction; all but one of the following is a factor they will consider?
(a) The existing obligations on any the parties
(b) The nature and use of the property
(c) The insurance company

(d) The length of term granted in the lease

146. The clause to be inserted in the lease to ensure that Mariam does not pay rent if the property is destroyed or cannot be used is:

(a) Rent Abatement clause
(b) Lease Abatement clause
(c) Abatement of rent review clause
(d) Option to renew clause

147. The mortgage between Mr. Bassey and Jewel Bank can be created in all the following ways except?

(a) Demise
(b) Sub-demise
(c) Legal charge
(d) Statutory mortgage

148. To create the mortgage proposed in the scenario above, all except one of the following laws will be applicable?

(a) Property and conveyancing Law
(b) Mortgage and Property Law
(c) Stamp Duties Act
(d) Land Use Act

149. All but one of the following is a condition for up-stamping of mortgage;

(a) The parties are the same
(b) The security is the same
(c) The due date for repayment of the mortgage has passed
(d) Additional facility was granted and new stamp duty paid

150. The power of sale will become exercisable if any of the following conditions are met except:

(a) Any interest in the mortgage is due and remained unpaid for 3 months
(b) A notice in writing was sent to the mortgagor for repayment of the principal sum and he has failed to pay for 3 months
(c) The mortgagor is in breach of a covenant or a term in the mortgage deed
(d) Some interest under the mortgage has remained in arrears and unpaid for 2 months.

Mr. James Tariye a retired civil servant of No. 42, Lagos Street Ikoyi Lagos married his wife Faustina under the customary marriage in 1966. The marriage is blessed with two lovely girls Emily (24) and Zainab (22). In 2007, he made a Will wherein he made the following dispositions;

i. I appoint my wife Faustina and my bosom friend Kingsley Kumuni as executors of my will;
ii. I give my house at No.20 Ikorodu Road Lagos to my wife Faustina during her lifetime and upon her death to Ikorodu Local Government to be used as public library.
iii. The remainder to my wife to use as she pleases for her love for me.

Answer questions 151 to 154

151. One of the following is not true about the gift in clause ii above:

(a) Faustina can sell the property in her lifetime
(b) Faustina is only entitled to the property during her lifetime
(c) Faustina can mortgage the property during her life
(d) Upon the death of Faustina, the property will go Ikorodu Local Government

152. Assuming before the death of James, he sold the property in clause ii

to Gold Can PLC; the gift will be said to:

(a) Lapse
(b) Abate
(c) Adeem
(d) Failed

153. The effect of omitting clause iii in the Will is:

(a) Incomplete testacy
(b) Partial intestacy
(c) Invalid testacy
(d) It will have no effect

154. The properties that will fall under the gifts in clause iii includes all the following except:

(a) Properties acquired by the testator after making the will
(b) Gifts that failed
(c) Gifts rejected by the beneficiary
(d) None of the above

In December 2012, Dr. Mike Maigida of No. 20 Lamido Adamawa Way Yola, Adamawa State, made a will wherein he appointed Alhaji Usman Ike, Hajia Faruk Adebayo and Chief Nura Okenwa as his executors/executrix. After his death and burial in 2015, his will was read, however his named executors/executrix of his will renounced the will.

155. In order to administer the estate of Dr. Maigida:

(a) His executors/executrix must apply for probate even after renouncing the will
(b) Persons entitled to his estate will apply for probate
(c) His personal representatives will apply for letters of administration with the will annexed
(d) His executors/executrix must apply for letters of administration with their names annexed

156. Apart from the use of a will, Dr. Mike can give away his property to persons of his choice using:

(a) Deed o mortgage
(b) Deed of gift
(c) Deed of conveyance
(d) Deed of lease

157. Assuming Dr. Maigida gave a house to the first son Musa in the will with a condition that he should not vote in any election in Nigeria. The gift will likely fail on the ground:

(a) Fraud
(b) Public policy
(c) Unfavorable condition
(d) None of the above

158. All but one of the following is essential for conducting physical inspection of the property in sale of land:

(a) To avoid the doctrine of constructive notice
(b) To discover patent defects
(c) To discover latest defects
(d) To discover any encumbrance on the land

159. The document to be prepared by the lessor and the lessee for the grant of a term of 3 years is:

(a) Tenancy agreement
(b) Deed of lease
(c) Deed of sublease
(d) Deed of tenancy

160. One of the following taxes is paid for making profit from the disposal of interest in land:

(a) Stamp Duties
(b) Tenement rate
(c) Capital gain tax
(d) Sale of land tax

PROFESSIONAL ETHICS

<u>NOTE</u>: This compilation is intended to serve only as a guide to MCQs on the Bar Final Examination and is by no means connected to any future examination of the Nigerian Law School. Students are therefore advised to avoid wrongful or unlawful application of the material or information contained herein.

On June 24, 2013, barrister Inusa Obed met with his client ken peter in his office. The client handed him a letter in respect of a negotiation between the client and his employer, DAMMAREA Engineering Co. Ltd. The letter contains the phrase 'Without Prejudice'.

Answer the following question.

1. **The effect of the phrase 'without prejudice' in the letter <u>is not</u> all but one of the following;**
   (a) The letter will be admissible in court against the maker, if negotiation breaks down
   (b) The letter will be admissible against the maker, if negotiation stands
   (c) The letter will be inadmissible in court against the maker
   (d) The letter will be admissible in court in all circumstance

2. **Assuming Barrister Inusa Obed is suggesting the use of ADR to his client, all but one of the following is not a factor to be considered in choosing ADR.**
   (a) Cost of litigation
   (b) Flexibility of ADR
   (c) Delay in judicial process
   (d) Limited authority

Kelani Ndom acted as solicitor to Dr. Alake Ikpeme in a sale when Dr. Alake Ikpeme sold his property at plot 12 Rudy Avenue, Calabar to Mr. Bassey Molidan for a sum of ₦80m. Kelani received the ₦80 on behalf of his client but failed to remit the money to him. He spent part of the money and paid the remaining ₦20m into his personal account. Meanwhile, as a result of kelani Ndom's inability to provide the best service to his clients whose matter has suffered series of setback in the High Court, the client debriefed Kelani and engaged the service of Dele Aisosa. Dele Aisosa was recently invited by his client to come to his house to take instructions so that he could draft a deed of lease in respect of some expatriates.

Answer the following questions.

3. **All but one of the following is a skill Kelani Ndom needs to provide the best service to his clients**
   (a) Drafting skill
   (b) Advocacy skill
   (c) Management skill

(d) All of the above

4. **What duty does Dele Aisosa owe Kelani Ndom as the latter's client has changed counsel?**
   (a) Duty to notify Kelani of the change of counsel
   (b) Duty to join kelani and prosecute the case jointly
   (c) Duty to notify kelani of the juicy nature of the case
   (d) None of the above

5. **Which rule of RPC has Kelani breached?**
   (a) Rule 21 RPC
   (b) Rule 23 RPC
   (c) Rule 24 RPC
   (d) Rule 26 RPC

6. **If this matter is tabled before the disciplinary body of the Bar, the conduct of Kelani against Dr. Alake Ikpeme would earn him the punishment of:**
   (a) Suspension
   (b) Order for return of documents or money by the lawyer
   (c) Striking off of name from the roll
   (d) Any of the above

7. **Under which of the following circumstances is Dele Aisosa not to take instructions from client outside his law office?**
   (a) When client is ill and desirous of consulting his lawyer
   (b) When the client is very elderly and movement is impossible and difficult
   (c) When client is wealthy, influential and can mobilize the lawyer with ease
   (d) When client is in prison or police custody

8. **Assuming the client has defaulted in paying Kelani his outstanding fees, what is the duty of Dele Aisosa in this regard?**
   (a) Duty to ensure that kelani is paid his earned fee
   (b) Duty not to accept the brief in solidarity with his colleague
   (c) Duty to report the matter to the police
   (d) Duty to do the matter pro bono

On the 9th day March, 2013 Mr. Ikoro Idoko SAN was appearing before the High Court of Benue State sitting in Makurdi for a criminal matter. Unknown to him, Mr. Tiv Achanya, the Honourable Attorney-General and Commissioner of Justice Benue State was also in court to enter a nulle prosequi in a criminal matter pending before the same court. Shortly before the learned trial judge started sitting, Mr. Agebe Gboko, a member of the Body of Benchers rushed into the court and joined them in the Inner Bar. The chairman of Nigerian Bar Association, Makurdi branch was also in court.

9. **Which of them is entitled to call his case first in accordance with the order of precedence in court?**
   (a) The chairman of NBA Makurdi branch
   (b) The Senior Advocate of Nigeria

(c) The Attorney General of Benue State (1st Schedule,)
(d) The bencher

10. The term ''Inner Bar'' refers to:
(a) The part of the court reserved for Senior Advocates
(b) The part of the court reserved for Attorney General of the Federation and Attorney General of the states
(c) The parts of the court reserved for life members of the Body of Benchers
(d) All of the above

11. Which of the following statement is true about members of the Body of Benchers
(a) They need not be Senior Advocates of Nigeria
(b) They must be retired judges and magistrate
(c) They must be 30 years and above at the bar
(d) None of the above

12. Mr. Ade Ushongo, a new wig, was full of admiration of the way Iroko Odoko SAN handled his matter and also desired to become a Senior Advocate one day. Which of the following requirements must he fulfill?
(a) He must be an official of the NBA in his state of practice
(b) He must be courteous to judges and their relations
(c) He must be a member of at least one professional body
(d) He must not be less than 10 years post call at the bar

13. Which of the following is true if the presiding judge of Benue state High Court retires?
(a) He can form a partnership with other lawyers
(b) He cannot practice as a barrister and solicitor
(c) He can form associateship with other judges
(d) None of the above

14. Which of the following is a secondary source of law?
(a) Index to Nigerian Weekly law reports, 2012
(b) Black's Law Dictionary
(c) Laws of the Federation of Nigeria
(d) Legal Practice and management in Nigeria by O. Doherty

15. All but one of the following are Negotiating tactics
(a) Control of the agenda
(b) Contextual manipulation
(c) Nibble
(d) Problem solving

16. A unit of practice whereby two or more practitioners come together to contribute the capital to provide facilities required for a law firm, occupy the same premises, share office facilities, equally contribute to wages and salaries of support staff, but owns an independent practice and separate client is best described as:
(a) Partnership
(b) Associateship
(c) Sole proprietorship

(d) Hybrid

17. Which of the following is a non-arbitrable matter

(a) Custody of infant
(b) Election Petition
(c) Recovery of premises
(d) Declaration of title

18. The expression ''counsel must not undress the court'' means:

(a) Counsel must not derobe the judge
(b) Counsel must dress up before coming to court
(c) Counsel must not leave the bar empty while the court is still sitting
(d) Counsel must not put the court to shame

19. Arbitration clause may consist of:

(a) Future dispute clause
(b) Submission clause
(c) Both A and B
(d) None of the above

20. An arbitral award can be enforced by:

(a) Motion Ex parte
(b) Motion on Notice
(c) Originating Motion
(d) Originating summons

Mr. Akeem John, Mrs. Nkechi Hassan and Mr. Freebone Practice law under the name and style of John, Hassan and Freeborn & Co. At the end of the year, profit is shared in a 40, 30, 25% bases. The balance is invested into the practice. Mrs. Hassan is also on the board of a number of companies including Fruggal Nig. Limited.

The Law firm has a number of clients and it has relationship with Exxon Mobil Nig. Ltd and handles only taxation matters on behalf of the company. On the 2nd of June 2011, Mrs. Ebele Chukwu walk into the law office of John, Hassan and Freeborn asking it to represents her in a matter of unlawful termination of employment by Exxon Mobil Ltd. On the 1st of July, 2011 Lagos state government wrote the firm asking for its representation in a matter of breach of contract to be instituted against Fruggal Nig Ltd. Mr. John was elevated to the High court bench of Kogi State on the 25th of July 2011.

Now answer questions 21-27

21. The business relationship that exist among the lawyers is:

(a) Law practice
(b) An Associateship
(c) A Sole proprietorship
(d) A partnership

22. The relationship that exist between the firm and Exxon Mobil is:

(a) A retainer
(b) A general retainer
(c) A specific retainer
(d) A special retainer

23. All of the following statements are true except:

(a) The firm can act for Lagos state government.
(b) The firm can act for Lagos state government once it discloses the conflict
(c) The firm can act for Lagos state government after Ms Hassan has

resigned from the board of Fruggal Nig Ltd

(d) Although the firm may disclose its conflict, it is advisable if it does not act for Lagos state government

24. After Mr. John's elevation to the Bench;

(a) The firm can continue carrying on business using that name

(b) The firm must change its name

(c) Mr. john cannot adjudicate on a matter in which he acted as counsel before his elevation to the Bench

(d) After retirement from the Bench, he cannot practice as barrister

25. When Mrs. Ebele walked into the law office, the meeting between her and the lawyers is called

(a) The briefing

(b) Client Counseling

(c) Interrogation

(d) Client Interview

26. All of the statements are true except:

(a) A firm will be expected to keep a minimum of three bank accounts and two books of accounts

(b) The firm may pay non-client money into client account

(c) In signing correspondence, any of the lawyers may sign for the firm

(d) It is good practice to sign as thus: John, Hassan, Freeborn & Co.

27. When counsel addresses the court 'I am speaking from bar' it means he is telling the court that

(a) He is speaking from the seat reserved for lawyers in court

(b) He is speaking as counsel on behalf of his client

(c) He is speaking upon his honour as counsel and should therefore be believed

(d) He is speaking as counsel and not as a judge

28. At the last April election, Chief Johnson was the candidate of the Better Life party of Nigeria; Madam petty Cash was also the senatorial candidate of High Society Party of Nigeria. The senatorial elections were marred by substantial irregularities and Chief Johnson was declared the winner of the election. Madam Petty Cash briefed a senior advocate of Nigeria to pursue the case at the Election Petition Tribunal sitting at Lokoja. Madam Petty Cash wanted a speedy resolution of the election dispute and insists she wanted to adopt the ADR to resolve the matter despite advice by her counsel.

Which of the following advice is correct, assuming you have been briefed by Madam Petty Cash?

(a) that it is possible to use ADR to settle the matter

(b) that it is impossible to use ADR to resolve the case

(c) that it is impossible to use ADR to resolve cases of election petition and resolution of constitution matters

(d) none of the above

Chief Pius Braimo is a Notary Public for Nigeria with his law office at Shagamu. He does not belong to the local branch of the Nigerian Bar Association. Anytime he appears at the High court in Shagamu, he usually seats at the inner bar, claiming to be a Notary Public and should be heard before other legal practitioners. Chief Ayeni is also a legal practitioner of over 30 years at the Bar. He appeared in the same court with Chief Pius Braimo. Chief Braimo who is twelve years at the Bar desires to mention his case before Chief Ayeni, claiming that he is a Notary Public.

Answer questions 29-30

29. Notary Public of Nigeria is conferred on:

(a) Legal practitioner who has been conferred with the rank of Senior Advocate of Nigeria
(b) Practice law for a period of 10 years
(c) Practice law for a period of 10 years and has appeared in the High court in five civil case
(d) Exemplary character and has practiced law for not less than 10 years and has paid his practicing fees for not less than seven years

30. The title 'Notary public of Nigeria' is conferred on a legal practitioner by the

(a) General Council of the Bar
(b) Nigerian bar association
(c) Chief Justice of Nigeria
(d) Legal Practitioners Privileges Committee

Adebimpe George has just been called to the Nigerian Bar. She intends to practice in maritime law. She has agreed to work with three of her colleagues who are also legal practitioners. Adebimpe George has a capital base of ₦1million which she received as donations from her parents and well-wishers of her family on the day of her call to bar ceremony, which took place at ICC, Abuja. She has decided to rent a three bedroom flat at Opebi, in Ikeja, as her law office premises. John Shagaya, Tolulope martins, and Ajoke Steves have agreed to come and work with Adebinpe in her law office, registered as Adebimpe George & Co. They have also consented to engage three support staff.

From the above scenario, answer questions 31-32

31. The kind of law firm formed by Adebinpe George can best be described as:

(a) Partnership
(b) Associateship
(c) Sole proprietorship
(d) Sole Practitionership

32. The law firm can suitably be classified as_____ firm.

(a) Large
(b) Small
(c) Medium
(d) Average

33. One of the following is not the responsibility of the Body of Benchers

(a) Call to Bar
(b) Discipline of lawyers

(c) Making rule of professional conduct
(d) All of the above

34. All the following are disciplinary bodies in the Legal Profession (Except)
(a) The Supreme Court
(b) Chief Justice of Nigeria
(c) President of the Court of Appeal
(d) Nigerian Bar Association

35. In announcing appearance in court, the expression 'Your Honour' is used before one of the following courts:
(a) Area court in Gusau, Zamfara State
(b) Magistrate court in Enugu, Enugu State
(c) Magistrate court in Lagos
(d) High court in Asaba, Delta State

Mr. Shon Bang is a legal practitioner who has been arraigned before the Legal Practitioners Disciplinary Committee for misappropriating N2, 000,000 belonging to his client.

Use the above scenario to answer question 36-37

36. What is the appropriate quorum for the disciplinary committee?
(a) 5
(b) 6
(c) 3
(d) 2

37. Assuming the disciplinary committee makes a finding against Mr. Bang what is the time within which Mr. Bang can file appeal against the decision of the committee?
(a) 28 days from the date he was served a copy of the decision
(b) 28 days from the date of the decision
(c) 30 days from the date he was served a copy of the decision
(d) 30 days from the date of the decision

38. Which of the following may constitute touting in the legal profession?
(a) Publishing in a law directory a lawyer's address, telephone, mail, telex, and e-mail
(b) Where a lawyer frequently goes to clubs, hotels and restaurants for the purpose of distributing business cards.
(c) Participating in radio and television programmes wherein he gives information on law
(d) None of the above

39. John, Jill, Rex and Joan called to bar in 2000, 1999, 2008 and 2004 respectively used to appear for the same party in a case.

Which of the following is the proper order of announcing their appearance?
(a) Joan, Rex, Jill and John
(b) John, Jill, Rex and Joan
(c) Rex, Joan, Jill and John
(d) Jill, John, Joan and Rex

40. Which of these duties is otherwise called the cab rank rule?
(a) Duty to take instruction in chambers
(b) Duty to accept brief
(c) Duty to exercise professional competence
(d) Duty to open client's account

Brown Nig. Plc. was awarded a contract by the Council of Legal Education for the construction of classroom blocks at the Enugu campus of the Nigerian Law School. The contract contains an arbitration clause.

Dispute arose between the parties and the company filed an action in court claiming damages for breach of contract.

Answer the following questions.

41. An arbitration clause in a contract has one of the following characteristics:
(a) The invalidity of the contract
(b) The invalidity of the contract does not affect it though it renders it voidable
(c) It is independent of the contract
(d) It is void when the contract is invalid

42. The council of legal education may succeed in an application for the parties to first resort to arbitration only if:
(a) It has filed its statement of defence
(b) It has filed a memorandum of appearance
(c) It has not taken any step in the proceeding
(d) It is represented by a lawyer

43. Arbitration is different from negotiation because an arbitral process is:
(a) Binding on the parties and can be enforced in court
(b) It involves only four persons
(c) It is presided over by a High Court judge
(d) Lawyers do not appear before the tribunal

44. Which of these bodies make the rules of professional conduct for the legal profession?
(a) Council of Legal Education
(b) General Council of the Bar
(c) Body of benchers
(d) Legal practitioners disciplinary committee

45. Where a legal practitioner is representing both the mortgagee and the mortgagor, he shall be entitled to charge:
(a) The mortgagor's legal practitioner's fees and one half of the mortgagee's legal practitioner's fees
(b) The mortgagee's legal practitioner's fees and one half of the mortgagor's legal practitioner's fee
(c) One and half of the legal practitioner's fees
(d) A or B above

46. Which of these laws enjoins a legal practitioner to keep separate books of accounts of his personal money, client money and trust money?
(a) Legal Practitioners' Account Rules, 1992
(b) Legal Practitioners' Rules, 1975
(c) Legal Practitioners' Account Rules, 1964
(d) Legal Practitioners' Act, 1975

47. Fees on account is a source of:
(a) Client money
(b) Trust money

(c) Controlled money
(d) The legal practitioner's own money

48. The following are part of minutes of meeting of a firm except one;
(a) Heading and list of members present
(b) Heading and matters arising
(c) Adoption of agenda and reports
(d) Resolution and refreshment

49. In preparing a curriculum vitae all is relevant except one
(a) Your name and state of origin
(b) Your schools and qualification
(c) Your religion and your destiny
(d) Your address and signature

50. A counsel must do all but one
(a) Diligent to his client
(b) Competent in handling matters
(c) Assuring his client of success
(d) Respectful to the client

51. One of the following is not among the category of persons entitled to practice law under the Legal Practitioners Act, Cap L11 2004
(a) Those entitled to practice by virtue of their office
(b) Those entitled to practice with the leave of the court
(c) Those entitled to practice for the purpose of particular proceedings
(d) Those entitled to practice generally

52. One of the following is not a necessary condition to be fulfilled by aspirant to the Nigerian Bar
(a) Success at law school portfolio assessment
(b) Nigerian citizenship
(c) Good conduct
(d) Success at Bar Part II Examination

53. One of the following is not a function of the Body of Benchers
(a) Call to the bar of successful aspirants to the Bar
(b) Prescription of Call Fees
(c) prescription of Practicing Fees
(d) issuance of Certificate of Call to Bar

54. Where a client fails to pay a legal practitioner for services rendered professionally all the following options are available to the legal practitioner except:
(a) Lien on client's property
(b) Obtain charging order on client's personal property
(c) Obtain charging order on property recovered by the lawyer on behalf of the client
(d) Take his fees from client money in his possession

55. The following are the exclusive right of a legal practitioner except:
(a) Appointment as a judge to a superior court
(b) Appointment as attorney general and minister of justice
(c) Preparation of documents for Probate and Letter of Administration
(d) Registration of business

56. A legal practitioner can engage in any of these businesses except:

(a) Secretary of Board of Directors of a company
(b) Executive director of a company
(c) Non- Executive director of a company
(d) A shareholder of a company

57. Mr. Dubem owes Mr. Chukwudi all but one of the following duties as a client

(a) Duty to accept brief
(b) Duty to take instruction in chambers
(c) Duty to avoid conflict of interest
(d) Duty to preserve confidential information

58. One of the following is not a precondition precedent for the attainment of the rank of Senior Advocate of Nigeria by Mr. Dubem Atime:

(a) Physical inspection of the law office
(b) Names of six legal practitioners who lead him/her or against whom he appeared in contested cases
(c) The rendering of pro bon to indigent client
(d) Extent of contribution to growth of legal practice

59. Eneche & Co., a firm of legal practitioners, had their weekly meeting where Best Smith was asked to take down the minutes of meeting. What constitutes "In attendance" is of great concern to him in writing the minutes. "In attendance" means:

(a) Members of the firm present
(b) Invited persons other than members present
(c) Members absent with apologies
(d) Members present by proxies

60. Cobree Great was appearing before Hon. Justice Prim and Proper with very long earrings. She was denied right of audience by the Judge as a result of her dressing. According to the RPC, a lawyer owes the court the following duties save:

(a) Duty to appear with a junior counsel
(b) Duty to adhere to proper dress code
(c) Duty to be decorous
(d) Duty to assist the court to attain justice

61. The following may not bring an application for the inspection of a legal practitioner's books of account except:

(a) Council of Legal Education
(b) The National body of the NBA
(c) Oral complaint of a third party
(d) All of the above

62. A new wig is expected the sum of------ as the first professional fee?

(a) N5000
(b) N10000
(c) N2000
(d) None of the above

63. Alternative Dispute Resolution processes does not include

(a) Mediation
(b) Negotiation
(c) Multi Door Court House
(d) None of the above

64. It is not unethical for a legal practitioner to:

(a) Stand surety for a respectable client
(b) Thoroughly investigate facts communicated by his client
(c) Accept an instruction which involves arguing against the interest of a party paying his retainer
(d) Reveal confidential information after the termination of the client-counsel relationship

65. A Counsel does not owe his client the duty of:
(a) Taking full instructions
(b) Taking instructions in Chambers
(c) Being told how to carry out the instructions
(d) All of the above

66. A Legal practitioner may instead of being ordered to produce his books of account, be ordered to obtain a certificate by an accountant in the following cases except
(a) On the motion of the Bar Council
(b) Written complaint of a third party
(c) Written request of any branch of the NBA
(d) All of the above

67. The acronym WATNA represents
(a) Ways To Negotiate Agreement
(b) Worst Avenues To Negotiate Agreement
(c) Worst Alternative to Negotiated Agreement
(d) None of the above

68. Which of these is not a category of unprofessional conduct under the Legal Practitioner's Act
(a) Infamous conduct in a professional respect
(b) Fraudulent enrolment
(c) Conviction of an offence compatible with the status of a legal practitioner
(d) Misconduct not amounting to infamous conduct but incompatible with the status of a legal practitioner

69. Where a Client confesses guilt to a crime, the Defence Counsel should
(a) Withdraw from the case
(b) Report to the State
(c) Put forward a defence contrary to the confession
(d) None of the above

70. The condition precedent for the Bar Council to act on the complaint of a third party is
(a) Prima facie evidence that there is sufficient ground for the complaint
(b) The complainant must pay the cost of the inspection
(c) To complainant must pay the legal practitioner's cost
(d) All of the above

71. A legal practitioner who establishes his own firm but employs other support staff to work in the firm is classified under
(a) Sole Practitionership
(b) Sole Proprietorship
(c) Associateship
(d) Partnership

72. There is no liability for negligence committed when conducting a case in court. This was the ratio in the case of
(a) Lawson v Sifre
(b) Cassidy v Minister of Health
(c) Rondel v Worsely
(d) Arthur Hall v Simons

73. Which of these does not justify a departure from the rule against legal practitioner not taking instructions in Chambers
(a) Old age, illness or infirmity of client
(b) Detention of client
(c) The personality of the client
(d) None of the above

74. The advantages of a Partnership does not include

(a) It is easy to set up
(b) Financial responsibility is shared
(c) The loss and risk is shared together
(d) It is easier to attract clients

75. The NJC Bio data Form for the appointment of Judicial officers is in
(a) Form A
(b) Form B
(c) Form 1
(d) Form 2

76. A dispute resolution mechanism involving a third party who is neutral who does not take any decision but simply helps parties resolve their differences best describes
(a) Arbitration
(b) Conciliation
(c) Mediation
(d) Negotiation

77. Utility bills, staff salaries and cost of stationery is classified under
(a) Start-up capital
(b) Capital expenditure
(c) Assets and expenditure
(d) Working capital

78. While in office, a Judicial officer is prohibited from accepting
(a) Personal gifts
(b) Loans from lending institutions
(c) Chieftaincy titles
(d) None of the above

79. Under the revised NJC Guidelines and Procedure Rules 2004 the first step in the appointment of a Judge of a State High Court is activated by
(a) The Governor of the State
(b) The Chief Judge of the State
(c) The National Judicial Council
(d) The Chairman of the State Judicial Service Commission

80. The Rules of Professional Conduct 2007 prohibits the mingling of a client money with the lawyer's money under
(a) Rule 21 RPC
(b) Rule 23 RPC
(c) Rule 28 RPC
(d) Rule 32 RPC

81. The rule of interpretation which enjoins giving words of a statute its natural meaning is?
(a) Literal Rule
(b) Golden Rule
(c) Mischief Rule
(d) Ejus dem generis rule.

82. The duty of Counsel is owed to the
(a) Client
(b) State
(c) Court
(d) All of the above

83. Under Section 64 of the Arbitration and Conciliation Act 2004, where there is an arbitration agreement and one of the parties commences an action in court without recourse first had to the arbitration clause, the remedy is
(a) The arbitration clause is deemed waived
(b) The Court should dismiss the action
(c) The other party can apply for a stay of execution
(d) The other party can apply for a stay of proceedings

84. Which of these ADR mechanism entails the parties discussing and agreeing to terms without recourse to third party
(a) Arbitration
(b) Conciliation
(c) Mediation
(d) Negotiation

85. Which is not an advantage of a Sole Proprietorship
(a) More commitment

(b) Easy decision making
(c) Sharing of financial responsibility
(d) Takes the whole profits

86. Which of these cannot be described as an advantage of ADR
(a) It is cheaper
(b) It promotes reconciliation
(c) It is binding and easier to enforce
(d) It saves time and cost

87. The three major books of account relevant to legal practice in Nigeria does not include
(a) Journal
(b) Ledger
(c) Cash Book
(d) None of the above

88. The removal of judicial officers from office is provided for under;
(a) Section 252 1999 CFRN
(b) Section 272 1999 CFRN
(c) Section 282 1999 CFRN
(d) Section 292 1999 CFRN

89. A Lawyer shall uphold and observe the rule of law, promote the course of justice, maintain a high standard of professional conduct and shall not engage in any conduct that is unbecoming of a legal practitioner. This is the thrust of
(a) Rule 1 RPC
(b) Rule 14 RPC
(c) Rule 32 RPC
(d) Rule 38 RPC

90. The sources of client money does not include:
(a) Executorship and trust
(b) Investment management
(c) Contingent Fees
(d) Conveyancing

91. A conduct which tends to bring into disrepute the authority of the law and which amounts to an interference with or the obstruction of the administration of justice is
(a) Infamous Conduct
(b) Unethical Conduct
(c) Contempt of Court
(d) All of the above

92. The preferred interview and counseling model is that of
(a) Avrom sheer's Model
(b) Mike Wolfe's Model
(c) Clay Smith's Model
(d) None of the above

93. A dispute resolution mechanism involving a third party sometimes an expert who is neutral but may deliver a non-binding opinion as to the merit of the decision best describes
(a) Arbitration
(b) Conciliation
(c) Mediation
(d) Negotiation

94. The doctrine of construing documents e.g. contracts that are ambiguous against the maker is termed
(a) Ut res magis valeat quam pereat
(b) Generalibus specialiaderogant
(c) Ejus dem generis
(d) Contra preferetum

95. In a cash book receipts are recorded on the:
(a) Debit side
(b) Credit side
(c) Balance carried down
(d) Balance brought down

96. The stage of information gathering in interview and counseling is
(a) Meet and Greet Stage
(b) Listening Stage
(c) Advising Stage
(d) Closing Stage

97. A Legal Practitioner may reveal information disclosed to him by a client
(a) When it amounts to suppression of a crime or fraud

(b) Where the client accused a legal practitioner
(c) Where the client consents to communication to a third party
(d) All of the above

98. A Lawyer enrolled on February 14, 2012 is expected to pay his practice fee
(a) Before February 14 2013
(b) Before March 31, 2012
(c) Before March 14, 2012
(d) Before December 31 2012

99. The Rules of Professional Conduct in the legal profession was made by
(a) Attorney General of the Federation
(b) Council of Legal Education
(c) Body of Benchers
(d) General Council of the Bar

100. The maximum punishment for contempt under Section 133 of the Criminal Code is
(a) 1 months imprisonment
(b) 3 months imprisonment
(c) 6 months imprisonment
(d) 12 months imprisonment

101. The duty of Counsel not to advice or assist in the violation of the law is contained in
(a) Rule 10 RPC
(b) Rule 12 RPC
(c) Rule 15 RPC
(d) Rule 24 RPC

102. A legal practitioner can act for both the mortgagor and mortgagee in a transaction if?
(a) There is no conflict of interest
(b) Parties consents
(c) The consideration is low
(d) All of the above

103. One of the following is not a law office implement:
(a) Stapler
(b) Refrigerator
(c) Generating sets
(d) Office table

104. It is mandatory for a legal practitioner who opens a new office to notify the branch of the NBA within
(a) 30 days
(b) 60 days
(c) 90 days
(e) None of the above

105. The fees charged by a legal practitioner for contentious matters should not be the following except
(a) Excessively high
(b) Excessively low
(c) Free
(d) None of the above

106. The body in charge of regulating compliance with the Legal Practitioners Account Rules is
(a) The Nigerian Bar Association
(b) The Council of Legal Education
(c) The Body of Benchers
(d) The General Council of the Bar

107. The Legal Practitioner's Account Rules was made
(a) By the NBA in 1975
(b) By the NBA in 1965
(c) By the NBA in 1964
(d) None of the above

108. The Rules of professional Conduct was made pursuant to
(a) Rule 1 RPC
(b) Section 10 (4) LPA
(c) Section 11(4) LPA
(d) Section 12 (4) LPA

109. Contempt in procedure consisting of disobedience to the judgment or other process of the Court amounts to
(a) Criminal Contempt
(b) Civil Contempt
(c) General Contempt
(d) Procedural Contempt

110. The maximum punishment for civil contempt is
(a) 1 month imprisonment
(b) 3 months imprisonment
(c) 6 months imprisonment
(d) 9 months imprisonment

111. Legal services such as searches at land registry or at the Corporate Affairs Commission can be charged under
(a) Scale I
(b) Scale II
(c) Scale III
(d) Scale IV

112. The major challenges and problems to the use of ICT in Law office management include the following except?
(a) High cost of some IT machines
(b) Conservative nature of the legal profession
(c) High rate of internet fraud
(d) Lack of constant electricity supply

113. Which of these is not a criteria for classification of law firms
(a) Location
(b) Capital base
(c) Facilities
(d) Number of Lawyers

114. A legal practitioner who prepared his bill of charges on the 1st January 2012 succeeded in delivering it to his client on 31st January 2012 can validly institute an action to recover the fees on
(a) 31st January 2013
(b) 1st February 2012
(c) 2nd March, 2012
(d) 28th or 29th February 2012

115. Which of the duties of a Counsel to his client is usually described with the analogy of the Cab rank rule
(a) Duty to take full instruction
(b) Duty to appear in litigation
(c) Duty to advice candidly and honestly
(d) Duty to accept brief

116. A Legal Practitioner requested to submit his books of account for inspection shall submit same to
(a) An accountant nominated by him
(b) An accountant appointed by him
(c) An accountant nominated by him and where he fails to do so, nominated by the Council
(d) An accountant appointed by the Council

117. Where a legal practitioner is already acting for a client, one of the following is true:
(a) No legal practitioner should take over the case on any account
(b) Another legal practitioner may take over the case but must give him notice and ensure he is paid his earned fees
(c) Another legal practitioner may take over the case but must charge a higher fee
(d) None of the above

118. A Legal Practitioner can only institute an action to recover his legal fees before the
(a) Federal High Court
(b) State High Court

(c) Magistrate Court
(d) Legal Practitioners Disciplinary Committee

119. Which of these is not one of the identified requirements for the establishment of a law firm
(a) Capital
(b) Patience
(c) Skills
(d) Good luck

120. Which of these is not incorrect
(a) A Solicitor may withdraw from client's account without client's authority, money paid into the account by mistake
(b) A Solicitor can draw a cheque in favour of a creditor from a client's account
(c) A Solicitor can withdraw money from client's account to pay a debt owed to him that has been acknowledged by the client, whether orally or in writing
(d) None of the above

121. The type of fees exclusive to non-contentious work by a legal practitioner is
(a) Appearance fee
(b) Percentage fee
(c) Contingent fee
(d) Fixed fee

122. The law office management structure where a selected group is put in charge of the day to day running of the firm is termed?
(a) Management by a sole partner
(b) Management by all partners
(c) Management by a committee of partners
(d) Management by experts

123. A Solicitor is guilty of professional misconduct if he fails to pay into the client's account

(a) Money received by him in the form of cash paid to the client or a third party in the ordinary course of business
(b) Money received by him in the form of cheque, endorsed over to the client or third party in the ordinary course of business
(c) Money received by him on behalf the client which he pays into a separate bank account opened in his name
(e) None of the above

124. Contempt committed within the precincts of the Court is
(a) Contempt in facie curiae
(b) Contempt ex facie curiae
(c) Civil Contempt
(d) General Contempt

125. One of these is a wrong provision concerning the provisions of the LPA Rules
(a) A Solicitor can be a Co-Trustee with one or more of his partners
(b) A Solicitor can be a Co-Trustee with a servant in his firm
(c) A Solicitor can be a Co-Trustee with another Lawyer in another firm
(d) A Solicitor can be a sole trustee

126. Which of these should not be paid into client's account
(a) Money paid to Legal Practitioner as stakeholder
(b) Money paid to Legal Practitioner as agent of his client
(c) Money held or received by Legal Practitioner on account of a trust of which he is the Solicitor Trustee
(d) None of the above

127. Contingency fee under Nigerian law is
(a) Unknown to Nigerian law
(b) Champetous
(c) Recognized under the Legal Practitioners Act
(d) Recognized under the Rules of Professional Conduct

128. Money received in advance of a legal work is called
(a) Contingent fee
(b) Percentage fee
(c) Advance fee
(d) Fees on account

129. The President of the General Council of the Bar is
(a) NBA President
(b) Attorney General of the Federation
(c) Chief Justice of the Federation
(d) Attorney General of the State

130. All money held or received by a Solicitor in whatever capacity but in trust must be paid into
(a) Client account
(b) Trust account
(c) Legal Practitioners account
(d) Designated account

131. According to the Legal Practitioners Account Rules the major thing required to be kept by a legal Practitioner is
(a) Books of Account
(b) Separate Bank Account
(c) All of the above
(d) None of the above

132. The Lawyer has a duty to devote his attention, time, energy and expertise the service of his client. This is provision of
(a) Rule 1 RPC
(b) Rule 10 RPC
(c) Rule 14 RPC
(d) Rule 32 RPC

133. The case where the necessity for the particulars of a bill of charges to be clearly spelt out was emphasized is
(a) NBA v Iteogu
(b) Ndoma Egba v ACB ltd
(c) NBA v Akintokun
(d) FBN PLC v Ndoma Egba

134. The recovery of legal practitioners charges is provided for under
(a) Section 13 LPA
(b) Section 16 LPA
(c) Rule 13 RPC
(d) Rule 16 RPC

135. The standard of proof in contempt in facie curiae is
(a) Balance of probability
(b) Beyond reasonable doubt
(c) Proof to the satisfaction of the Court
(d) Clear and convincing evidence

136. The second step a legal practitioner must take before instituting an action in court to recover his legal fees is
(a) Delivery of bill of charges on the client
(b) Preparation of bill of charges by legal practitioner
(c) Wait for a period of one month
(d) Institute an action in court

137. Remuneration of legal practitioner for non-contentious services is regulated substantially by
(a) Legal Practitioner Act
(b) Rules of Professional Conduct
(c) Legal Practitioner Account Rules

(d) Legal Practitioner (Remuneration for Legal Documentation and other Land Matters) Order 1991

138. In the scale of charges, lease and agreement for lease are charged under
(a) Scale I
(b) Scale II
(c) Scale III
(d) Scale IV

139. Part of the requirement for qualification as a Judicial Officer under the Revised NJC Guideline is a security report on a candidate by the
(a) Nigeria Army
(b) National Intelligence Agency
(c) Nigeria Police
(d) State Security Service

140. Rule 50 of the RPC defines
(a) Appearance fee
(b) Percentage fee
(c) Contingent fee
(d) Fixed fee

141. Upon establishment of a law firm, the legal practitioner is expected to notice in writing to;
(a) The NBA president within 20 days
(b) The Chief Judge of the state where the firm is located within 30 days
(c) The NBA branch where the firm is located within 30 days
(d) The NBA president within 60 days

142. The general rule that all client's money be paid without delay into a client's account is contained in
(a) Rule 1 LPA Rules
(b) Rule 3 LPA Rules
(c) Rule 5 LPA Rules
(d) Rule 9 LPA Rules

143. Which of these is not true of Associateship
(a) Associate takes the full credit
(b) Associate has other colleagues who can offer guidance
(c) Associate has difficulty attracting clients
(d) Death of the Associate entails death of the firm

144. The body responsible for the discipline of Judicial officers is
(a) National Judicial Council
(b) Judicial Service Commission
(c) General Bar Council
(d) Code of Conduct Bureau

145. The type of contempt of court that can be dealt with summarily is
(a) Contempt in facie curiae
(b) Contempt ex facie curiae
(c) None of the above
(d) All of the above

146. A Legal Practitioner is required by the LPA Rules to preserve all books, accounts and records required to be kept by him for at least
(a) Four years
(b) Five years
(c) Six years
(d) Seven years

147. A legal practitioner who establishes his own firm and employs other legal practitioners to work in the firm is classified under
(a) Sole Practitionership
(b) Sole Proprietorship
(c) Associateship
(d) Partnership

Using the scenario below, answer questions 148-149

President Goodboy Donatus this morning announced the following appointments, Justice Abiola Kalu as CJN (15 years post call), Justice Idris Abiodun (12 years post call) and Emeka Dawodu (10 years) as JSC

and JCA respectively. The appointment of Justice Kalu was on the recommendation of the National Judicial Council and approved by the Senate while that of Justices Abiodun and Dawodu were on the recommendation of the Judicial Service Commission and approved by the House of Representatives.

148. Which of the following is wrong concerning the appointment of Justice Abiola Kalu as CJN
(a) 15 years post call qualification
(b) The recommendation ought to be by the Judicial Service Commission
(c) The House of Representatives ought to have taken part in the approval
(d) None of the above

149. Which of the following is right concerning the appointment of Justice Idris Abiodun as a JSC
(a) The 12 years post call qualification
(b) The recommendation was rightly made by the Judicial Service Commission
(c) The House of Representatives making the approval
(d) The appointment was made by the President

150. Assuming you are the AGF, which of the following counsel would you have given the President concerning the appointment of Justice Emeka Dawodu as JCA
(a) The post call qualification ought to be 15 years
(b) The recommendation ought to be by the Judicial Service Commission
(c) The Senate and not the House of Reps ought to have approved the appointment
(d) None of the above

151. The approval of the Senate is not required in the case of the appointment of
(a) Chief Justice of Nigeria
(b) Justices of the Supreme Court
(c) President of the Court of Appeal
(d) None of the above

152. Assuming the appointments above only relates to Chief Judge of Abia State High Court
(a) The President would still have had powers to make the appointment
(b) The recommendation would be made by the Abia State Judicial Service Commission
(c) The Abia State House of Assembly would be required to approve the appointment
(d) None of the above

153. The four stages of negotiation does not include
(a) Meet and Greet Stage
(b) Bargaining Stage
(c) Closing Stage
(d) Execution Stage

154. Avrom Sherr's interview and counseling model consists of
(a) Three stages
(b) Four stages
(c) Five stages
(d) Six stages

155. One of the following is not an advantage of a sole practitionership;
(a) Quick decision making
(b) He enjoys all the profits from his law practice
(c) He takes the credit for the success of the firm
(d) There is professional isolation

156. For appearing for a client in a civil matter, the legal practitioner may charge all except one of the following fees?
(a) Scale fee
(b) Appearance fee
(c) Contingent fee
(d) Hourly rate fee

157. Assuming that in the course of interviewing one of your client, he

confessed to the commission of the crime he was charged with; the best option available to you is:

(a) To withdraw from the case and report him to the police
(b) To call witnesses to establish alibi
(c) To go ahead with the case and ensure that the prosecution proves the charge beyond reasonable doubt
(d) None of the above

158. All but one of the following is not a ground for a lawyer to reject the clients brief or withdraw from his employment:

(a) The client offered a small remuneration
(b) There is likelihood of conflict of interest
(c) The lawyer may be called as a witness to the merit of the case
(d) The client is insisting on filing a frivolous case

159. You have been taught that the legal profession enjoyed a scattered history. It therefore evolved in three notable eras which are:

(a) 1863-1913; 1913-1964, and 1964-till date
(b) 1876-1914; 1914-1962, and 1962-till date
(c) 1861-1912; 1912-1961 and 1961-till date
(d) 1874-1914; 1914-1962 and 1962-till date

160. The Nigerian Bar Association is one of the major regulatory bodies in the legal profession. However, the functions carried out by it does not include:

(a) Keeping data base of all legal practitioners who have law offices through the various NBA branches
(b) Promotes good relationship among members of the profession
(c) Exercising disciplinary jurisdiction over erring legal practitioners through its committee known as LPDC
(d) Investigate complaints against erring members of the profession and if a prima facie case is made, forward same to the LPDC